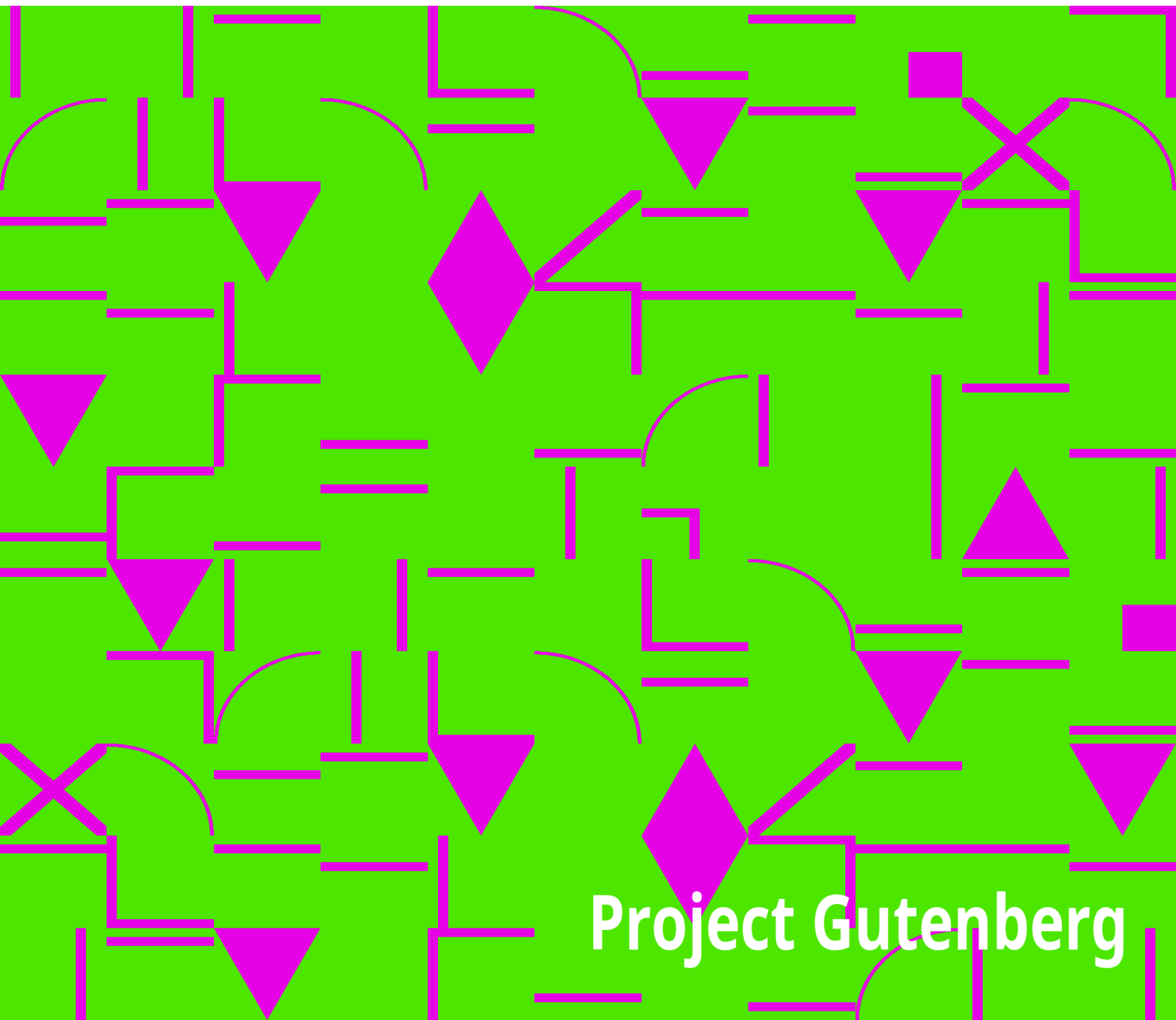


The Life, Public Services and Select Speeches of Rutherford B. Hayes

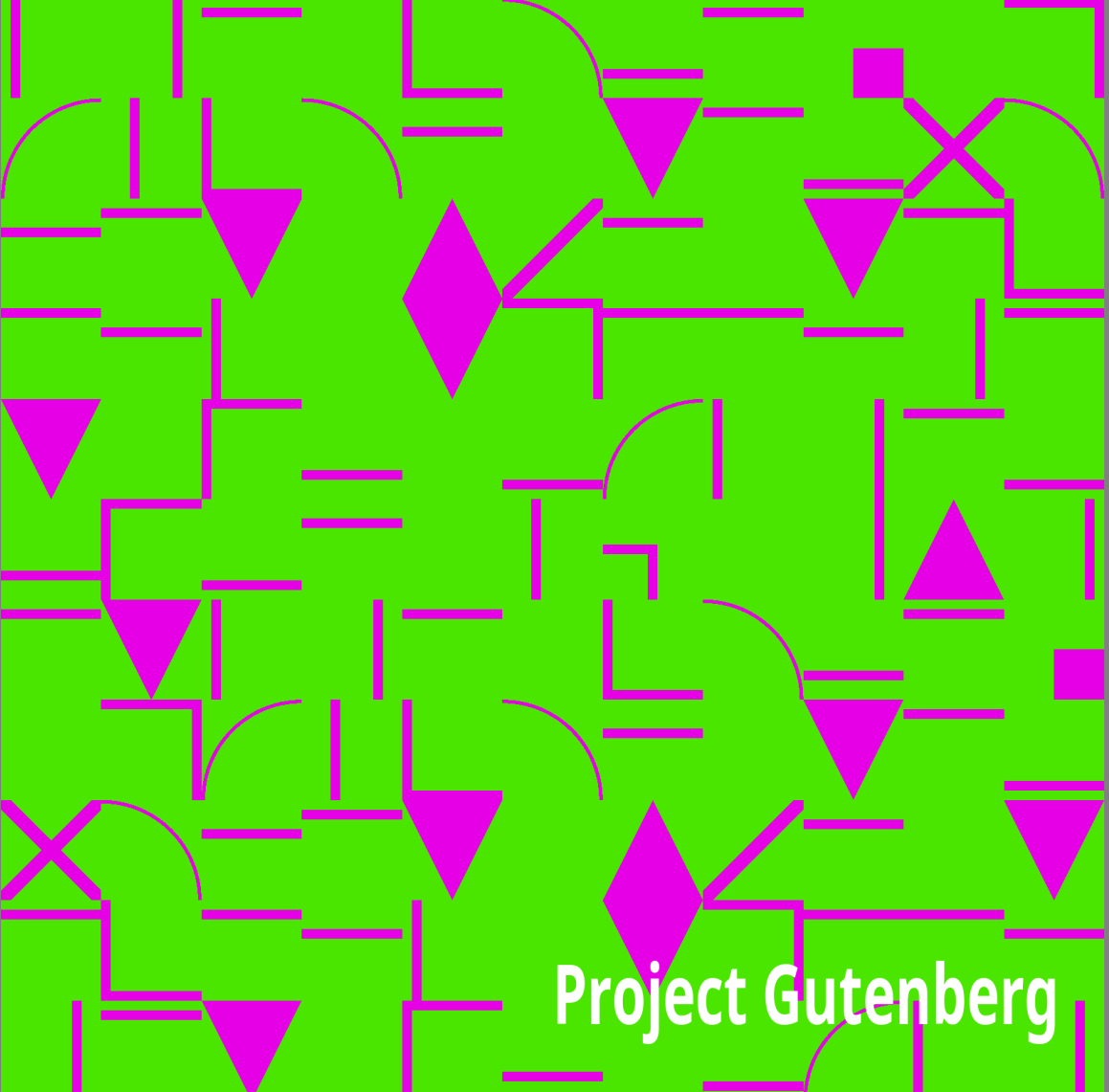
J. Q. Howard



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The Life, Public Services and Select Speeches of Rutherford B. Hayes

J. Q. Howard



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Title: The Life, Public Services and Select Speeches of Rutherford B. Hayes

Author: J. Q. Howard

Release date: July 10, 2007 [eBook #22037]

Most recently updated: January 2, 2021

Language: English

Other information and formats: www.gutenberg.org/ebooks/22037

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R. B. Hayes.

RUTHERFORD B. HAYES.

THE LIFE
PUBLIC SERVICES AND SELECT SPEECHES
OF
RUTHERFORD B. HAYES
BY

J. Q. HOWARD

CINCINNATI
ROBERT CLARKE & CO
1876

Entered according to Act of Congress, in the year 1876, by
ROBERT CLARKE & CO.
In the Office of the Librarian of Congress at Washington.
Stereotyped by OGDEN, CAMPBELL & Co., Cincinnati.

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LIFE OF RUTHERFORD B. HAYES.

CHAPTER I.

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ANCESTRY.

Line of Descent—Family Tradition—Indian Fighters—Grandfather Rutherford—Chloe Smith Hayes—Father and Mother—Characteristics—Tributes to a Sister—General Character of Ancestors.

George Hayes, of Scotland, came to America by the way of England, and settled at Windsor, in the Colony of Connecticut, in 1682. He married, in 1683, Abigail Dibble, who was born on Long Island in 1666. From these ancestors the direct line of descent to the Republican candidate for President of the United States is the following:

George Hayes,	Abigail Dibble.
Daniel Hayes,	Sarah Lee.
Ezekiel Hayes,	Rebecca Russell.
Rutherford Hayes,	Chloe Smith.
Rutherford Hayes,	Sophia Birchard.

The earlier family traditions connect the name and descent of George Hayes with the fighting plowman mentioned in Scottish history, who at Loncarty, in Perthshire, turned back the invaders of his country, in a narrow pass, with the sole aid of his own valorous sons.

"Pull your plow and harrow to pieces, and fight," said the sturdy Scotchman to his sons. They fought, father and sons together, and won. A like command seems to have come down the centuries to an American-born son—"Tear your briefs and petitions to pieces, and fight." He also fought, and,

though sorely wounded, won. Shall the crown of valor be withheld by a free people that was once bestowed by a Scottish king?

Daniel Hayes, the third of the ten children of George Hayes, was born at Windsor, in 1686. At the age of twenty-three, while fighting in defense of Simsbury—now Granby—to which town his father's family had removed, he was captured and carried off by the French and Indians. He was held as a prisoner in Canada for five years, and being a young man of great physical strength and vigor, the Indians adopted him as one of their race. His freedom was finally purchased through the intervention of a Frenchman, the colonial assembly of Connecticut, sitting at New Haven, having made an appropriation of public funds in aid of that specific purpose. An account of the captivity of this early defender of New England homes is found in Phelps' "History of Simsbury, Granby, and Canton." The wife of Daniel Hayes was the daughter of John Lee, who was noted for his bravery in fighting Indians.

Captain Ezekiel Hayes, who gained his title in the military service of the Colonies, married the great-granddaughter of the Rev. John Russell, the famous preacher of Wethersfield and Hadley, who concealed the regicides at Hadley for many years.

Rutherford Hayes, the grandfather of the subject of our biography, was born at New Haven, Connecticut, July 29, 1756. He married, in 1779, at West Brattleboro, Vermont—whither he had removed the year before—Chloe Smith, whose ancestry fill a large space in the "History of Hadley," several of whom lost their lives while fighting in defense their own and neighboring towns. From this fortunate and happy union, which continued unbroken for fifty-eight years, have sprung a race of accomplished women and honor-deserving men. One daughter married the Hon. John Noyes, of New Hampshire, who served in Congress 1817-19, and died in 1841, at Putney, Vermont. A daughter of this marriage is the mother of Larkin G. Meade, the sculptor; whose sister is the wife of William D. Howells, the novelist, and present editor of the *Atlantic Monthly*. Another daughter of Rutherford and Chloe Smith Hayes married the Hon. Samuel Elliott, of Vermont, who attained distinction in Congress and as an author.

In a diary still existing, kept by Chloe Smith Hayes when she was eighty years of age, are found evidences of this good woman's intellectual cleverness and vigor, and abounding proofs of her fruit-bearing piety and affectionate tenderness for her offspring and kindred. At this advanced age she seems a philosophical observer of natural phenomena and political events—minutely describing eclipses, floods, and storms—and, while moralizing over the inauguration and death of President Harrison, giving expression to the shadowy hope that wise and good men would take the helm of government, and, rebuked by the presence of death, be taught the lesson of mortality. Rutherford, the grandfather, bore the commission, dated 1782, of Governor George Clinton as an officer in the military service of the State of New York.

Rutherford Hayes, the father of Governor R. B. Hayes, was born at West Brattleboro, Vermont, January 4, 1787. On the 19th day of September, 1813, he was married, at Wilmington, Vermont, to Sophia Birchard, daughter of Roger Birchard and Drusilla Austin Birchard, of that place. The Birchards had emigrated from England to Saybrook and Norwich, Vermont, as early as 1635. They soon became men of note in Norwich and Lebanon, and many of their descendants have continued to be men of mark since that time. The family has had representatives in Congress from Illinois and Wisconsin, and noted members of it in the pulpit in New York and elsewhere.

Rutherford Hayes was engaged in business as a merchant at Dummerston, Vermont, until 1817, in which year he removed to Delaware, Ohio, with his family, consisting at the time of a wife and two children. In January, 1820, a daughter—Fanny—was born, and in October of the following year, a daughter, at the age of four, was lost. In July, 1822, Rutherford Hayes, the father, died of malarial fever; at the age of thirty-five; and on the 4th of the following October was born Rutherford Birchard Hayes, the since distinguished son. Three years later, the widowed mother was called to suffer a most distressing calamity in the death, by drowning, of Lorenzo, aged ten, a hopeful and helpful son.

The father of Governor Hayes was a quick, bright, accurate, active business man. He possessed both energy and executive ability. He had the independence which intelligence gives, and his dry humor served him well

in exposing shams and exploding humbugs. He was rigidly honest, and was, in the words of one of his neighbors, "as good a citizen as ever lived in the town of Delaware." He could do a great deal of work, and do it well. He was a witty, social, popular man, who made warm friends and few enemies.

The mother of Governor Hayes united force of character with sweetness of nature. Her self-reliant energy is shown by her making a trip, in the summer of 1824, to Vermont and back—a distance of sixteen hundred miles. The journey had to be performed by stage, and consumed two months in going and returning. She made a second journey to New England when Rutherford was nine years old. Her amiability of disposition made her the favorite guest at the homes of her neighbors. The straightened circumstances of a family deprived of its head required the aid of industry and economy. She was known, in village parlance, as a "good manager." Afflictions which would have made perfect a more faulty character purified her own. She died in Columbus, Ohio, October 30, 1866, at the age of seventy-four. She had been a consistent member of the Presbyterian Church for fifty years.

Mrs. William A. Platt, the sister of Governor Hayes, who died July 16, 1856, at the age of thirty-six, was a lady whose virtues and good deeds are enduring memories in Columbus homes. The Hon. Aaron F. Perry, of Cincinnati, in a public address, made this allusion to her worth: "Mrs. Platt, in the prime of a happy womanhood, passed beautifully away; not a white hair on her head, not a wrinkle on her brow, not a cloud upon her hopes; but in the full maturity of life and love she has gone where life and happiness are perfected." He whose character it is our duty to make known reflects this tender light from two lives: "She loved me as an only sister loves a brother whom she imagines almost perfect, and I loved her as an only brother loves a sister who is perfect. Let me be just and truthful, wise and pure and good for her sake. How often I think of her! I read of the death of any one worthy of love, and she is in my thoughts. I see—but all things high and holy remind me of her."

The conclusions which we draw from the examination of the records of the ancestral descent of Rutherford B. Hayes are, that his progenitors have in each generation displayed courage and capacity to fight limited only by the strength of the enemy to hold out. It was a habit they had to fight on the

side in the right, and on the side that won. Three of his immediate ancestors—Elias Birchard, Israel Smith, and Daniel Austin—gave proofs of valor and patriotism in the War of Independence. Another characteristic of the Hayes stock is the almost uniform tendency toward longevity. It is a robust race, presenting an extraordinary number of large families. The divine injunction to increase and multiply has been obeyed with religious fidelity. Upon the whole, the stock is good, and bids fair to become better. As men suffer discredit from disreputable progenitors, they ought to enjoy credit from reputable ancestors.

CHAPTER II.

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BOYHOOD AND EDUCATION.

Birthplace—University—Springs—Kossuth's Allusion—Early Instructors—Sent East—College Life—Began the Study of Law—At Harvard Law School—Story, Greenleaf, Webster, Agassiz, and Longfellow—Admission to the Bar.

The town of Delaware, the county seat of the county of Delaware, is located near the center of Ohio, twenty-five miles northwest of Columbus. It is a prosperous place of seven thousand people, the most of whom live in comfortable-looking, newly-built homes, and has been hitherto chiefly known for its University and its Springs. The Ohio Wesleyan University is the most flourishing literary institution of the great Methodist denomination in the West. The White Sulphur Spring is a fountain of healing and happiness to the whole region around, and is regarded with added interest since Kossuth came to drink of its waters, and, in reply to a welcoming address, eloquently said, that "out of the Delaware Springs of American sympathy he would fill a cup of health for his bleeding Hungary."

Three squares from these Springs, near the center of the town, and in a two-story brick house on William street, Rutherford Birchard Hayes was born. This has long been Delaware's pride, and will be its fame. The income of his widowed mother, who was bereft of her husband four months before her son's birth, was derived from the rent of a good farm lying two miles north of Delaware, on the east side of the Whetstone. This income, used with frugality, enabled her to commence the education of her children. They were sent first to the ordinary schools of the town. The first teacher who enlisted the affections of her since distinguished pupil was Mrs. Joan Murray, a most worthy woman, whose funeral Governor Hayes quite

recently attended. He began the study of the Latin and Greek languages with Judge Sherman Finch, a good classical scholar and a good lawyer, of Delaware, who had been at one time a tutor in Yale College. Judge Finch heard the recitations of his pupil in his office at intervals of leisure from the duties of his profession. The pupil taught his sister each day what his instructor taught him.

Through the agency of his uncle, Sardis Birchard, his guardian, who at this time took charge of his education, Rutherford was sent to an academy at Norwalk, Ohio. Here he remained one year under the instruction of the Rev. Mr. Chapman, a Methodist clergyman of scholarly attainments. In the fall of 1837, to complete his preparation for college, he was sent to quite a noted school at Middletown, Connecticut, kept by Isaac Webb. Mr. Webb, being a graduate of Yale, made a specialty of preparing students for admission to Yale College. His scholars came from every part of the United States. In one year, his Ohio pupil's preparatory course was completed. The character established by him at this school is made known in the concluding portion of a commendatory letter addressed by Isaac Webb, his instructor, to Mrs. Sophia Hayes, which reads:

"The conduct of your son has hitherto done 'honor to his mother,' and has secured our sincere respect and esteem. I hope and trust that he will continue to be a great source of happiness to you."

The first prize for proficiency in Latin, Greek, and Arithmetic was awarded at this academy to "R. B. Hayes."

In the fall of 1838, at the age of sixteen, young Hayes entered Kenyon College, Ohio, after passing satisfactorily the usual examination for admission. This institution is situated forty miles north of Columbus, in the village of Gambier, which is celebrated for the secluded beauty of its lawns and groves. The College was founded by Bishop Chase, with funds collected by him in England, the principal donors being Lord Gambier and Lord Kenyon. The institution was long under the fostering care of Bishop McIlvaine of blessed memory.

Young Hayes excelled as a debater in the literary societies and in all the college studies; but his tastes especially ran to logic, mental and moral philosophy, and mathematics. In the words of a college mate, now a very

distinguished lawyer, he was remarkable in college for "great common sense in his personal conduct; never uttered a profane word; behaved always like a considerate, mature man." In the language of another able member of the legal profession, who followed after him at Kenyon: "Hayes had left a memory which was a fascination, a glowing memory; he was popular, magnanimous, manly; was a noble, chivalrous fellow, of great promise."

On the general points of character, conduct, and scholarship, it is conclusive to say that, when graduation-day came, Rutherford B. Hayes was found to have been awarded the valedictory, which was the highest honor the faculty could bestow upon a member of his class. Although the youngest in years, he was found the oldest in knowledge. In three journals published in August, 1842, the month and year of his graduation, we find exceptionally warm commendations of his valedictory oration. The *Mt. Vernon Democratic Banner* said: "All who heard this oration pronounced it the best, in every point of view, ever delivered on the hill at Gambier."

In the class with Governor Hayes were Lorin Andrews, afterward President of the College, who fell in the war for the Union, and the Hon. Guy M. Bryan, late member of Congress, and present speaker of the Texas House of Representatives, who, although engaged in the rebellion, has paid a manly tribute to his College classmate since the presidential nomination.

In other college classes at the same time were Stanley Matthews, now one of the ablest lawyers in the United States; Hon. Joseph McCorkle and Hon. R. E. Trowbridge, afterward members of Congress from California and Michigan respectively; and Christopher P. Wolcott, who subsequently filled with high distinction the office of attorney-general of Ohio, and was also assistant secretary of war.

Kenyon College and its graduates bestowed additional honors upon the valedictorian of the class of 1842. In 1845, he was invited back by the faculty to take the second degree, and deliver what is known as the Master's oration. He was invited also by the alumni to deliver the annual address before them, both in 1851 and in 1853. All these honors he modestly declined.

Soon after graduating, Mr. Hayes began the study of the law in the office of Thomas Sparrow, of Columbus. Mr. Sparrow was a lawyer of high standing, whose integrity was proverbial. Although a Democrat in politics, he was regarded by his political adversaries as the purest of pure men. This worthy instructor certifies to the "great diligence" and "good moral character" of his student on the latter's departure to attend a course of law lectures at Harvard. A taste for the legal profession had been very early developed by young Hayes. The proceedings of courts had possessed to him in boyhood peculiar interest.

Judge Ebenezer Lane, long a Justice of the Supreme Court of Ohio, an intimate associate of Sardis Birchard, the patron uncle, had early turned the thoughts of the guardian of the nephew in the direction of the law.

Rutherford B. Hayes entered the law school of Harvard University, August 22, 1843, and finished the course of lectures, January 8, 1845. The law institution was at this time under the charge of Mr. Justice Story, whose eminence as a jurist is only surpassed by that of his bosom friend, the great Chief Justice, John Marshall. He enjoyed the friendship and counsel of Story, and also that of Prof. Simon Greenleaf, who bears testimony to his diligence, exemplary conduct, and demeanor. He kept a minute record, still preserved, of all the trials and proceedings of the moot courts, presided over by Professors Greenleaf and Story, and pages of authorities are cited where "R. B. Hayes" appears as counsel for the fictitious plaintiff or defendant. It might have been safely assumed that a young man of his quick perceptions while in the atmosphere of Boston would make the most of his opportunities and advantages. He attended the lectures of Prof. Longfellow on the literature of foreign languages. He profited by the lecture-room talks of the great scientist, Agassiz, upon the grand theme of nature. Watching his opportunities, he heard Webster deliver his model arguments before juries, and his great political speeches in Faneuil Hall. He visited John Quincy Adams at his home in Quincy, with a party of his fellow-students, who, when he learned that some of his visitors were from Ohio, read to them a part of an address Mr. Adams was about to deliver on the laying of the corner-stone of the Observatory on Mt. Adams, near Cincinnati.

He renewed and prosecuted with ardor the study of the French and German languages, both of which he now translates with ease, and speaks the

former with reasonable fluency.

Leaving with regret the classic shades of Cambridge, and parting from fellow-students such as George Hoadly, Manning F. Force, and the since famous orator, J. B. L. Curry, of Alabama, he returned to Ohio an educated young man. He was fitted for the battle of life which he has since so courageously fought, so far as America can afford facilities for procuring a complete, symmetrical education. Impatient to begin the struggle in his profession, he proceeded to Marietta, where the ambulatory Supreme Court of Ohio was then sitting, and having passed before an examining committee, composed of Messrs. Hart, Gardiner, Buel, and Robinson, was duly admitted to practice in the courts of the State as attorney and counsellor at law. The certificate of admission, which is dated March 10, 1845, has so good a name attached to it as that of Thomas W. Ewart, clerk. The Plymouth of the West had therefore the honor of welcoming to the bar the rising son of the West.

CHAPTER III.

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AT THE BAR.

Commences Practice—First Case—Partnership with Ralph P. Buckland—Settles in Cincinnati—Becoming Known—Literary Club—Nancy Farrer Case—Summons' Case—Marriage—Law Partners—City Solicitor.

The young lawyer, R. B. Hayes, full of hopefulness and ambition, commenced the practice of the law at Lower Sandusky, now Fremont, Sandusky county, Ohio. This growing town of Northern Ohio was selected because it was the home of the uncle whose extensive business connections would naturally throw more or less law business into the nephew's hands.

His first case was one against a sheriff's sureties, the sheriff having become insolvent. There were five or six bondsmen, who employed as many different lawyers, who of course made a fierce fight to protect the pockets of their clients. The pleadings were difficult under the old practice, and the slightest technical defect in them would adroitly be taken advantage of by the defendants' attorneys. But so accurately had the pleadings been drawn, and so well had the case been worked up by the young lawyer, that no flaw could be found, and his suit was at all points successful.

After this success he had a good run of office business, and was employed both in the defense and prosecution of criminals. In April, 1846, he entered into a law-partnership with Ralph P. Buckland, an older practitioner in good practice. Mr. Buckland subsequently became a conspicuous member of the Ohio Senate, and a gallant officer of the rank of brigadier-general in the war. He became a member also of the Thirty-ninth Congress.

One of the most important cases tried by Hayes while a member of this firm was an action to prevent or enjoin the building of a railway bridge across

the Bay of Sandusky, on the ground of its obstructing navigation. The cause was tried before Judge McLean, in the United States District Court at Cincinnati. Thomas Ewing, who was one of the opposing counsel in the case, continued to compliment Hayes during life for this maiden effort in a United States Court.

In November, 1848, in consequence of bleeding at the lungs and other alarming admonitions of failing health, Mr. Hayes left Fremont to pass a winter with his friend, Guy M. Bryan, in Texas. A half year of boating, fishing, hunting, and scouring the prairies brought about a physical revolution. He came back as sound as a dollar—that is, a coin dollar—and has so remained ever since.

In December, 1849, he put in execution a design for some time contemplated, and on Christmas eve arrived in Cincinnati. He had consulted professional friends in Cincinnati about seeking the stimulus of a wider field for permanent occupation, and was doubtless influenced somewhat by the advice received. One who had been with him at Harvard wrote: "I have not flattered the face of man or woman for years, but I think honestly that the R. B. Hayes whom I knew four years ago would be sure to succeed at this bar, if he can afford to live and wait." Another professional brother, on terms of intimacy, wrote: "With your energies, talents, education, and address, you are green—verdant as grass—to stay in a country village." On the 8th of January, 1850, the new candidate for public and professional favor took possession of an office on the south side of Third street, between Main and Sycamore, opposite the Henrie House. His office companion was John W. Herron, with whose appearance and manners the new comer seems to have been well pleased. The first year in Cincinnati brought little professional business, but no day was passed in idleness. His studies were systematic, and his reading comprehensive in both law and literature. Shakespeare, Burke, Webster, and Emerson were his inseparable companions. He sought to widen the circle of his acquaintances, and add daily to the number of his friends. Having been a member of the order of Odd-Fellows and Sons of Temperance in Fremont, he united again with those organizations in Cincinnati. The addresses he was invited to deliver at Odd-Fellow's lodges and at many more public places were very numerous. In this way he made reputation as a public speaker, if not money. He was not only becoming known, but becoming favorably known.

The widely renowned literary club of Cincinnati, which he joined in 1850, and of which he remained an active member for eleven years, awakened his social sympathies and ardent interest. To the reading of essays, and to the discussions on political, social, and moral questions, he always listened, and in the latter often took part. In debate, he was strong, eager, clear, and logical. He had an aptitude at seeing principles and getting at the kernel of questions. Among those who during these years participated in the social or literary entertainments of the club-room were Chief Justice Chase, Thomas Corwin, Thomas Ewing, father and son, General Pope, General Edward F. Noyes, Stanley Matthews, M. D. Conway, Manning F. Force, W. K. Rogers, John W. Herron, D. Thew Wright, Isaac Collins, Charles P. James, R. D. Mussey, and many others of ability and distinction. In January, 1852, the opportunity for "getting a start" in his professional career came. While making a sensible, energetic little speech in behalf of a criminal indicted for grand larceny, named Cunningham, he attracted the attention and won the commendation of Judge R. B. Warden, then president judge of the criminal court, who thereupon appointed the modest young attorney counsel for Nancy Farrer, whose case became the great criminal case of the term, if not of the times.

Nancy Farrer had poisoned all the members of two families. She had a bad countenance, a sinister, revolting look. It is not strange that she should have been considered by the court and jury that tried her, and by the entire public, a qualified candidate for the gallows. Hayes, in defending his client, had to contend against the passions, the indignation of the public, and the predispositions and prejudices of judge and jury. The judge who tried the case was not the one who appointed the comparatively unknown attorney as counsel. Hayes saw instinctively the immense importance of the case, and knew intuitively that a crisis had come in his career. He set laboriously to work to establish an impregnable line of defense.

He found on examination of the proofs that the supposed murderess was totally irresponsible, because of hereditary idiocy and insanity. Her father had died of drunkenness in a Cincinnati hospital, and her mother went about under the insane hallucination that she was a prophetess. Nancy's conduct and conversations while employed in the wholesale poisoning business showed that she had no moral comprehension of what she was about. But the plea of insanity had been so often and so vehemently pressed in defense

of prisoners who were sane that it seemed to be of no avail in defense of one who was not. The cry of insanity, like that of "wolf," had been so repeatedly raised when there was no insanity, that it was not heeded when there was. Notwithstanding an argument which for legal learning and forensic eloquence attracted the attention of the press and bar, and established the counsel's reputation, the poor, insane idiot was convicted of murder in the first degree. Hayes at once obtained a writ of error, which the district court reserved for decision in the Supreme Court of the State. The case was argued and determined in that court at the December term, 1858, and reported in 2 Ohio St. Reports. R. B. Hayes appeared for plaintiff in error, and George E. Pugh, attorney-general for the State. The earnest and determined advocate of Nancy Farrer carried his points, obtained a new trial, and greatly enhanced his professional reputation. The then official reporter of the Supreme Court of Ohio, who heard this argument, says: "It was a truly admirable effort, and the peroration was indescribably pathetic. But on this occasion, as on all others, Mr. Hayes was singularly modest." Although a new trial was granted, through the concurring opinions of Justices Corwin, Thurman, and Ranney, Nancy Farrer was never again tried. She was sent to a lunatic asylum.

Hayes next gained reputation through his connection with the notorious James Summons murder case. He was employed by the older counsel in the case to take notes of the testimony and record the rulings of the court. The trial occupying many days and many differences arising between counsel with respect to the rulings of the court, it was found that the accuracy of the notes of the junior attorney was in every instance confirmed by the court itself. When the time came for the final arguments to begin, the leading counsel asked each a day for each side. Judge Thurman, then presiding, on consultation with Judge Piatt, announced that the court could only give the leading counsel two hours each, but that they would allow Mr. Hayes one hour additional. Notwithstanding the court was assured that Mr. Hayes was not strictly employed in the case, Judges Thurman, Matthews, and Piatt insisted upon hearing him, and he was accordingly heard. His unpremeditated argument was clear, convincing, impassioned, and impressive. It was one of the best speeches of his life. The case went up to the Supreme Court with the junior as the leading counsel.

We now reach an event in the course of this narrative, which, controlling as is the influence it has upon all lives, has been immeasurably potent in its influence upon the life and fortunes of Governor Hayes.

On the 30th of December, 1852, he was married to Miss Lucy W. Webb, by Prof. L. D. McCabe, of the Ohio Wesleyan University. The marriage took place at No. 141 Sixth street, Cincinnati, the bride's home, in the presence of about forty friends. Lucy Ware Webb was the daughter of Dr. James Webb and Maria Cook Webb. Dr. Webb was a popular gentleman and successful practicing physician in Chillicothe, Ohio. In 1833, he died of cholera in Lexington, Kentucky, where he had gone to complete arrangements for sending to Liberia slaves set free by himself and his father. The grandfather of Mrs. Dr. Webb was Lieutenant-Colonel Cook, who in 1777 was serving in a regiment commanded by Colonel Andrew Ward, in the army of the Revolution. Both Governor and Mrs. Hayes are, therefore, descendants of soldiers of the Revolution, most worthily uniting in their lineage jointly the dawn of the second century with the dawn of the first. The six years following 1852 were years of full practice and exacting labors, in which disappointments were few and successes many. These were years in which solid foundations were laid for as solid a reputation as it was possible for the men among whom he moved to build up.

In January, 1854, he formed a law-partnership with R. M. Corwine and W. K. Rogers, under the firm name of Corwine, Hayes & Rogers. This proved a partnership of friendship as well as business, being in every way satisfactory and agreeable. Mr. Rogers is now the close companion of his old partner in these later and more eventful years. Mr. Corwine died a resident of Washington City, a year or two since.

In April, 1859, he was, without solicitation, chosen city solicitor by the city council of Cincinnati, to fill the vacancy caused by the death of Judge Hart, and on the 9th of that month entered upon the discharge of his official duties. His chief competitor for this office was Caleb B. Smith, since a member of Mr. Lincoln's cabinet. The vote in the city council on the first ballot was: Mr. Smith, 13; Mr. Disney, 12; Mr. Hayes, 3. On the seventh ballot, Mr. Hayes had 17; Mr. Ware, 12; and Mr. Disney, 3. On the thirteenth ballot, Mr. Hayes was declared elected, having received 18 votes to Mr. Ware's 14. His election was due to the vote of Mr. Toohey, a

Democratic councilman of the Thirteenth Ward. The election of Hayes to his first office was most favorably received.

The Cincinnati *Commercial*, of December 9, 1858, said: "R. B. Hayes, Esq., one of the most honest and capable young lawyers of the city, was elected city solicitor last night by the city council to fill the vacancy occasioned by the death of Judge Hart. It would have been very difficult to have made any other selection of a solicitor equally excellent and as generally satisfactory."

The Cincinnati *Enquirer*, of the same date, said: "Mr. Hayes, the city solicitor elect, is a lawyer of good acquirements and reputation, and is well qualified for the position."

Charles Reemelin, in a letter to the New York *Evening Post*, wrote: "I know of no young man in our city of higher promise than Mr. Hayes, and we hope for him a bright future."

The estimate of the people seemed to correspond with that of the press, for in the following spring he was elected to the office to which he had been appointed by a majority of two thousand five hundred and thirty-six on the popular vote. His Democratic opponent was W. T. Forrest.

He filled the office of corporation counsel for three years, during which time, as legal adviser of the municipal government of a great city, he passed judgment upon questions involving large interests, and discharged with high fidelity the duties of an important trust. As city solicitor, the opinion which perhaps aroused the most general attention and interest, was one delivered in February, 1859, denying the right of the city council to contract debts for waterworks purposes, without additional authority from the General Assembly. He was opposed to the increase of taxation and creation of new debts, on principle. In April, 1861, in common with the entire Republican ticket, he was defeated for re-election as city solicitor. His vote, however, was larger than that of any candidate on his ticket. He had suffered a similar defeat in the fall of 1856, when a candidate for Common Pleas Judge, his party being in a decided minority in Hamilton county. Had the election of 1861 occurred two weeks later, when the great uprising came with the fall of Sumter, the Republican war ticket, not the Democratic compromise ticket, would have carried the day.

CHAPTER IV.

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IN THE FIELD.

Appointed Major—Judge Advocate—Lieutenant-Colonel—South Mountain—Wounded—Fighting while Down—After Morgan—Battle of Cloyd Mountain—Charge up the Mountain—Enemy's Works Carried by Storm—First Battle of Winchester—Berryville.

That a loyal citizen of the antecedents, ardent patriotism, and impulsive nature of Rutherford B. Hayes would enter the army in the war for the Union, was to be looked for as a thing of course. He had been in the habit of obeying every call of duty, and could not therefore disobey when duty called loudest. He regarded the war waged for the supremacy of the constitution and the laws as a just and necessary war, and preferred to go into it if he knew he "was to die or be killed in the course of it." He had been a most earnest advocate of the election of Mr. Lincoln to the Presidency, and had been an anti-slavery man of established convictions long before the candidacy of Fremont for the Presidency. He did not think the Union should be destroyed to make slavery perpetual. He desired to mitigate and finally eradicate that evil. He had prayed for the election of General Harrison for the sake of the country; he had cast his first vote for Henry Clay, his second for General Taylor, and his third for General Scott. But the old Whig party having ceased to be a living organization, he gave his whole heart to the Republican party and its cause, and by political speeches, and in other ways, helped forward the movement in favor of equality of rights and laws. The insult to the flag at Fort Sumter aroused to the intensest pitch the patriotic indignation of a united North. At a great mass-meeting held in Cincinnati, R. B. Hayes was selected to give expression to the loyal voice, by being made chairman of the public committee on resolutions. It is not needful to add that these resolutions had

all the fire and intensity of the popular feeling. The knowledge that it was his purpose to enter the Union army having reached Governor Dennison, that officer appointed Hayes major of the Twenty-third Ohio Volunteer Infantry, June 7, 1861. With this appointment was coupled the appointments of W. S. Rosecrans as colonel, and Stanley Matthews as lieutenant-colonel of the same regiment. Colonel Rosecrans, with the other field-officers, had just set to work organizing the new regiment, when Rosecrans was appointed brigadier-general, and ordered to take command of the Ohio troops moving in the direction of Western Virginia. Upon the promotion of Rosecrans, Colonel E. P. Scammon, an officer of military education, was placed in command of the Twenty-third.

After a brief period of discipline at Camp Chase the regiment was ordered, on the 25th of July, to Clarksburgh, West Virginia, and on the 29th went into camp at Weston. We shall not follow it in this or in subsequent campaigns, in its marching, scouting, skirmishing, or counter-marching. It is enough to say, that in this first campaign it assisted in clearing the whole mountainous region of Western Virginia of a formidable enemy.

Major Hayes was appointed by General Rosecrans, on the 19th of September, 1861, judge advocate of the department of Ohio, the duties of which service he discharged about two months. He received his first promotion, to the rank of lieutenant-colonel, October 24, 1861. Passing over less important events, we come to the first serious battle in which he was engaged.

THE BATTLE OF SOUTH MOUNTAIN

Was fought on Sunday, September 14, 1862, a beautiful, bright September day. The enemy were in possession of the crest of the mountain, where the old National road crossed it. The army of McClellan, with Burnside in advance, were pressing up that mountain by the National road as its center. General Cox's division of Burnside's corps was in advance. The brigade to which Lieutenant-colonel Hayes was attached was in advance of the division. His regiment was in advance of the brigade. He was ordered to pass up a mountain path on the left of the National road and feel for the enemy, advancing until he struck him; to push him up the mountain if he could; in short, to open the engagement. Lieutenant-colonel Hayes pushed

into the woods, came upon the enemy's pickets, received their fire, and drove them in. He soon saw a strong force of the enemy coming toward the line of his advance from a neighboring hill, and went to meet them. Hayes charged into that force with a regimental yell, and, after a fierce fight, drove them out of the woods in which he found them, into an open field near the summit. He then drove them across the field, losing many men and capturing and killing many of the enemy.

Hayes, having just given the command for a third charge, felt a stunning blow, and found that a large musket ball had struck his left arm above the elbow, carrying away and badly fracturing the entire bone. Fearing an artery might be severed, he asked a soldier to bandage his arm above the elbow, and a few minutes after, through exhaustion, he fell. Recovering from a state of unconsciousness while down, in a few moments, and observing that his men had fallen back to the woods for shelter, he sprang to his feet, and, with unusual vehemence, ordered them to come forward, which they did. He continued fighting some time at the head of his men; but falling a second time, from exhausted strength, he kept on giving orders, while down, to fight it out.

Major Comly, the second in command, then came to him to learn the orders under which the regiment was fighting, and deeming it best to assume command, owing to the critical condition of Lieutenant-colonel Hayes, gave orders that the wounded hero should be carried from the field. In an almost illegible narrative, written with the left hand just after the battle, we find this modest record, by the intrepid sufferer in this event: "While I was down I had considerable talk with a wounded Confederate lying near me. I gave him messages for my wife and friends in case I should not get up. We were right jolly and friendly. It was by no means an unpleasant experience."

The enemy in this action continued to pour a most destructive fire of musketry, grape, and canister into the Union ranks. Lieutenant-colonel Hayes again made his appearance on the field with his wound half dressed, and fought until carried off. Soon after, the rest of the brigade coming up, a brilliant bayonet charge up the hill dislodged the enemy and drove him into the woods beyond. The Twenty-third regiment in this engagement lost within eight men of half the entire force engaged.

South Mountain is inscribed on all the standards of this gallant regiment, and surrounds with a sad halo of glory the names of the living and the graves of the dead.

At the time this battle was fought, Lieutenant-Colonel Hayes was not under pay, having been mustered out of the Twenty-third regiment to take command of the Seventy-ninth. His wound preventing him from becoming colonel of the Seventy-ninth, he was, on the 24th of October, 1862, appointed colonel of his own regiment, *vice* Scammon, promoted. It was while at home recovering from his wounds that his wealthy uncle, Sardis Birchard, urged Colonel Hayes, to whom he was devotedly attached, to leave the army, on the ground that he had done his share, promising to himself and family abundant support; but he would not listen to the suggestion, and before his wounds were healed went back.

AFTER JOHN MORGAN.

In July, 1863, while Colonel Hayes, under superior officers and in connection with other forces, was engaged in skirmishing, scouting, and harassing the enemy in Southwestern Virginia, an episode occurred which illustrates his force and decision of character and energy in action. Happening to ride to Fayetteville, a distance of fifteen miles from camp, to learn the news, he was startled by the telegraph operator with the intelligence that John Morgan was in Ohio, and was at that moment making for Gallipolis to recross the Ohio river. Here was a cry of help from home. His own State invaded, and his own friends and kindred in danger! His decision was instantaneous to go to the rescue. He sent over the wires to his adjutant, then at Charleston, the message: "Are there any steamboats at Charleston?" And being informed there were two, he instantly ordered them to be sent to Luke creek, the highest navigable point on the Kanawha. Colonel Hayes then galloped back to camp, and, after bringing all his powers of persuasion to bear, succeeded in getting permission to take two regiments and a section of artillery, and go in pursuit of Morgan. In thirty minutes after the orders were read to the soldiers, the column was on its march. The road was mountainous, the darkness dense, the route almost impassable, but the Kanawha river was reached at the break of day. The steamers were both in sight, and on these the eager men and the artillery

were embarked. By daylight the next morning this timely succor was at Gallipolis. That town was saved from a rebel raid, and the hot pursuit of John Morgan commenced. Warned by spies, he had turned his retreat in the direction of Pomeroy. Hayes re-embarked his force, and steamed up after him. Again disembarking his men, Hayes came in collision with the raider, who retreated after getting a taste of the quality of his adversary. But Morgan being beset on all sides was forced to surrender, and was made a prisoner with many of his men. Their next raiding was done from the inside to the outside of the walls of the Ohio penitentiary.

BATTLE OF CLOYD MOUNTAIN.

In the spring of 1864, General Crook moved with an army of about six thousand men to cut the main lines of communication between Richmond and the great Southwest. In this expedition Colonel Hayes commanded a brigade. General Crook, who is called "Gray Fox" by the warriors of Sitting Bull, is one of the shrewdest generals in the world in the way of tricking an enemy. On this expedition he marched up the Kanawha, and sent his music and one regiment toward the White Sulphur Springs, while his army went the other way. He charged his music to make noise enough for an army of ten thousand. The enemy, who were fortified on the road by which Crook's army was actually to pass, left Fort Breckenridge, and marched off fifty or sixty miles in the direction that Crook's band of music had gone. His army then hurried on, and marched right into the fort without firing a shot. To have taken it without stratagem would have cost much delay and many lives. In the meantime, the enemy hurried back, and, collecting an army under General Jenkins, fortified a position on the crest of Cloyd mountain. The base of the mountain was skirted with a stream of water two or three feet deep, and the approach to it was through a meadow five or six hundred yards wide. The enemy, who were strongly entrenched, opened upon Crook's force so soon as it reached the road that was within range of their artillery. It was evident the fortifications could not be carried without very determined fighting. A small force, after making a stout struggle, dropped back repulsed. Crook ordered Colonel Hayes' brigade to cross Cloyd's meadow, charge up the hill, and take the batteries. Hayes formed in the edge of the woods, and marched out with as perfect a line as ever was formed on parade. He moved on, and was soon under fire. The enemy opened heavily,

bringing down men along the whole line. A slow double-quick was ordered, the alignments being kept good until the edge of the woods was reached.

The fortifications could not be seen. There was only in sight a woody hill, and below it a stream to cross. Hayes, the brigade following, dashed through the creek to the foot of the last hill, which was so steep that the cannon could not be depressed sufficiently to damage them. After halting for a minute to take breath, the brigade charged, with a terrific yell, up the hill. The instant they passed the curve of the hill, as fearful a fire met them as men are ever called to face. The whole line seemed falling, officers and men going down by scores. But not a man stopped; all who were not hit went on. Hayes shouted to his men to push on to the enemy's works. They were carried by assault, many of the enemy being bayoneted beneath ingenious barricades that they deemed impregnable. The enemy were killed or driven out, and their cannon captured. For ten minutes it was a desperate, give-and-take, rough-and-tumble fight. The artillerymen attempted to reload when the assaulting party was not ten paces distant. The enemy retreated to a second ridge of the mountain, and made a determined effort to form a line, but the pursuit was too hot for the effort to be successful. Reinforcements arriving, they endeavored to make a third stand, but were easily driven off in full retreat. Thus ended the battle on the mountain, where the enemy's fort on its summit was carried by storm.

BATTLE OF WINCHESTER.

What is known as the first battle of Winchester, fought July 24, 1864, illustrates the pluck and endurance of Hayes under disaster. Here, as in the last battle, he commanded a brigade in a division of General Crook's army, of West Virginia. Two brigades, under Colonel Mulligan and Colonel Hayes, were ordered to go out and meet what was supposed to be a reconnaissance in force of the enemy. Hayes was ordered to join his right on Mulligan's left, and charge with him. They were to attack whatever there was in front. They could see only two skirmish lines in front. Hayes soon saw appearances of the enemy off on the left. Mulligan was informed there were signs of an enemy forward on the right. Indications were correct. The enemy were coming down upon them in overpowering force on both flanks and in front. Mulligan said his orders were to go forward, and he was going

forward. Hayes thought it was as well to go forward as to go any other way, as there could be but one result. Soon after charging, the enemy opened a deadly fire with artillery on the left flank, and infantry close in front. In five minutes Colonel Mulligan fell, pierced with five balls. The enemy had double the force in front, and overlapped the right flank a quarter of a mile. This was a better place to be out of than in. The lines melted away under the destructive fire. The deafening roar of artillery and musketry prevented all commands from being heard. The Hayes brigade fell slowly back to a hill inaccessible to cavalry. There it formed, and held back the yelling pursuers. At this point Lieutenant-Colonel Comly was wounded. The cavalry, whose failure to furnish information of the presence of the enemy had brought on the disaster, had disappeared from the scene. Colonel Hayes' brigade, which was exposed to the cavalry of the enemy, marched in a half square, fighting steadily in front and on both flanks. Once the brigade was concealed in a belt of woods until the enemy's cavalry came within pistol-shot, when the whole line suddenly rose and poured its fire into their ranks. After that, the pursuit ceased. From morning until midnight, Colonel Hayes, having lost his horse, was fighting and encouraging his men on foot, saving his command from annihilation, and displaying personal bravery of the highest order.

BATTLE OF BERRYVILLE.

This was one of the fiercest fights of the war. It was between a South Carolina and Mississippi division, under General Kershaw, and six regiments of the Kanawha division.

The occasion of this battle was this: Sheridan sent a body of cavalry to get in the rear of Early's army and cut off his supplies. To do this there were two roads up the pike—one through Winchester and one ten miles east of Winchester. Ten miles east of this place, through Berryville, was the enemy's headquarters, and Sheridan's object was to throw a force past them which would turn and strike them in the rear. In order to protect that body so that it could get back again—not be cut off on its line of retreat—Crook was ordered to take possession of the pike where the road from Winchester crosses it. The enemy, understanding the plan, moved to take possession of the same crossing. They first attacked with a small force, and were driven

back. Being reinforced, they drove back in turn the regiments in advance of the Union force. Colonel Hayes had a line a quarter of a mile long sheltered behind a terrace wall, the ground in front being level with the top of the wall. He sat on his horse watching the tumultuous advance of the enemy. The Union advance lines, being driven back in precipitate retreat, ran right over Hayes' brigade. The enemy followed close on their heels. Hayes let them get within two rods, when the whole brigade rose, and with a yell delivered a deadly volley at the enemy's legs. They then jumped upon the terrace and charged bayonet, driving the pursuing enemy back like a flock of sheep. He pushed them to their second or reserve lines, where they rallied at dark, and stubbornly maintained their ground.

Colonel Hayes' brigade went at double quick pace into action, their leader at the head of the column. The Twenty-third and Thirty-sixth Ohio, and the Fifth and Thirteenth Virginia, constituted at this time his brigade. From dark until almost ten o'clock the cannonading was continuous and the fighting terrible. Hayes, although never more exposed to danger, enjoyed the grand illumination and the thrilling excitement. Both divisions withdrew at the same hour, and the engagement was not the next day renewed. In this short action Colonel Hayes, by his courage and gallantry, added to his popularity as an officer among both officers and men.

CHAPTER V.

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FROM MAJOR TO MAJOR-GENERAL.

Opequan—Morass—First Over—Intrepidity—Official Reports—Assault on Fisher's Hill—Battle of Cedar Creek—Commands a Division—Promoted on Field—His Wounds—A Hundred Days under Fire.

BATTLE OF OPEQUAN.

Sheridan's battle of Winchester, or Opequan, was fought on the 19th of September, 1864. The battle had a bad beginning, but a glorious ending. There were five hours of staring disaster, and five of inspiring victory. Sheridan, in assuming the offensive, in September, was compelled to fight Early in the latter's chosen and particularly advantageous position, at the mouth of a narrow ravine near Winchester.

Concerning the earlier, or disastrous part of the engagement, it is sufficient for our present purpose to say that Sheridan moved all except one corps of his entire army down this gorge, deployed in the valley beyond, fought a bloody fight, and was driven back in confusion along his line of advance. At noon the enemy were rejoicing over the victory, and their friends in Winchester were jubilant. The reserves of Sheridan were sent for. General Crook, in person, brought the reserve corps into action at one o'clock. He made for the enemy's left flank, and pushed direct for a battery on their extreme left. The brigade of Colonel Hayes was in front, supported by Colonel White's old brigade. The order was to walk fast, keep silent until within one hundred yards of the guns, and then with a yell charge at full speed. These brigades had passed over a ridge and were just ready to begin the rush, when they came upon a deep morass, forty yards wide, with high banks. The enemy's fire now broke out with fury. Of course the line

stopped. To stop was death, to go on was probably the same; but the order was "Forward." Colonel Hayes was the first to plunge in; but his horse, after frantic struggling, mired down hopelessly in the middle of the boggy stream. He sprang off and succeeded in reaching the enemy's side. The next man over was Lieutenant Stearne, adjutant of the Thirty-sixth Ohio.

Shot and shell were falling in the water as they crossed, and were still falling. When Hayes regained the opposite bank he motioned rapidly, with his cap in hand, for his men to come over. Some held back, but many plunged into the bog, and struggled across to their leader. Some sank to their chins while holding their arms and ammunition over their heads. Before fifty men had gotten over, Hayes shouted: "Men, right up the bank," and there were the rebel batteries without any support. So the artillerymen were bayoneted in the act of loading their guns. They never dreamed that any Union force could cross the barrier before them. The batteries were captured, the enemy's position successfully flanked, and his whole force driven back five hundred yards to a second line of defense. Here, strongly posted, he delivered a fearfully destructive fire. The advancing line was brought to a standstill by the storm of grape and balls. Officers in advance were falling faster than others, but all were suffering. Things began to look dark. At the most critical moment, a large body of Sheridan's splendid cavalry, with swords drawn, wound slowly around the right, then at a trot, and finally, with shouts, at a gallop, charged right into the rebel lines. Hayes, now in command of the division, his division commander having fallen, pushed on, and the enemy in utter confusion fled. Crook's command carried the forts which covered the heights, and Hayes led the advance of that command. His division entered Winchester in pursuit of Early far in advance of all other troops. The spirit of Early's brave army was broken. Its loss in this battle was nearly seven thousand men.

The day following the battle of Opequan, Stanton telegraphed Sheridan: "Please accept for yourself and your gallant army the thanks of the President and the department for your great battle and brilliant victory of yesterday." An official report of Colonel Comly, commanding the Twenty-third Ohio, thus refers to Colonel Hayes, division commander: "He is everywhere exposing himself recklessly, as usual. He was the first one over the slough; he has been in advance of the line half the time since; his

adjutant-general has been severely wounded; men are dropping all around him; but he rides through it all as if he had a charmed life."

FISHER'S HILL.

The assault on South Mountain, or Fisher's Hill, occurred on the 22d of September, three days after the battle of Opequan. Sheridan was in hot pursuit of Early, and had followed him up the Shenandoah valley, overtaking him in position at Fisher's Hill. This is a ridge stretching across the valley where it is only about three miles wide. There is a creek running in front of the ridge. Early had fortified the ridge, and was in strong position. Sheridan was disposed to attack him in front, trusting to the demoralization from the recent defeat for an easy victory.

Crook insisted upon trying to turn their left flank. It was finally determined that it could be done. He was ordered to take Hayes' division, which led the advancing column. Crook and Hayes rode side by side at the head of the men. Pretty soon Crook and every officer, except Hayes, dismounted. The latter had a horse that could go wherever a man could. The command went up mountains, pushed their way through woods, and slid down ravines and gorges. When the enemy's left was supposed to be passed, they turned by the flank and bore down on his rear. Hayes galloped down a ravine, flanked by mountains, until he came right upon the enemy's guns. He rode back, ordered his division to charge with a yell, and the enemy, seized with a panic, fled. The charge was one of great impetuosity, each man trying to reach the entrenchments first. Every gun was captured. The brilliancy of this victory consisted in flanking the enemy from the side of a mountain, where Early said only a crow could go. But Colonel Hayes climbed there on horseback, at the head of his command.

CEDAR CREEK.

On the 19th of October, 1864, was fought the battle of Cedar creek, so memorable in the annals of war. It wiped out Early and his army. It gave the rebel general Gordon a seat in the United States Senate. It made Sheridan lieutenant-general. It made Colonel Hayes a brigadier-general and Governor of Ohio.

Sheridan, supposing Early's army too much broken by recent defeats to be dangerous, had gone on a visit to Washington, leaving his force in command of General Wright. It was posted near Middletown, in the rear of Cedar creek, and on both sides of the Winchester pike. Ten miles to the westward, beyond the creek, were the enemy's camps. Two things induced Early to risk one more battle—the absence of Sheridan, and his own reinforcement with twelve thousand men. Early left camp on the night of the 18th, and, passing round with his entire army between Massanutten mountain and the north fork of the Shenandoah, forded the Shenandoah at midnight, and noiselessly formed in line of battle in the rear and on the flank of the Union army. The plan of attack was a bold one, and seemed the inspiration of genius. The ford that gave the enemy a crossing, which should have been well guarded by cavalry, was stupidly left exposed. At daylight, while Thoburn's division were sleeping in their camps, Early's onslaught was made. Generals Gordon, Pegram, Kershaw, and Wharton charged with the rebel yell upon the left rear of Crook's entire command. The assault, under the circumstances, was inevitably successful, and the whole Union force was hurled back on the Nineteenth corps and the Kanawha division, commanded by Colonel Hayes. The enemy overlapped both flanks, and pushed forward with irresistible impetuosity. Crook's command had already lost seven pieces of artillery, and was in rapid retreat. The men meeting the enemy's charge, knowing that they were outflanked and the enemy had gotten in their rear, fought desperately, but not hopefully. The whole line was pushed slowly back. Colonel Hayes, on seeing his right breaking up, rode over and with vehemence gave orders to stand firm. But the line melted away, leaving him alone and exposed. A whole volley came aimed at him, filling the air and killing his horse with twenty balls. The horse going at great speed when it fell, threw its rider with great violence to the ground, dislocating an ankle and badly bruising him from the head down. He rose, and though fired at by the pursuing enemy at forty paces, escaped further wounds or capture. Colonel Hayes procured the horse of his orderly, and with great exertion gradually brought his men to a stand. Here they were alternately preparing their breakfasts, and when orders were given, instantaneously forming lines.

At ten o'clock the Union army received a reinforcement more powerful than was the enemy's of twelve thousand men. Sheridan had come, and with him

confidence had come. He almost instantaneously inspired a beaten army with his own electric energy and unconquerable hope. "Boys, we must go back to our camps," he said; and they went. The army was recreated into a compact, advancing, aggressive organization. "The whole line will advance," said Sheridan, and it advanced.

The enemy was charged a first and a second time, with infantry in the center and cavalry on the left and right. Custer's cavalry kept swooping down on the rebel flank, gathering them in as a sickle gathers grain. The gallant Colonel Hayes, too modest to seek promotion, though long discharging the duties of a major-general, as commander of a veteran division, fought in the center, forcing back the rebel line to Cedar creek. Here it broke in confusion, abandoning seventy pieces of artillery, arms, camps, and transportation. The pursuit ceased not until there was no longer an enemy to pursue. Early this time "stayed whipped." In the Shenandoah valley he ceased to take much interest in subsequent events.

It was on the field of this most complete victory of the war that Sheridan clasped the hand of Hayes and said: "Colonel, from this day forward you will be a brigadier-general." Ten days after the battle the commission came. The gallant Crook presented him with the insignia of his new rank, and he wore them. On March 13, 1865, he was promoted to the rank of brevet major-general "for gallant and distinguished services during the campaign of 1864 in West Virginia, and particularly at the battles of Fisher's Hill and Cedar Creek, Virginia."

General Hayes was wounded four times in battle. From one wound he has never entirely recovered. He was struck by a shell, just below the knee, while on horseback. He did not get off his horse at the time, but remained at the front throughout the battle. The wound now troubles him when ascending stairs. According to the excellent authority of Adjutant-General Hastings, Hayes was under fire sixty days in 1864. He must therefore have been exposed to death on one hundred days during the war.

A soldier who would thus risk life and limb to preserve the Union is perhaps entitled to have something to say concerning the government of it. He who is willing to die for the republic, will see that the republic suffers no harm.

The qualities of General Hayes as a soldier will be reviewed when we come to speak of his characteristics as a civil magistrate and as a man.

CHAPTER VI.

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IN CONGRESS.

Nomination—Refuses to Leave Army—Election Incident—Election—Course in Congress—Services on Library Committee—Votes on Various Questions—Submits Plan of Constitutional Amendments—Re-nominated by Acclamation—Re-elected by Increased Majority—Overwhelmed with Soldiers' Letters—Character as Congressman.

On the 6th of August, 1864, while General Hayes was absent from Ohio in the field, he was nominated by the Republican Convention of the Second Congressional District of Cincinnati for Congress. This was the result of the spontaneous action of his friends, and was brought about through their agency alone. The nomination was neither sought nor desired. The following extract from a letter written in camp, and bearing date July 30, 1864, makes known the then existing state of the case:

"As to the canvass that occurs, I care nothing at all about it; neither for the nomination nor for the election. It was merely easier to let the thing take its own course than to get up a letter declining to run, and then to explain it to everybody who might choose to bore me about it."

The first information of the nomination for Congress was conveyed to General Hayes through the letter of a friend written the day after the convention met, which information was received on Monday, August 22d, while preparing for battle, and on the same day he did a "good thing" in the way of taking prisoners while charging on the rebel lines. Two days after, with the enemy in front, he wrote this "private" letter on the subject of going home to canvass:

SHERIDAN'S ARMY,

CAMP OF

NEAR CHARLESTOWN, VA., *August 24,*

1864.

FRIEND S.:—Your favor of the 7th came to hand on Monday. It was the first I had heard of the doings of the Second District Convention. My thanks for your attention and assistance in the premises. I cared very little about being a candidate, but having consented to the use of my name I preferred to succeed. Your suggestion about getting a furlough to take the stump was certainly made without reflection. An officer fit for duty who at this crisis would abandon his post to electioneer for a seat in Congress ought to be scalped. You may feel perfectly sure I shall do no such thing. We are, and for two weeks past have been, in the immediate presence of a large rebel army. We have skirmishing and small affairs constantly. I am not posted in the policy deemed wise at headquarters, and can't guess as to the prospects of a general engagement. The condition and spirit of this army are good and improving. I suspect the enemy are sliding around us toward the Potomac. If they cross we shall pretty certainly have a meeting.

Sincerely,

R. B.

HAYES.

An incident of this canvass caused at the time it occurred intense feeling and indignation. The Democrats were having a large mass meeting in Cincinnati, with an immense procession. Among the banners or transparencies carried in the procession was one large, coarsely-executed affair, representing General Hayes dodging bullets while running from the enemy. As Hayes was at that very moment at the front fighting the enemy, this assault in the rear was not deemed by Union-loving men to fall within the rules of legitimate political warfare. Some soldiers of the "Old Kanawha" division happening to be at home recovering from wounds, had their indignation aroused to such an uncontrollable pitch that they insisted upon ignominiously trampling down the libelous transparency and its bearer. They had seen General Hayes bare his breast a hundred times to the bullet-storm of battle, and thought they were better judges of what

constituted courage than men who stayed at home occupying their time in passing resolutions that the war was a "failure." These old veteran comrades of Hayes were moving in compact line to charge on the procession, when a number of good citizens, in the interest of order and to prevent a riot, had the obnoxious banner removed. It is but just to say that Democrats of the better sort totally disapproved of this public indecency and excuseless outrage.

During the canvass for Congress, and while in the thickest of the bloody fight at Opequan, the soldiers under General Hayes kept crying out: "We will gain a victory to-day, Colonel, and elect you to Congress;" "One more charge, and you go to Congress!" These brave defenders of the Republic well knew the effect of a Union victory upon a pending election. When the soldiers' vote was taken on Tuesday, the 11th of October, not a man in the Twenty-third or Thirty-sixth Ohio regiment voted the Democratic ticket, and but fifty-three voted the Peace ticket in the entire division commanded by General Hayes. The result of his first contest for Congress, or rather candidacy, for there was no contest on his part, was his triumphant election by a majority of two thousand four hundred and fifty-five votes. His competitor was Joseph C. Butler, a banker, capitalist, and most respectable gentleman. Eight days after the election, the battle of Cedar Creek was fought, so that the news of two victories came to the faithful soldier at the same time. Conducting a congressional campaign on the front, rear, and flanks of the enemy, worked well. To Hayes the cause of the Union was such a sacred cause that he could not cease fighting the enemies of that Union so long as there remained an armed enemy to fight.

The war being ended, he took his seat on the first day of the first session of the Thirty-ninth Congress, which assembled December 4, 1865. Among the able or notable men in that Congress were Shellabarger, Bingham, Schenck, Spaulding, and Garfield, from Ohio, and Thad. Stevens, Conkling, Kerr, E. B. Washburne, A. H. Rice, Raymond, Niblack, John A. Griswold, Farnsworth, Orth, Cullom, Dawes, Blaine, Voorhees, and Randall, from other States. The first session was mainly occupied with the question of reconstruction. The central questions during the subsequent sessions were those growing out of the impeachment of President Johnson. General Hayes voted consistently with his party on these two classes of questions. He was the only new member, except one, who was given the chairmanship of a

committee, being placed at the head of the joint committee of the House on Library. The other members were Wm. D. Kelley, of Pennsylvania, and Calvin T. Hurlburt, of New York. As chairman of the committee on the Library of the United States, to employ the language of its accomplished librarian, he had "a clear discernment and quick apprehension of all things that needed to be done;" he "threw his influence in favor of the most liberal and permanent improvement."

During his term of service on the committee, the Library was expanded by the addition of two wings, increasing threefold its space. The "Force Historical Library" was added, to the acquisition of which General Hayes devoted months of zealous labor. It is now one of the most valuable parts of the great Library. He procured in the House the passage of the Senate bill to transfer the Library of the Smithsonian Institution to the Library of Congress. He introduced a joint resolution to extend the privileges of the Library to a larger class of public officers. He reported back and recommended the passage of a copyright bill for securing to the Library copies of all books, pamphlets, maps, etc., published in the United States.

In dealing with the subject of art while on this committee, Hayes showed artistic taste and judgment. He voted to reject works without merit, such as busts and portraits, and favored giving government commissions to real artists of conceded genius and established standing.

One of the first votes of General Hayes in Congress was cast in favor of this resolution:

"That the public debt created during the late rebellion was contracted upon the faith and honor of the nation; that it is sacred and inviolate, and must and ought to be paid, principal and interest; and that any attempt to repudiate or in any manner impair or scale the said debt should be universally discountenanced by the people, and promptly rejected by Congress if proposed."

Early in the session a resolution was introduced "that the committee on appropriations be instructed to bring in a bill increasing the compensation of members of Congress." Mr. Hayes voted for Mr. E. B. Washburne's motion to lay the resolution on the table. This is the whole of his record on the back pay and front pay questions. General Hayes during the session

voted for a resolution commending President Johnson for declining to accept presents, and condemning the practice as demoralizing in its tendencies and destructive of public confidence. This vote needs no explanation to enable it to be understood.

He also submitted the following resolution, which was read, considered, and agreed to:

"That the committee on military affairs be instructed to inquire into the expediency of providing by law for punishing by imprisonment or otherwise any person who, as agent or attorney, shall collect from the government money due to officers, soldiers, or sailors, or to their widows or orphans, for services in the army or navy, or for pensions or bounties, and who shall fraudulently convert the same to his own use; and to report by bill or otherwise."

This was timely action aimed to remedy what has since become a gross abuse and most serious evil. Its purpose was to check robbery and secure to soldiers and sailors their own.

In 1865, General Hayes submitted to leading Republicans in Congress, and subsequently to the Republican caucus, these resolutions, which became the basis of the action of the party:

"Resolved, That it is the sense of the caucus that the best if not the only mode of obtaining from the States lately in rebellion guarantees which will be irreversible is by amendments of the national constitution.

"Resolved, That such amendments to the national constitution as may be deemed necessary ought to be submitted to the house for its action at as early a day as possible, in order to propose them to the several states during the present sessions of their legislatures.

"Resolved, That an amendment, basing representation on voters instead of population, ought to be promptly acted upon, and the judiciary committee is requested to prepare resolutions for that purpose, and submit them to the house as soon as practicable."

When the ratification of the amendments taking their origin from these resolutions became a matter of supreme concern, Mr. Orth and Mr. Cullom,

now the Republican candidates for Governor in Indiana and Illinois, in conjunction with Mr. Hayes, drafted the following letter, which was signed by Republican members of Congress and forwarded to Governor Brownlow, of Tennessee:

"The undersigned members of Congress respectfully suggest, that, as Governor of the State of Tennessee, you call a special session of the legislature of your state, for the purpose of ratifying the constitutional amendment submitted by the present Congress to the several states for ratification, believing that upon such ratification this Congress will, during its present session, recognize the present state government of Tennessee and admit the state to representation in both houses of Congress."

The session of the legislature was called, the fourteenth amendment ratified, and the Tennessee members admitted to seats in Congress in July, 1866. This ratification was the one required to render the amendment valid.

In the fall of 1865, General Hayes delivered very earnest political speeches in about twenty counties in Ohio, in advocacy of the election of his military comrade, General Jacob D. Cox, as governor of the state. We find many of these speeches partially reported, and from one delivered in the West end, in Cincinnati, September 28, we take this extract:

"The Democratic plan of reorganization is this: The rebels, having laid down their arms and abandoned their attempt to break up the Union, are now entitled, as a matter of right, to be restored to all the rights, political and civil, which they enjoyed before the rebellion, precisely as if they had remained loyal. They are to vote, to hold office, to bear arms, immediately and unconditionally. There is to be no confiscation and no punishment, either for leaders or followers—no amendment or change of the constitution by way of guaranty against future rebellion—no indemnity for the past, and no security for the future. The Union party objects to this plan, because it wants, before rebels shall again be restored to power, an amendment to the constitution which shall remove all vestiges of slavery, and an amendment which shall equalize representation between the States having a large negro population and the States whose negro population is small."

In August, 1866, General Hayes received the endorsement of a re-nomination to Congress by acclamation. There was no opposing candidate.

He entered at once into the canvass. He delivered a speech almost every afternoon or evening until the day of the election. He frequently spoke outside of his own district, to aid his friends. The questions at issue were the reconstruction measures of Congress and of President Johnson, and the merits of the new constitutional amendments. In a public speech delivered in the Seventeenth Ward, in Cincinnati, September 7, 1866, he discussed at great length the questions of the day. In conclusion he said:

"The Union party is prepared to make great sacrifices in the future, as in the past, for the sake of peace and for the sake of union, but submission to what is wrong can never be the foundation of a real peace or a lasting union. They can have no other sure foundation but the principles of eternal justice. The Union men therefore say to the South: 'We ask nothing but what is right; we will submit to nothing that is wrong.' With undoubting confidence we submit the issue to the candid judgment of the patriotic people of the country, under the guidance of that Providence which has hitherto blessed and preserved the Nation."

The canvass was an active and exciting one; but General Hayes was re-elected over a competitor of so high standing as Theodore Cook, by a majority of two thousand five hundred and fifty-six. It is noticeable that while there was a Republican loss of seven hundred in the first district, compared with the vote for Congressmen in 1864, in the second district there was a gain of one hundred over the vote of two years before.

General Hayes took his seat in the Fortieth Congress, which convened March 11, 1867. He was re-appointed chairman of the library committee, with John D. Baldwin, of Massachusetts, and J. V. L. Pruyn, of New York, as associate members. General Hayes' three years in Congress were almost continuously employed in exacting labors in looking after the pensions and pay of soldiers, and in making provision for their families. Cincinnati had sent a great many soldiers into the war, and all who had wants sent their petitions to the only representative of Hamilton county who had served in the army. The soldiers of his old division, scattered over the country, sent their applications to him as a sympathizing friend. He had as many as seven hundred cases of this kind on hand at one time. His time was therefore necessarily consumed in running to the departments and in answering soldiers' correspondence. This service of love was of course gratuitously

and most cheerfully rendered; but it withdrew him more or less from his duties on the floor of Congress.

He was not consequently a speech-maker in Congress, but a business-doer. His innate good sense taught him that the public business was pushed forward, not by talking much, but by talking little. Like Schurz, who became the intellectual leader of the Senate, like Senator Edmunds and most strong men, he kept silent while new to the business of legislation. He was constantly consulted by the chief men in his party because he possessed that most essential quality in a public man—good judgment. He did no talking for himself, but an immense deal of working for others. Every soldier was his constituent, whether he lived in Maine or Nebraska. He placed self not first, but last.

He had no thought of fame or higher place, but silently served those that loved him, and to the maimed or needy tried to make the burdens and loads of life lighter. He doubtless thought that "he who lives a great truth is incomparably greater than he who but speaks it."

CHAPTER VII.

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ELECTED GOVERNOR OF OHIO.

Party of State Rights—Their Convention—Platform—Nomination of Thurman—Republican Convention and Platform—Nomination of Hayes—Platform—Opening Speech at Lebanon—Thurman at Waverly—National Interest aroused—Hayes Victorious—Inaugural—First Annual Message—Second Annual Message.

The questions at issue in the great political canvass of 1867, in Ohio, were closely allied to the one whether the National Government had a constitutional right to maintain its existence. It was many years after the war of the Rebellion before the Democratic party could be induced to admit that the war had settled anything. The question of State or National supremacy or sovereignty, settled a hundred times by argument and twice by arms, was still persistently argued by them as an open question. The State Supremacy or State Rights party fought the constitution at the time of its adoption, on the ground that it established a supreme central government, and were defeated. They opposed putting down the Whisky Rebellion, in Pennsylvania, under the leadership of Jefferson and Randolph, and were outvoted in the Cabinet by Washington, Hamilton, and Knox. They forced their disintegration doctrines into the Supreme Court, and were there vanquished by the resistless logic of Chief Justice Marshall. The same old doctrine assumed the form of nullification under the teachings of Calhoun in South Carolina, and was stamped out by Jackson. It appeared again in the great debate between Hayne and Webster, and was annihilated, so far as argument can put an end to any heresy. But it reappeared in 1861, with Davis, Stephens, Lee, and Breckenridge as its most powerful advocates and exponents.

The identical questions discussed in Washington's Cabinet, when there was a Whisky Insurrection to be put down, were discussed by Lincoln and Davis, by Meade and Lee, at Gettysburg, and by Grant and Pemberton, at Vicksburg. Is a State or is the Republic supreme, has been the central question dividing parties for a hundred years. The Democracy are still talking about "sovereign and independent states," as if there were more than one sovereign State on the continent—the Republic itself.

The Democratic State Convention, which met at Columbus, January 8, 1867, forgetting that "war legislates," continued harping on the old State Rights theme. The temporary chairman of the convention, Dr. J. M. Christian, varied the monotony a little when he elegantly said: "We have come here not only to celebrate an honored day, but to nominate men of noble hearts, determined to release the State from the thralldom of niggerism, and place it under the control of the Democratic party."

Mr. George H. Pendleton, the permanent chairman, delivered a rhetorical State rights speech, in which he said: "The Democratic party has always maintained the rights of the States as essential to the maintenance of the Union."

The platform or resolutions of the convention, reported by Mr. C. L. Vallandigham, contained a great deal of the same sort of thing, supplemented with this resolution: "That the Radical majority in the so-called Congress have proved themselves to be in favor of negro suffrage by forcing it upon the people of the District of Columbia, against their almost unanimous wish, solemnly expressed at the polls; by forcing it upon the people of all the territories, and by their various devices to coerce the people of the South to adopt it; that we are opposed to negro suffrage, believing it would be productive of evil to both whites and blacks, and tend to produce a disastrous conflict of races."

The convention nominated, by acclamation, Hon. Allen G. Thurman for Governor. Judge Thurman had served one term in Congress and five years upon the Supreme Bench of the State, and was a gentleman of high personal character, and a lawyer of extended reputation and commanding abilities.

The Republican State Convention assembled at Columbus, June 19, 1867, to nominate candidates for governor, lieutenant-governor, and other State

officers. The three candidates most talked of for governor were Hon. Samuel Galloway, Adjutant-General B. R. Cowen, and General Hayes, then representing the Second District in Congress. Mr. Galloway had served in Congress, had long been one of the most active members of the Republican party, and was popular because of his abilities as a stump speaker. General Cowen had devoted much time to the organization of the State in his own interest as a candidate, and was possessed of considerable managing ability. Public opinion, however, in Northern, Southern, and Western Ohio had concentrated upon General R. B. Hayes before the convention met. The times seemed to demand a military man for leader, and, in the language of the Cincinnati *Commercial*, there were "no better military records than his, if they are to be rated by brave, faithful, steadfast service." General J. D. Cox was not a candidate for re-nomination. General Hayes was the idol of the soldiers. As early as 1865, his old division, while he himself was absent on a distant field of duty, held a meeting between skirmishes with the enemy, and passed resolutions nominating him for Governor of Ohio for the canvass of that year. The soldiers went so far as to send circulars to the different counties of the State, embodying their resolutions. When General Hayes first heard of these proceedings he gave immediate and peremptory instructions to have them stopped. He forbade the use of his name in such connection, on pain of his permanent displeasure.

The Convention of June, 1867, was almost imprudently courageous in the enunciation of sound, but then unpopular, principles. It placed the Republican party "on the broad platform of impartial manhood suffrage as embodied in the proposed amendment to the State Constitution," and appealed to the "intelligence, justice, and patriotism of the people of Ohio to approve it at the ballot-box." The platform emphasized the point—always well taken—that the United States is a Nation.

On this platform General Hayes was nominated for Governor on the first ballot, receiving two hundred and eighty-six votes to two hundred and eight cast for Mr. Galloway. The nomination was accepted for him by a friend in his absence. The honor which came to him unsought was borne with the modesty of a soldier.

On the evening of the nominations, Mr. Fred. Hassaurek delivered in Columbus a very able speech in favor of manhood equality, in the course of

which he said: "The men who now lead and officer the Democratic party are the most dangerous enemies of the country, of its peace, prosperity, and welfare. Let both sections of the country unite to give a final, crushing blow to the influence of Democratic leaders. Let the serpent be fully expelled from Paradise, and our country will soon be a Garden of Eden again."

General Hayes, having resigned his seat in Congress, opened the campaign of '67 in a comprehensive speech, delivered at [Lebanon](#), August 5, aggressive in tone and full of bristling points. It was equivalent to a charge along the whole of the enemies' line—a species of tactics which he had learned the advantage of in the valley of the Shenandoah. We refer the reader to this clear, resolute, vigorous speech, reprinted in full in the [Appendix](#), for the grounds upon which the Republican leader demanded a popular verdict against his political adversaries. The speech showed that he deserved the eulogies of the press which followed his nomination, among which were those of Colonel Donn Piatt—a judge of ability, to say the least—who had written: "The people will find his utterances full of sound thought, and his deportment modest, dignified, and unpretending.... Possessed of a high order of talent, enriched by stores of information, General Hayes is one of the few men capable of accomplishing much without any egotistical assertion of self." General James M. Comly had said: "More than four years' service in the same command gave the writer ample opportunity to know that no braver or more dashing and enterprising commander gave his services to the Republic than General Hayes. He was the idol of his command. No man of his soldiery ever doubted when he led. In principle he is as radical as we could desire. His vote has been given in Congress on every square issue for the right. He is no wabblers or time-server. He no more dodges votes than he did bullets."

Judge Thurman—now Senator A. G. Thurman—opened the campaign on the Democratic side in an elaborate speech, delivered at Waverly, August 5th, and reported in the *Cincinnati Commercial* of August 6th. He vigorously defended the course and action of the Peace Democracy in Ohio, and assailed Mr. Lincoln and his administration with an extravagance of language that weakened the force of many of his arguments during the campaign. He intemperately asserted that there was "scarcely a provision of the Constitution" that had not been "shamelessly and needlessly trampled under foot" by "these enemies of our Government," including as "enemies"

the Congress and Cabinet that supported and maintained the war for the Union. These and other unfortunate allusions, such as that to the "poison of Abolitionism," enabled General Hayes to effectively retort at Sidney, and at other points. So much of the [Sidney](#) speech as refers to Judge Thurman's Waverly speech is reproduced in our [Appendix](#).

The contest waxed warm between these able antagonists, and the number of speeches that each delivered was only limited by his powers of physical endurance. Meetings were held night and day, from the beginning until the close of the canvass. Much more than the governorship was involved. A United States Senator, for six years, was to be chosen by the incoming Legislature. But, above all, the vital principle of manhood suffrage, and the righteousness or unrighteousness of the war to preserve the Union, were issues to be decided.

As the contest grew in magnitude it aroused a national interest. Morton, Julian, Orth, and Governor Baker came from Indiana to aid Hayes in the struggle; Shelby M. Cullom, and John A. Logan from Illinois; Schurz from Missouri; Governor Harriman from New Hampshire; Chandler from Michigan; and Gleni W. Schofield from Pennsylvania. The home talent—and no State ever had more—was in the field in force. There were men of conceded abilities, such as Aaron F. Perry, Shellabarger, Hassaurek, W. H. West, Judge Storer, and John A. Bingham, and men of reputation like Governors Cox and Dennison, Galloway, John C. Lee, and Senators Wade and Sherman, who manifested the most earnest interest in the canvass.

Judge Thurman was not so ably seconded, although Vallandigham, Pendleton, Ranney, H. J. Jewett, Durbin Ward, George W. McCook, Frank H. Hurd, and other well-known leaders contributed aid to the extent of their ability.

In this canvass General Hayes gave proofs of that boldness and moral audacity for which he is remarkable. In every community in which he went he was besought by committee-men, soldiers, and others, to say nothing about the suffrage amendment. Negro suffrage, at that time, was exceedingly unpopular. He rejected, with some feeling, these timid counsels. He maintained, everywhere, the inherent justice of equality at the polls and before the law, and insisted that the man who was willing to give

up his life for the Union should have a voice in its government. By this bold course he made votes for the amendment, but lost votes for himself. The result of the campaign had this peculiar feature, that while General Hayes and the Republican State ticket were elected, the main issue of the contest was defeated by fifty thousand majority. The prejudices of a hundred years could not be removed in a hundred days. Had Judge Thurman and his aids concentrated the fire of their batteries upon the suffrage redoubt—the weak point in their adversaries' lines—they would probably have gained a sweeping victory. As it was, Thurman carried the Legislature, and secured a seat in the United States Senate. General Hayes was elected by the small majority of two thousand nine hundred and eighty-three votes, running somewhat ahead of his ticket.

He was inaugurated as Governor of Ohio, in the rotunda of the Capitol, January 13, 1868. On that occasion, in the presence of the Legislature and judicial departments of the State Government, and a large concourse of citizens, he delivered the following inaugural address:

Gentlemen of the Senate and House of Representatives, and Fellow-Citizens:

The duty devolved on the governor by the constitution of communicating by message to the General Assembly the condition of the State, and of recommending such measures as he deems expedient, has been performed at the present session by my predecessor, Governor Cox, in a manner so thorough and comprehensive that I do not feel called upon to enter upon a discussion of questions touching the administration of the State government.

I can think of no better reward for the faithful performance of the duties of the office which I am about to assume than that which, I believe, my immediate predecessor is entitled to enjoy,—the knowledge that in the opinion of his fellow-citizens of all parties he has, by his culture, his ability, and his integrity, honored the office of Governor of Ohio, and that he now leaves it with a conscience satisfied with the discharge of duty.

I congratulate the members of the General Assembly that many of the questions which have hitherto largely engaged the attention of the law-making power, and divided the people of the State, have, in the progress of

events, either been settled, or, in the general judgment of the people, been transferred for investigation and decision to the National government. The State debt, taxation, the currency, and internal improvements, for many years furnished the prominent topics of discussion and controversy in Ohio. In the year 1845 the State debt reached its highest point. It amounted to \$20,018,515.67, and in the same year the total taxable property of the State was \$136,142,666. With a disordered currency, with business prostrated, with labor often insufficiently rewarded, the burden of this debt was severely felt, and questions in regard to it naturally entered into the partisan struggles of the time. Now the State debt is \$11,031,941.56; the taxable property of the State amounts to \$1,138,754,779; and there is no substantial difference of opinion among the people as to the proper mode of dealing with this subject.

State taxation was formerly the occasion of violent party contests. Now men of all parties concur in the opinion that, as a general rule, every citizen ought to be taxed in proportion to the actual value of his property, without regard to the form in which he prefers to invest it; and differences as to the measures by which the principle is practically applied rarely enter into political struggles in Ohio.

Party conflicts and debates as to State laws in relation to banking and the currency constitute a large part of the political history of the State. But the events of the last few years have convinced those who are in favor of a paper currency that in the present condition of the country it can best be furnished by the National Government, either by means of National banks or in the form of legal tender treasury notes. State legislatures are therefore relieved from the consideration of this difficult and perplexing subject.

Internal improvements made by State authority, so essential to growth and prosperity in the early history of the State, no longer require much consideration by the General Assembly. Works of a magnitude too great to be undertaken by individual enterprise will hereafter be, for the most part, accomplished by the government of the Nation.

The part which patriotism required Ohio to take in the war to suppress rebellion demanded important and frequent acts of legislation. Fortunately the transactions of the State growing out of the war have been, or probably

can be, closed under existing laws, with very little, if any, additional legislation.

If not mistaken as to the result of this brief reference to a few of the principal subjects of the legislation of the past, the present General Assembly has probably a better opportunity than any of its predecessors to avoid the evil of too much legislation. Excessive legislation has become a great evil, and I submit to the judgment of the General Assembly the wisdom of avoiding it.

One important question of principle as old as our State government still remains unsettled. All are familiar with the conflicts to which the policy of making distinctions between citizens in civil and political rights has given rise in Ohio. The first effort of those who opposed this policy was to secure to all citizens equality of civil rights. The result of the struggle that ensued is thus given by an eminent and honored citizen of our State: "The laws which created disabilities on the part of negroes in respect of civil rights were repealed in the year 1849, after an obstinate contest, quite memorable in the history of the State. Their repeal was looked upon with great disfavor by a large portion of the people as a dangerous innovation upon a just and well-settled policy, and a vote in that direction consigned many members of the legislature to the repose of private life. But I am not aware that any evil results justified these apprehensions, or that any effort was ever made to impose the disabilities. On the contrary, the new policy, if I may call it so, has been found so consistent with justice to the negroes and the interests of the whites that no one—certainly no party—in Ohio, would be willing to abandon it."

An effort to secure to all citizens equal political rights was made in the State constitutional convention of 1851. Only thirteen out of one hundred and eight members in that body voted in its favor; and it is probable that less than one-tenth of the voters of the State would then have voted to strike the word "white" out of the constitution.

The last General Assembly submitted to the people a proposition to amend the State constitution so as to abolish distinctions in political rights based upon color. The proposition contained several clauses not pertinent to its main purpose, under which, if adopted, it was believed by many that the

number of white citizens who would be disfranchised would be much greater than the number of colored citizens who would be allowed the right of suffrage. Notwithstanding the proposition was thus hampered, it received 216,987 votes, or nearly forty-five per cent of all the votes cast in the State. This result shows great progress in public sentiment since the adoption of the constitution of 1851, and inspires the friends of equal political rights with a confident hope that in 1871, when the opportunity is given to the people, by the provisions of the constitution, to call a constitutional convention, the organic law of the State will be so amended as to secure in Ohio to all the governed an equal voice in the government.

But whatever reasonable doubts may be entertained as to the probable action of the people of Ohio on the question of an extension of the right of suffrage when a new State constitution shall be formed, I submit with confidence that nothing has occurred which warrants the opinion that the ratification by the last General Assembly of the fourteenth amendment to the constitution of the United States was not in accordance with the deliberate and settled convictions of the people. That amendment was, after the amplest discussion upon an issue distinctly presented, sanctioned by a large majority of the people. If any fact exists which justifies the belief that they now wish that the resolution should be repealed, by which the assent of Ohio was given to that important amendment, it has not been brought to the attention of the public. Omitting all reference to other valuable provisions, it may be safely said that the section which secures among all the States of the Union equal representation in the House of Representatives and in the electoral colleges in proportion to the voting population, is deemed of vital importance by the people of Ohio. Without now raising the grave question as to the right of a State to withdraw its assent, which has been constitutionally given to a proposed amendment of the Federal constitution, I respectfully suggest that the attempt which is now making to withdraw the assent of Ohio to the fourteenth amendment to the Federal constitution be postponed until the people shall again have an opportunity to give expression to their will. In my judgment, Ohio will never consent that the whites of the South, a large majority of whom were lately in rebellion, shall exercise in the government of the Nation as much political power, man for man, as the same number of white citizens of Ohio, and be allowed in

addition thereto thirty members of Congress and of the electoral colleges, for colored people deprived of every political privilege.

In conclusion, I am happy to be able to adopt as my own the sentiments so fitly expressed by the speaker of the House of Representatives of the present General Assembly. I sincerely hope that the legislation of the General Assembly and the administration of the State government in all its branches may be characterized by economy, wisdom, and prudence; that statesmanship, patriotism, and philanthropy may be manifest in every act, and that all may be done under the guidance of that Providence which has hitherto so signally preserved and blessed our State and Nation.

Certain principles are laid down in this address. One is that every citizen ought to be taxed in proportion to the actual value of his property. Another is that too much legislation is an evil to be avoided. A third is that equality of civil rights justly belongs to all citizens, notwithstanding the vote at the recent election to the contrary; and a fourth, that representation according to voting population is a sound principle, and the people of Ohio must stand by the Fourteenth Amendment to the National Constitution. The Democratic legislature were endeavoring to withdraw Ohio's previous ratification. This admirable address needs no further comment.

Governor Hayes took an active part in the State canvass of 1868, being assisted by Hon. James G. Blaine, who spoke with marked effect in Columbus, October 9th.

At the session of the legislature in November, 1868, the governor delivered his first annual message.

Fellow-citizens of the General Assembly:

Upon your assembling to enter again upon the duty of legislating for the welfare of the people of Ohio, the Governor is required by the constitution to communicate to you the condition of the State, and to recommend such measures as he shall deem expedient. The reports of the executive officers of the State, and of the heads of the State institutions, are required by law to be made to the Governor on or before the 20th day of November of each year. Since that date, sufficient time has not elapsed for the publication of the reports, and I shall therefore not be able, at the opening of your present

session, to lay before you a detailed exposition of the affairs of the various departments of the State government. It will be my purpose in this communication to invite your attention to a few brief suggestions in relation to some measures which are deemed important, and which may be considered and acted upon, if you think it advisable, in advance of the publication of the official reports.

The financial affairs of the State government are in a satisfactory condition. The balance in the treasury on the 15th of November, 1867, was \$677,990.79; the receipts during the last fiscal year were \$4,347,484.82; making the total amount of funds in the treasury, during the year, \$5,025,475.61.

The disbursements during the year have been \$4,455,354.86; which sum has been paid out of the treasury from the several funds, as follows, viz:

General revenue fund	\$1,518,210.35
Canal fund	14,939.39
National road fund	18,829.36
Sinking fund	1,472,226.33
Common school fund	1,426,868.80
Bank redemption fund	16.95
Soldiers' claims fund	3,781.68
Soldiers' allotment fund	482.00
Balance in treasury, November 15, 1868	<u>570,120.75</u>
Total	5,025,475.61

The amount of the public funded debt,
November 15, 1867, was \$11,031,941.56

During the year, the redemptions were—

On the loan of 1860	\$14,650.67	
Of foreign union loan of 1868	191,166.00	
Of domestic loan of 1868	136,088.13	
Of loan of 1870	<u>157,361.33</u>	
		<u>499,266.13</u>

Debt outstanding, November 15, 1868

\$10,532,675.43

Small temporary appropriations are required as promptly as practicable for each of the following objects, the existing appropriations having been exhausted, viz: Expenses of the Presidential election; expenses of the General Assembly, trustees of benevolent institutions, care of state-house, gas for state-house, expenses of legislative committees, binding for the State, and the new idiotic asylum.

In pursuance of an act passed March 18, 1867, a board of commissioners, consisting of Aaron F. Perry, of Hamilton county, Charles E. Glidden, of Mahoning county, and James H. Godman, auditor of State, was appointed by my predecessor, Governor Cox, whose duty it was "to revise all the laws of this State relating to the assessment and taxation of property, the collection, safe-keeping, and disbursement of the revenues, and all the laws constituting the financial system of the State," and to report their proceedings to the next session of the General Assembly. The report of the commission was laid before you at your last session. It disclosed many imperfections and inconsistencies in the existing legislation touching the finances and the urgent necessity for an elaborate revision of that legislation. Their report was accompanied by eight separate bills, consolidating the present laws, removing contradictions, and supplying defects, but introducing no radical change in the general principles of our financial system. These bills have already been somewhat considered by both branches of the General Assembly, but no definite action upon them has yet been had. I respectfully recommend an early consideration of the bills, and their adoption, with such amendments as, in your judgment, the public interests may require.

The destruction of the central lunatic asylum by fire, during the night of the 18th inst., causing the death, by suffocation, of six of the patients, and incalculable distress and suffering to the remainder, will require investigation and prompt action on your part. In rebuilding the asylum, the erection of a fire-proof building will occur to you as alike the suggestion of prudence and humanity.

This calamity also suggests the propriety of examining the condition of the other institutions of the State, with a view to providing them with every proper means of security against a similar disaster.

The interests of common school education, in my opinion, will be promoted by the early adoption of county superintendency, as provided in a bill on that subject now pending in one branch of the General Assembly. I therefore earnestly recommend the consideration and passage of the bill.

The commissioner of common schools is required, in the discharge of his duties, to pay out each year, for traveling expenses, about \$700. The propriety of refunding to him, out of the State treasury, his traveling expenses, will probably not be called in question.

During the last summer, a cattle disease, commonly known as the Spanish or Texas cattle fever, occasioned much alarm in the grazing counties of the State, and in a few localities caused serious loss. On the recommendation of the State board of agriculture, in the absence of effective legislation, it was deemed proper to appoint commissioners to take such measures as the law authorized to prevent the spread of the disease. A proclamation was issued to prevent, as far as practicable, the introduction, movement, or transportation of diseased cattle within the limits of the State. The railroad companies and the owners of stock promptly complied with the requirements referred to, and the injury sustained by the cattle interest was happily not extensive. It is believed that, upon investigation, it will be found necessary to confer, by law, upon a board of commissioners appointed for that purpose, or upon the executive committee of the State board of agriculture, power to "stamp out" the disease wherever it appears, by destroying all infected cattle, and to prohibit or regulate the transportation or movement of stock within the State during the prevalence of the disease. To the end that proper investigation may be had, I respectfully recommend that authority be given to appoint five commissioners to attend a meeting of commissioners of other States, to be held for the consideration of this subject, at Springfield, Illinois, on the 1st of December next—said commissioners to report the results of their investigation in time for action by the present General Assembly.

I submit to your consideration the importance of providing for a thorough and comprehensive geological survey of the State. Many years ago a partial survey was prosecuted under many difficulties and embarrassments, which was fruitful of valuable results. It is, beyond doubt, that such a work as it is now practicable to carry out will, by making known the mining, manufacturing, and agricultural resources of the State, lead to their development to an extent which will, within a few years, amply reimburse the State for its cost.

The annual report of pardons granted and the commutations of the sentences of convicts required by law; a statement in detail of the expenditure of the governor's contingent fund; the semi-annual report of the commissioners of the sinking fund, for May; copies of proclamations issued during the last year; and an acknowledgment of the presentation to the State of several of the portraits of former governors of Ohio, are transmitted herewith.

The most important subject of legislation which, in my judgment, requires the attention of the General Assembly at its present session, relates to the prevention of frauds upon the elective franchise. Intelligent men of all parties are persuaded that at the recent important State and National elections great abuses of the right of suffrage were practiced. I am not prepared to admit that the reports commonly circulated and believed in regard to such abuses, would, so far as the elections in Ohio are concerned, be fully sustained by a thorough investigation of the facts. But it is not doubted that even at the elections in our own State frauds were perpetrated to such an extent that all good citizens earnestly desire that effective measures may be adopted by you to prevent their repetition. No elaborate attempt to portray the consequences of this evil is required. If it is allowed to increase, the confidence of the people in the purity of elections will be lost, and the exercise of the right of suffrage will be neglected. To corrupt the ballot box is to destroy our free institutions. Let all good citizens, therefore, unite in enacting and enforcing laws which will secure honest elections.

I submit to your judgment the propriety of such amendments to the election laws as will provide, first, for the representation of minorities in the boards of the judges and clerks of the elections; and second, for the registration of

all the lawful voters in each township, ward, and election precinct, prior to the election.

That the boards of elections ought to be so constituted that minorities as well as majorities will have a fair representation in them, is so plainly just that in some parts of the State, even in times of the highest political excitement, such representation has been obtained, in the absence of law, by arrangement between the committees of the rival political parties. It is not probable that any mode of selecting judges and clerks of elections can be adopted which will, in every case, accomplish this object. But in all cases where the strength of the minority is half, or nearly half as great as that of the majority, the desired representation of the minority may be insured with sufficient certainty by several different plans. For example, it may be provided that at the election of the three judges who are to decide all questions at the polls, each elector may be allowed to vote for two candidates only, and that the three candidates having the highest number of votes shall be declared elected, and in like manner that, at the election of the two clerks of elections, each elector may vote for one candidate only, and that the two candidates receiving the highest number of votes shall be declared elected.

I do not lay much stress on the particular plan here suggested, but your attention is invited to the importance of a fair representation of the minority in all boards of elections, not doubting that your wisdom will be able to devise a suitable measure to accomplish it.

All parts of the State of Ohio are now so closely connected with each other, and with other States, by lines of railway, that great and constantly increasing facilities are afforded for the perpetration of the class of frauds on the elective franchise, commonly known as "colonizing." In the cities, men called "repeaters," it is said, are paid wages according to the number of unlawful votes they succeed in casting at the same election.

The increase of population adds to the difficulty of detecting and preventing fraudulent voting, in whatever mode it may be practiced. It is manifestly impossible, amid the hurry and excitement of an election, that the legal right to vote, of every person who may offer his ballot, should be fully and fairly investigated and decided. The experience of many of the older States

has proved that this can best be done at some period prior to the election, so as to give to every legal voter, in an election precinct, an opportunity to challenge the claim of any person whose right is deemed questionable. Laws to accomplish this have been in force in several other States for many years, and have been carried out successfully and with the general approval of the people. Believing that an act providing for the registration of all legal voters is the most effective remedy yet devised for the prevention of frauds on the sacred right of suffrage, and that a registry law can be so framed that it will deprive no citizen, either native born or naturalized, of his just rights, I respectfully recommend to your earnest consideration the propriety of enacting such a law.

The comprehensive geological survey of the State recommended in this message was promptly brought about through the able co-operation of the Hon. Alfred E. Lee, representing Delaware county in the House of Representatives, who drew up and reported a bill on February 9, 1869, making provision for the important object in view. Through the intelligent activity of Governor Hayes and Representative Lee, the bill became a law, April 2, 1869. The thorough scientific survey of the State, since completed under the supervision of Professors Newbury, Andrews, and Orton, has been of immeasurable value in the way of developing the mineral resources of Ohio.

Governor Hayes in this message demands laws to secure honest elections, because "to corrupt the ballot-box is to destroy our free institutions." He recommends laws securing the representation of minorities on election boards, and advocates stringent registry laws.

In the second annual message, delivered at the close of his first term, which we give below, he recommends increased powers to the State board of charities; better provision for the chronic insane; the establishment of a State agricultural college; the founding of a home for soldiers' orphans, and restoring the right of suffrage to soldiers in the national asylum, to college students, and others who had been disfranchised under Democratic legislation. He urged also the ratification by Ohio of the Fifteenth Amendment. We shall speak of the gratifying result of these recommendations in our next chapter.

Fellow-Citizens of the General Assembly:

In obedience to the constitution, I proceed to lay before you the condition of the affairs of the State government, and to recommend such measures as seem to me expedient.

The balance in the State treasury on the 15th of November, 1868 was \$570,120.75; the receipts during the last fiscal year were \$4,781,614.49; making the total amount of available funds in the treasury during the year ending November 15, 1869, \$5,351,735.24.

The disbursements during the year have been \$4,913,675.10, which sum has been paid out of the treasury from the several funds as follows, viz:

General revenue fund	\$1,577,221.18
Canal fund	41,783.74
National road fund	22,069.69
Sinking fund	1,775,938.52
Common school fund	1,496,633.80
Bank redemption fund	28.17
Total	<u>\$4,913,675.10</u>

Leaving a balance in the treasury, November 15, 1869, of \$438,060.14.

The estimates of the auditor of State of receipts and expenditures for the current year are as follows:

Estimated receipts from all sources, including balances	\$4,791,144.50
Estimated disbursements for all purposes	<u>4,477,899.60</u>
Leaving an estimated balance in the treasury November 15, 1870, of	\$313,244.90

The amount of the public funded debt of the State, November 15, 1868, was \$10,532,675.43. During the last year the fund commissioners have redeemed of the various loans \$516,093.57, and have invested in loans not

yet due \$160,643.59, leaving the total debt yet to be provided for \$9,855,938.27.

The whole amount of taxes, including delinquencies, collectible under State laws during the year 1869 was \$21,006,332.44. The auditor of State reports the total amount of taxes, including delinquencies, collectible during the current year at \$22,810,675.84, an increase of the taxes of 1870 over 1869 of \$1,804,353.40.

In 1869 there was collected for the sinking fund, to be applied to the payment of the principal and interest of the State debt, the sum of \$1,370,101.12. In the present year there will be collected for the same purpose the sum of \$808,826.61, or \$561,275.51 less than was collected last year.

A large proportion of the taxes collected from the people are for county, city, and other local purposes, and do not pass through the State treasury, but are disbursed within the counties where they are collected. During the current year the taxes, exclusive of delinquencies, to be collected for all State purposes except for the common school fund, amount to \$2,542,025.27, while \$18,187,400.92 are to be collected for local purposes.

The foregoing statements from the report of the auditor of State show that the taxation of this year for State purposes other than for payments on the principal and interest of the State debt exceeds the taxation of last year for the same purposes by the sum of \$609,601.50, and that taxation for local purposes this year exceeds that of last year for the same purposes by the sum of \$1,695,725.38. The local taxes this year are about 44 per cent. greater than they were three years ago, and are 10 per cent. greater than they were last year.

The increase of taxation for State purposes is in part due to the amount collected for the asylum building fund, which exceeds the amount required last year for building purposes by almost \$300,000. Making due allowance for this, the important fact remains that both State and local taxes have largely increased.

A remedy for this evil can only be had through the General Assembly. The most important measures to prevent this rapid increase of taxation, which

have heretofore been recommended, are a revision of the financial system of the State in accordance with bills prepared by a board of commissioners appointed for that purpose, in pursuance of an act passed March 18, 1867; short sessions of the General Assembly; adequate fixed salaries for all State, county, and municipal officers, without perquisites; and definite and effectual limitations upon the power of county commissioners, city councils, and other local authorities to levy taxes and contract debts.

The constitution makes it the duty of the legislature to restrict the powers of taxation, borrowing money, and the like, so as to prevent their abuse. I respectfully suggest that the present laws conferring these powers on local authorities require extensive modification, in order to comply with this constitutional provision. Two modes of limiting these powers have the sanction of experience. All large expenditures should meet the approval of those who are to bear their burden. Let all extraordinary expenditures therefore be submitted to a vote of the people, and no tax be levied unless approved by a majority of all the voters of the locality to be affected by the tax, at a special election, the number of voters to be ascertained by reference to the votes cast at the State election next preceding such special election. Another mode is to limit the rate of taxation which may be levied and the amount of debt which may be incurred. It has been said that with such restrictions upon the powers of local authorities the legislature will be importuned and its time wasted in hearing applications for special legislation. The ready answer to all such applications by local authorities will be to refer them to their own citizens for a decision of the question. The facility with which affirmative votes can be obtained under the pressure of temporary excitement upon propositions authorizing indebtedness may require further restrictions upon the power to borrow money. It is therefore suggested, for your consideration, to limit the amount of debt for a single purpose, and the total amount for all purposes which any local authority may contract to a certain percentage of the taxable property of such locality.

The evils here considered are not new. Fourteen years ago Governor Medill, in his annual message, used the following language, which is as applicable to county and municipal affairs now as it was when it was written: "The irresponsible and extravagant system of administration which prevails in some of our counties and cities furnishes the principal cause for the exactions which are so generally complained of. There public contracts are

given to favorites, which occasion the most lavish expenditures. There also we find officers with incomes which shock all correct ideas of public compensation. These things have their effect upon the general tone of public morals. County reform is a duty enjoined by every consideration of public virtue."

The whole of this important subject is commended to your candid consideration.

The management of the affairs of the penitentiary, during the past year, has been good; discipline has been maintained; under kind and judicious treatment the prisoners have been industrious and orderly, and the pecuniary results are satisfactory. The number of prisoners, on the 31st of October, 1869, was 974, and the number of convicts admitted during the year ending on that day was 347. This is a decrease compared with the preceding year, of 27 in the number of convicts admitted, and of 67 in the number confined in the penitentiary.

The earnings during the year ending October 31, were	\$175,663.06
The expenses were	143,635.83
Excess of earnings over expenditures	<u>\$32,027.23</u>
Last year the earnings were	\$171,037.45
The expenses were	<u>141,794.95</u>
And the excess of earnings over expenses were	\$29,242.50

A large proportion of the convicts, when admitted, are quite young. The age of about one-third does not exceed twenty-one years. More than two-thirds of the inmates of the prison are now under thirty years of age. It will occur to any one who considers these facts that, under our system of prison discipline, too little effort has heretofore been made to reform these young men. A high authority has said, "No human being is so debased and wicked that he can not be reclaimed." It is believed that, under a wise system, the young, at least, can be reformed and prepared for useful and worthy citizenship. The present system has two capital defects—the mingling in intimate association of the young with the hardened criminals, and the failure to educate the convicts in habits of thrift and self-control. The defects are in the system. The convict, when he leaves the penitentiary, is exposed to greater temptations than ever before, and the result of his prison

life is that he has less power to resist evil influences, and, too often, less disposition to resist them. I do not enlarge upon the objections to the present system; it is not claimed to be reformatory. In a recent report, the directors said: "The great mass of convicts still leave the penitentiary apparently as hardened and as dangerous to the State as they were when they were sentenced." The vital question is, how to remove this reproach on our penal legislation. In considering it, I commend to you the remarks of the board of State charities on the Irish convict system. The distinguishing merit of that system is, that "it enlists the co-operation of the prisoner in his own amendment, without withholding from him the punishment due to his crime." If the adoption of that system, with such modifications as our condition requires, is deemed an experiment which it is inexpedient for the State to try until its advantages are better understood, I submit that the least that ought now to be attempted is to provide for a classification of convicts, so as to separate beginners in crime from hardened offenders. Whether this can best be done by alterations and an extension of the present penitentiary or by the erection of a new one, is for your wisdom to determine.

In several other States voluntary associations have been formed to provide for, encourage, and furnish employment to discharged convicts, and their efforts have been of incalculable benefit to this unfortunate class. If a similar association should be formed by the benevolent citizens of Ohio, they will reasonably expect to receive proper assistance from the General Assembly, and in that expectation I trust they will not be disappointed.

The total number of persons of school age in the State, in 1869, was officially reported at 1,028,675—an increase of 11,108 over the previous year. The total number enrolled in the public schools in 1869 was 740,382—an increase of 8,610 over the year 1868. The average daily attendance in the public schools in 1869 was 434,865—an increase over 1868 of 24,144.

The total taxes for schools, school buildings, and all other purposes, the present fiscal year, is \$6,578,196.83—an increase over the taxation of the previous fiscal year of \$616,795.68. Of this increase of taxation, the sum of \$17,833.86 is in the State taxation for school purposes, and the sum of \$598,991.82 is the increase of local school taxation.

The State commissioner of common schools, in his report, will recommend the adoption of county superintendency, the substitution of township boards of education to provide for the present system of township and sub-district boards, a codification of school laws and other important measures, to which your attention is respectfully called.

Prior to the organization of the board of state charities in 1867, there was no provision for a systematic examination of the benevolent and correctional institutions under the control of the State and local authorities. The members of the board serve without pecuniary compensation. It is simple justice to them to say that they have faithfully performed the thankless task of investigating and reporting the defects in the system and in the administration of our charitable and penal laws, and have furnished in their reports information and suggestions of great value. If it is true that an abuse exposed is half corrected, it would be difficult to overestimate their work. They have, their reports show, discovered abuses and cruelties practiced, under color of law, in the midst of communities noted for intelligence and virtue, which would disgrace any age. Let the board be granted increased powers and facilities for the discharge of their duties, and it will afford security—perhaps the best attainable—to the people of the State, that the munificent provision which the laws make for the poor and unfortunate, will not be wasted or misapplied by the officials who are charged with its distribution.

During the last year more than nine hundred persons, classed as incurably insane, have been lodged in the county infirmaries, and almost one hundred have been confined in the county jails. Besides these a large number of the same class of unfortunates have been taken care of by relatives or friends. The State should no longer postpone making suitable provision for these unfortunate people. The treatment they receive in the infirmaries and jails is always of necessity unsuited to their condition, and is often atrocious. To provide for them, I would not recommend an increase of the number of asylums for the insane. It is believed by those best acquainted with the subject, that both economy and the welfare of the patients require that the chronic insane should be provided for by additions to the asylums already built, or to those which are now building. It is probable that in this way such patients can be supported at less expense to the people of the State than in infirmaries and jails. However this may be, their present condition

imperatively demands, and, I trust, will receive, the serious consideration of the General Assembly. Although commonly classed as incurable, it is quite certain that, by proper treatment, in suitable institutions, the condition of all of them will be vastly improved, and, it may well be hoped, that many of them can be entirely cured.

The expediency of establishing an asylum for the cure of inebriates has not been much considered in Ohio. The encouraging results which are reported by the officers in charge of the State inebriate asylum of New York, induce me to recommend that the General Assembly provide for a full investigation of the subject.

The agricultural and mechanical college fund, created by the sale of land-script issued to Ohio by the National government, amounted, on the first instant, to \$404,911.37-1/2. The State accepted the grant out of which this fund has been created, February 10, 1864, and is bound by the terms of acceptance, as modified by Congress, to provide "not less than one college on or before July 2, 1872, where the leading object shall be, without excluding other scientific and classical studies, and including military tactics, to teach such branches of learning as are related to agriculture and the mechanic arts." The manner in which this fund shall be disposed of has been amply considered by preceding General Assemblies, and in the messages of my predecessors in the executive office. I respectfully urge that such action be had as will render this fund available for the important purposes for which it was granted. It is not probable that further delay will furnish additional information on any of the important questions involved in its disposition. Much time and attention has been given to the subject of the location of the college. No doubt it will be of great benefit to the county in which it shall be established, but the main object of desire with the people of the State can be substantially accomplished at any one of the places which have been prominently named as the site of the college. I therefore trust that the friends of education will not allow differences upon a question of comparatively small importance to the people at large longer to postpone the establishment of the institution, in compliance with the obligation of the State.

A large part of the work required to complete the "Soldiers' Record," in pursuance of an act passed March 17, 1864, has already been done, at an

expense of about \$8,000, and the propriety of making an appropriation sufficient to enable the adjutant-general to complete it is respectfully suggested for your consideration.

During the war for the Union, the people of this State acknowledged their obligation to support the families of their absent soldiers, and undertook to meet it, not as charity, but as a partial compensation justly due for services rendered. The Nation is saved, and the obligation to care for the orphans of the men who died to save it still remains to be fulfilled. It is officially estimated that three hundred soldiers' orphans, during the past year, have been inmates of the county infirmaries of the State. It is the uniform testimony of the directors of county infirmaries that those institutions are wholly unfit for children; that in a majority of cases they are sadly neglected; and that even in the best infirmaries the children are subject to the worst moral influences. Left by the death of their patriotic fathers in this deplorable condition, it is the duty of the State to assume their guardianship, and to provide support, education, and homes to all who need them. The people of Ohio regret that this duty has been so long neglected. I do not doubt that it will afford you great gratification to give to this subject early and favorable attention.

All agree that a republican government will fail, unless the purity of elections is preserved. Convinced that great abuses of the elective franchise can not be prevented under existing legislation, I have heretofore recommended the enactment of a registry law, and also of some appropriate measure to secure to the minority, as far as practicable, a representation upon all boards of elections. There is much opposition to the enactment of a registry law. Without yielding my own settled convictions in favor of such a law, I content myself, in this communication, with urging upon your attention a measure of reform in the manner of conducting elections, the importance and justice of which no one ventures to deny. The conduct of the officers whose duty at elections it is to receive and count the ballots, and to make returns of the result, ought to be above suspicion. This can rarely be the case where they all belong to the same political party. A fair representation of the minority will go far, not only to prevent fraud, but, what is almost of equal importance, remove the suspicion of fraud. I do not express any preference for any particular plan of securing minority representation in the boards of judges and clerks of elections. Various

modes have been suggested, and it will not be difficult to adopt a means of attaining the desired result which will harmonize with our system of election law.

The re-enactment of the law securing to the disabled volunteer soldiers who are inmates of the National asylum, near Dayton, the right of suffrage in the county and township in which said asylum is located, which was repealed April 17, 1868, and the repeal of the legislation of the last General Assembly, imposing special restrictions upon the exercise of the right of suffrage by students and by citizens having a visible admixture of African blood, are measures so clearly demanded by impartial justice and public sentiment that no argument in their support is deemed necessary.

I transmit herewith the report required by law of the pardons granted during the year ending November 15, 1869, a report of the expenditures of the Governor's contingent fund, copies of proclamations issued during the year, and several communications accompanying gifts to the State of portraits of former Governors.

The most important measure which it will be your duty to consider at your present session is the proposed amendment to the constitution of the United States. I do not feel called upon to discuss its merits. The great body of that part of the people of Ohio who sustain the laws for the reconstruction of the States lately in rebellion believe that the fifteenth amendment is just and wise. Many other citizens who would not support the amendment if it was presented as the inauguration of a new policy, in view of the fact that impartial suffrage is already established in the States most largely interested in the question, now regard the amendment as the best mode of getting rid of a controversy which ought no longer to remain unsettled. Believing that the measure is right, and that the people of Ohio approve it, I earnestly recommend the ratification of the fifteenth amendment to the constitution of the United States.

CHAPTER VIII.

[Top](#)

SECOND ELECTION AS GOVERNOR.

Re-nomination—Democratic Platform—Nomination of Rosecrans—Declines—Pendleton Nominated—Hayes at Wilmington—Election—Second Inaugural—Civil Service Reform—Short Addresses—Letters—Annual Message—Democratic Estimate of it—Davidson Fountain Address—Message of 1872—Work Accomplished.

The State Convention of the Republican party of Ohio, which met at Columbus, June 23, 1869, nominated Governor Hayes for a second term by acclamation.

So acceptable was his two years' administration of the chief executive office of the State, that no competitor entered the lists against him or contended with him for the nomination. On the question of his re-nomination the unanimity in his party was absolute. He appeared before the convention, in response to its invitation, and delivered the speech printed in the [Appendix](#) to this volume, which sounded the key-note of the campaign. We ask the reader to turn, at this point, to this speech, as it is impossible to epitomize it without filling as much space as is filled by the speech itself. The well-founded and well-supported charges he made against the Democratic Legislature of the State brought upon him the savage strictures of the Democratic partisan press, showing that he had penetrated the weak point in his adversaries' somewhat defenseless defenses.

The Republican platform condemned the reckless expenditures of the Legislature, its efforts to disfranchise soldiers, students, and all having African blood in their veins, and squarely declared for the ratification of the fifteenth amendment.

The Democratic Convention, which assembled July 7, 1869, denounced the fifteenth amendment, and had much to say about the reserved rights of the States. The platform contained these resolutions, which sound, at this day, like an inscription from the tombs of the Ptolemys:

"*Resolved*, That the exemption from tax of over \$2,500,000,000 in government bonds and securities is unjust to the people and ought not to be

tolerated; and that we are opposed to any appropriation for the payment of interest on the bonds until they are made subject to taxation.

"Resolved, That the claims of the bondholders, that the bonds which were bought with greenbacks, and the principal of which is by law payable in currency, should nevertheless be paid in gold, is unjust and extortionate; and, if persisted in, will inevitably force upon the people the question of repudiation."

Here we have the bald proposition to repudiate the interest on the public debt unless it is taxed contrary to law, as made known by repeated decisions of the Supreme Court of the United States; and secondly, the direct threat to repudiate the principal of the National debt unless it is paid off in broken promises to pay. As the greenback is simply a debt or a due bill, this paying debts with debts was a patentable discovery in the science of finance. Taken in connection with the declaration of Vallandigham in the canvass before, that the whole bonded debt should be immediately "paid" in greenbacks, the resolution simply meant that the war debt should not be paid at all. This robbing the men whose money saved the Republic was not acceptable then to the farmers and laborers of Ohio, and will probably not now be more acceptable to the capitalists of New York. It is well, however, to recall the antecedents of a party that first tried to get into power through discreditable expedients, before resorting to a declaration of honest principles in finance.

The convention took a "new departure," and, putting aside Ranney and Pendleton, nominated General W. S. Rosecrans for governor, who was then absent from the country. This nomination was mainly brought about through the zealous efforts of Messrs. Vallandigham, Callen, and Baber.

The opinions General Rosecrans entertained of his new-found friends were not favorable. In a letter dated February 3, 1863, from Murfreesboro, Tennessee, General Rosecrans, in speaking of the slave-holding insurgents, had used this language:

"Wherever they have the power they drive before them into their ranks the Southern people, and they would also drive us. Trust them not. Were they able they would invade and destroy us without mercy. Absolutely assured of these things, I am amazed that any one could think of 'peace on any terms.'

"He who entertains the sentiment is fit only to be a slave; he who utters it at this time is, moreover, a traitor to his country, who deserves the scorn and contempt of all honorable men."

Rosecrans declined the nomination, and George H. Pendleton, after just enough hesitation to impart a proper value to his consent, consented to fill the vacant place at the head of the ticket.

Governor Hayes, aided by Senator Morton, opened the active campaign in a speech delivered at Wilmington, August 12, devoted mainly to the discussion of National and State finances. In the course of this speech Governor Hayes said:

"When the rebellion broke out, what was its chance for success? It had just one—a divided North. A divided North was its only chance. A united North was bound to crush the rebellion within two years after the firing on Sumter. A divided North encouraged the aristocratic enemies of free government in every land to build Alabamas and Shenandoahs that scourged the seas and swept away our commerce from the ocean. A divided North encouraged the Emperor of France to proclaim to everybody that sooner or later he proposed to intervene. A divided North encouraged rebel leaders to believe that sooner or later our armies must disband and come home.

"Now, I say to you that Pendleton was the selected and chosen leader of the Peace Party of the Northwest—the leader of the party that *made* a divided North. They talk of the debt and the great burden of taxation. We talked sadly of the loss of valuable lives that went down in the storm of battle. I say to you that the fact of a divided North doubled the debt and doubled the loss of valuable lives."

The campaign was an important one to Mr. Pendleton. Had he been successful he would undoubtedly have been the Democratic candidate for the presidency. A leading journal of the State said: "The gubernatorial contest is but a side-show. We are already entering upon the next presidential canvass, and Ohio is the key to the position." Nevertheless, Republican success was too certain to make the contest so warm a one as that of two years before. The State had been organized by townships and school districts and polled. So accurate was this poll that predictions as to the result, sealed and filed a week prior to the election by each of the members of the Republican State Executive Committee, the writer being one, varied only from two hundred to three

thousand votes of the final result. Hayes' majority in '69 was 7,506—a little above the average majority. The canvass was fought largely upon the issue of the greenback payment of the debt. The Pendleton plan of indirect repudiation failed, and the rag infant was decently interred, to await an inglorious resurrection.

Governor Hayes was re-inaugurated January 10, 1870, on which occasion he delivered the following address:

Gentlemen of the Senate and House of Representatives:

In the annual message transmitted to the General Assembly a few days ago, a brief exposition of the condition of the State government was given, and such measures were recommended as the public good seemed to me to require. It will therefore not be expected that on this occasion I should again discuss subjects pertaining to the usual routine of legislation.

The most important questions concerning State affairs which in the ordinary course of events will engage the attention of the people of Ohio, during the term of office upon which I now enter, are those which relate to the action of a Constitutional Convention authorized to be called by a vote of the people at the October election in 1871. The present organic law provides for submitting to the electors of the State, once in twenty years, the question of holding "a convention to revise, alter, or amend the constitution." It is no disparagement of the work of the last Constitutional Convention to say that experience has already demonstrated the wisdom of this provision. It would be strange, indeed, if the last eighteen years had developed no defects in the constitution of 1851.

It is, perhaps, not improper at this time to call attention to some of the amendments of the existing fundamental law which the next Constitutional Convention will probably be required to consider.

The provision of the present constitution which prohibits the General Assembly from authorizing "any county, city, town, or township, by vote of its citizens or otherwise," from giving aid to any "company, corporation, or association," was designed to remedy an evil of the gravest magnitude. Unlimited power to authorize counties, cities, and towns to subscribe to the stock of railroad companies had burdened the people of the State with indebtedness and taxation to an extent which threatened bankruptcy.

Experience has shown, however, that the clauses of the constitution on this subject are so sweeping that they are almost equivalent to a prohibition of the construction of railroads, except where those who control the existing railroad lines furnish the means. In many localities, the people are thus deprived of the only artificial instrumentality for intercourse with other parts of the State and country which is now regarded as valuable. By reason of it, important sources of wealth in large sections of the State remain undeveloped. It is believed that amendments can be framed, under which effective local aid can be furnished for the building of railroads, and which, at the same time, shall be so guarded and limited as to prevent a dangerous abuse of the power.

For many years political influence and political services have been essential qualifications for employment in the civil service, whether State or National. As a general rule, such employments are regarded as terminating with the defeat of the political party under which they began. All political parties have adopted this rule. In many offices the highest qualifications are only obtained by experience. Such are the positions of the warden of the penitentiary and his subordinates, and the superintendents of asylums and reformatories and their assistants. But the rule is applied to these as well as to other offices and employments. A change in the political character of the executive and legislative branches of the government is followed by a change of the officers and employs in all of the departments and institutions of the State. Efficiency and fidelity to duty do not prolong the employment; unfitness and neglect of duty do not always shorten it. The evils of this system in State affairs are, perhaps, of small moment compared with those which prevail under the same system in the transaction of the business of the National government. But at no distant day they are likely to become serious, even in the administration of State affairs. The number of persons employed in the various offices and institutions of the State must increase, under the most economical management, in equal ratio with the growth of our population and business.

A radical reform in the civil service of the general government has been proposed. The plan is to make qualifications, and not political services and influence, the chief test in determining appointments, and to give subordinates in the civil service the same permanency of place which is enjoyed by officers of the army and navy. The introduction of this reform will be attended with some difficulties. But in revising our State constitution, if this object is kept constantly in view, there is little reason to doubt that it can be successfully accomplished.

Our judicial system is plainly inadequate to the wants of the people of the State. Extensive alterations of existing provisions must be made. The suggestions I desire to present in this connection are as to the manner of selecting judges, their terms of office, and their salaries. It is fortunately true that the judges of our courts have heretofore been, for the most part, lawyers of learning, ability, and integrity. But it must be remembered that the tremendous events and the wonderful progress of the last few years are working great changes in the condition of our society. Hitherto population has been sparse, property not unequally distributed, and the bad elements which so frequently control large cities have been almost unknown in our State. But with a dense population crowding into towns and cities, with vast wealth accumulating in the hands of a few persons or corporations, it is to be apprehended that the time is coming when judges elected by popular vote, for short official terms, and poorly paid, will not possess the independence required to protect individual rights. Under the National constitution, judges are nominated by the executive and confirmed by the Senate, and hold office during good behavior. It is worthy of consideration whether a return to the system established by the fathers is not the dictate of the highest prudence. I believe that a system under which judges are so appointed, for long terms and with adequate salaries, will afford to the citizen the amplest possible security that impartial justice will be administered by an independent judiciary.

I forbear to consider further at this time the interesting questions which will arise in the revision and amendment of the constitution. Convinced of the soundness of the maxim that "that government is best which governs least," I would resist the tendency common to all systems to enlarge the functions of government. The law should touch the rights, the business, and the feelings of the citizen at as few points as is consistent with the preservation of order and the maintenance of justice. If every department of government is kept within its own sphere, and every officer performs faithfully his own duty without magnifying his office, harmony, efficiency, and economy will prevail.

Under the providence of God, the people of this State have greatly prospered. But in their prosperity they can not forget "him who hath borne the battle, nor his widow, nor his orphan," nor the thousands of other sufferers in our midst, who are entitled to sympathy and relief. They are to be found in our hospitals, our infirmaries, our asylums, our prisons, and in the abodes of the unfortunate and the erring. The Founder of our religion, whose spirit should pervade our laws, and animate those who enact and those who enforce them, by His

teaching and His example, has admonished us to deal with all the victims of adversity as the children of our common Father. With this duty performed, we may confidently hope that for long ages to come our country will continue to be the home of freedom and the refuge of the oppressed.

Grateful to the people of Ohio for the honors they have conferred, I approach a second term in the executive office, deeply solicitous to discharge, as far as in me lies, the obligations and duties which their partial judgment has imposed.

The most striking part of the address is that which relates to reform in the civil service of the State and the Nation. Governor Hayes proposes to reform the civil service of the State *by means of a constitutional provision in a new State constitution*. This method of reformation is radical, and, we believe, original. It suggests the pertinent query, whether reform in the civil service of the Nation can not be best accomplished through a new provision in the National constitution. Can permanency and stability be secured in the civil service of the Republic in any other certain way than by a constitutional amendment? Civil service reformers need hardly waste their time discussing methods and systems less radical and fundamental. It must be recorded to the honor of Governor Hayes that he, more than six years ago, suggested the only true solution to the civil service problem, by proposing to place that service beyond disturbance from the fluctuating fortunes of political parties. He has, therefore, been an advanced civil service reformer more than the sixteenth of a century; not, like Mr. Tilden, for six months prior to a presidential election.

In December, 1869, he wrote to a friend in Congress: "We must have a genuine retrenchment and economy. The monthly reduction of the debt is of far more consequence than the reduction of taxation in any form. I hope, too, you will abolish the franking privilege and adopt the general principles of Trumbull's bill and Jencke's bill. It would please the people and be right and wise."

It is hardly needful to add that the bills referred to were the best civil service bills then before Congress.

In this same address, the governor boldly declares against the heresy of an elective judiciary, and favors the system established by Madison, Hamilton, and Washington, which has given us a Jay, a Story, and a Marshall.

During the occupancy of his office as executive of the State, Governor Hayes, on a vast variety of occasions, was called upon to deliver speeches and addresses on all classes of subjects. These efforts are all admirable in their way, and give evidences of fine literary taste, great good judgment, and what Dickens called "a sense of the proprieties."

We can find space for portions only of a few of these addresses. In an address of welcome on the occasion of the great exposition of textile fabrics, held in Cincinnati, in August, 1869, the governor of Ohio said:

"We meet at a most auspicious period in our country's history. Our greeting and welcome to citizens of other States are 'without any mental reservation whatever.' It is plain that we are entering upon an era of good feeling, not known before in the life-time of the present generation. For almost half a century the great sectional bitterness which is now so rapidly and so happily disappearing, and which we know can never be revived, carried discord, division, and weakness into every enterprise requiring the united efforts of citizens of different States. Now the causes of strife have been swept away, and their last vestiges will soon be buried out of sight. Good men will no longer waste their strength in mutual crimination or recrimination about the past. The people of different sections of our country will hereafter be able to act, not merely with intelligence and energy, but with entire harmony and unity; in any enterprise which promises an increase of human welfare and human happiness.

"This association, then, is working in perfect accord with the spirit of the times. The development of new resources, the opening of new paths to skill and labor, the discovery of new methods, the invention of new machinery and implements, and the employment of capital in new and useful pursuits—these are the objects which associations like this aim to accomplish. All who encourage these things, and who desire to aid in such achievements, deserve a hearty welcome wherever they may go, and will, I assure you, always find it, as you do now, in the State of Ohio."

Soon after the death of Secretary Stanton, and near the beginning of the governor's second term, a meeting of members of the Ohio bar was held in the room of the Supreme Court of Ohio, to take action with reference to the loss of their former associate and friend. On this occasion Governor Hayes said:

"I shall not undertake to describe the life and character and services of Mr. Stanton. Few men—very few men—ever possessed such learning, such intellect, such energy, such courage, such will, such honesty, such patriotism, in one word, such manhood, as belonged to him. All of his great powers and qualities he gave to the performance of duty, and with them he gave also life itself.

"Our profession rejoices that Mr. Stanton was an eminent lawyer. Our State rejoices that he was her great son. Our country and our age may well rejoice that he lived in this age and in this country. The members of our profession, the people of our State and of the Nation, and all mankind do honor to themselves in striving to do honor to the memory of such a man as Edwin M. Stanton."

It can be readily understood why a robust, positive, hard-fighting soldier like Hayes, should so ardently give his admiration to a firm-sinewed, iron-nerved, masculine man like the great minister of war.

On the 13th of April, 1870, the colored people of Central Ohio celebrated the adoption of the Fifteenth Amendment at an immense meeting held in the opera house in Columbus. Governor Hayes, as their chosen orator, delivered the following brief address, which seems the inspiration of one who has the logic of history in his head and humanity in his heart:

FELLOW-CITIZENS:—We celebrate to-night the final triumph of a righteous cause after a long, eventful, memorable struggle. The conflict which Mr. Seward pronounced "irrepressible" at last is ended. The house which was divided against itself, and which, therefore, according to Mr. Lincoln, could not stand as it was, is divided no longer; and we may now rationally hope that under Providence it is destined to stand—long to stand the home of freedom, and the refuge of the oppressed of every race and of every clime.

The great leading facts of the contest are so familiar that I need not attempt to recount them. They belong to the history of two famous wars—the war of the Revolution and the war of the Rebellion—and are part of the story of almost a hundred years of civil strife. They began with Bunker Hill and Yorktown, with the Declaration of Independence and the adoption of the Federal Constitution. They end with Fort Sumter and the fall of Richmond, with the Emancipation Proclamation and the Anti-Slavery and Equal Rights Amendments to the Constitution of the Nation. These long and anxious years

were not years of unbroken ceaseless warfare. There were periods of lull, of truce, of compromise. But every lull was short-lived, every truce was hollow, and every compromise, however pure the motives of its authors, proved deceitful and vain. There could be no lasting peace until the great wrong was destroyed, and impartial justice established.

The history of this period is adorned with a long list of illustrious names—with the names of men who were indeed "Solomons in council and Sampsons in the field." At its beginning there were Washington, Franklin, and Hamilton, and their compeers; and in the last great crisis Providence was equally gracious, and gave us such men as Lincoln, and Stanton, and George H. Thomas.

All who faithfully bore their part in the great conflict may now with grateful hearts rejoice that it is forever ended.

The newly-made citizens who seem to carry off the lion's share of the fruits of the victory—it is especially fitting and proper that they should assemble to congratulate each other, and to be congratulated by all of us that they now enjoy for the first time in full measure the blessings of freedom and manhood.

Those, also, who have opposed many of the late steps in the great progress—it is a satisfaction to know that so large a number of them gracefully acquiesce in the decision of the Nation.

The war of races, which it was so confidently predicted would follow the enfranchisement of the colored people—where was it in the elections in Ohio last week? In a few localities the old prejudice and fanaticism made, we hope, their last appearance. There was barely enough angry dissent to remind us of the barbarism of slavery which has passed away forever. Generally throughout the State, and especially in the cities of Cincinnati, Cleveland, Columbus, Dayton, and Toledo, where the new element is large, those who strove to avert the result over which we rejoice, leaders as well as followers, were conspicuous in setting an example of obedience to the law.

Not the least among the causes for congratulation to-night is the confidence we have that the enfranchised people will prove worthy of American citizenship. No true patriot wishes to see them exhibit a blind and unthinking attachment to mere party; but all good men wish to see them cultivate habits of industry and thrift, and to exhibit intelligence and virtue, and at every

election to be earnestly solicitous to array themselves on the side of law and order, liberty and progress, education and religion.

The following letters, written during 1870, have come under our observation. We reproduce them because they exhibit to some extent opinions and character.

In one dated March 1, 1870, these passages occur:

"I also agree with you perfectly on the spoils doctrine. This you would know if you had read my last inaugural. I am glad you do not bore yourself with such reading generally, but you are in for it now, as I shall send you a copy. I, too, mean to be out of politics. The ratification of the Fifteenth Amendment gives me the boon of equality before the law, terminates my enlistment, and discharges me cured."

Another letter, dated June 2d, in reply to a stranger in Baltimore, shows his tender regard for the private soldier, whether he be living or dead:

"I acknowledge with great gratification the receipt of your letter of the 30th, informing me of your patriotic attention to the grave of an Ohio soldier in your city on Decoration Day."

"Be pleased to accept my thanks for your generous action, and for courtesy of your letter."

To a friend in Congress he writes, on June 13th:

"You will as astonished as I was by this decision as to the right of the soldiers to vote at the Dayton National Asylum. But there it is. How can we get rid of it? Can you pass an act of Congress that will avoid it? I feel like saying that the soldiers must vote as usual, and test the case again. I merely call your attention to it with a view to Congressional action. You recollect the act ceding jurisdiction expressly provided that residents of Ohio retained the right to vote."

To the president of the Commercial Union of New York he wrote, June 20th:

"I have the honor to acknowledge the receipt of your favor of the 10th instant, inviting me to attend a meeting of the Commercial Union of the State of New York, to be held in the city of Rochester on the 15th of July next, and to express my regret that prior engagements will prevent me from being present

on that occasion. The subject to be considered—cheap transportation between the East and West—is of importance to the whole country, and especially to the State of Ohio. Earnestly hoping that the deliberations of the meeting will greatly promote this object, I remain, etc."

January 3, 1871, Governor Hayes delivered the following important annual message:

Fellow-Citizens of the General Assembly:

The official reports, which the law requires to be annually made to the governor, show that the affairs of the various departments of the State government and of the State institutions have been conducted during the past year in a satisfactory manner. I shall not attempt to give a synopsis of the facts and figures which the reports contain. The most important parts of them have been spread before the people of the State by the newspaper press, and the details which may be desired with a view to legislation can be best obtained from the reports themselves.

I also refrain from making many recommendations. Believing that too frequent changes of the laws and too much legislation are serious evils, I respectfully suggest that upon many subjects it may be well to defer legislation until the people have acted upon the question of calling a constitutional convention. If such a convention shall be called, it is not improbable that the General Assembly will be clothed with powers essentially different from those conferred by the present fundamental law in respect to the judiciary, railroads, intemperance, and many other important subjects, and that the legislature itself will be so constituted as to secure to minorities a fairer representation than they now enjoy.

The balance in the State treasury on the 15th of November, 1869, was \$438,060.14; the receipts during the year were \$4,399,932.53; making the total amount of available funds in the treasury during the year \$4,837,992.67.

The disbursements during the year have been \$4,071,954.57; leaving a balance in the treasury, November 15, 1870, of \$766,038.10.

The estimates of the auditor of State for the current year are as follows:

Estimated receipts from all sources, including balances, \$5,670,205.10; estimated disbursements for all purposes, \$5,163,976.01; leaving an estimated

balance in the treasury, November, 15, 1871, of \$506,229.09.

The public funded debt of the State on the 15th of November, 1869, after deducting the amount invested in loans not yet due, was \$9,855,938.27. During the last year there has been redeemed of the various loans, and invested in loans not yet due, the sum of \$123,860.36, leaving the total debt due November 15, 1870, \$9,732,077.91.

The fund commissioners were prepared to pay off a larger amount of the debt than has been actually discharged during the year, but none of the bonds of the State were due, and some of the holders demanded ten or twelve per cent premium, and others refused to surrender their bonds at any price.

The constant and rapid increase of taxation demands consideration. The following table, showing the taxation for different purposes in 1860 and in 1870, and the increase of taxation in ten years, sufficiently exhibits the nature and extent of the evil.

AMOUNT OF TAXES LEVIED.

For what purpose.	1860.	1870.	Increase.
County taxes	\$1,309,137.46	\$1,975,088.71	\$665,951.25
Bridge taxes	487,538.40	1,474,148.18	1,036,609.78
Poor taxes	260,607.20	657,116.42	396,509.22
Building taxes	228,444.13	783,960.73	505,516.60
Road taxes	394,424.77	1,199,767.26	805,342.49
Railroad taxes	538,869.50	461,848.72	
Township taxes	349,360.86	734,585.65	385,224.79
T'p and sub-district and district school taxes	1,487,247.44	4,960,771.87	3,473,524.43
Other special taxes	349,236.33	1,152,335.09	803,098.76
City and town taxes	1,506,083.86	5,447,766.96	3,941,683.10
Delinquent taxes	453,013.46	667,188.69	214,175.23
Other than State taxes	7,313,963.41	19,464,578.28	12,227,685.65
State taxes	3,503,712.93	4,666,242.23	1,162,529.30
Totals	\$10,817,676.34	\$24,130,820.51	\$13,390,164.95

This table shows that in ten years the State taxes have increased thirty-three per cent, and that local taxes have increased almost one hundred and seventy per cent; in other words, that less than one-tenth of the increase has been in State taxes, and more than nine-tenths in local taxes.

The increase of local taxation has been far greater than the growth of the State in business, population or wealth. It is not to be doubted that this burden has grown to dimensions which seriously threaten the prosperity of the State.

No full and exact statement can be made from the official reports as to the amount annually collected from the property-holders of the State in the form of special assessments for what are termed local improvements, but it is certain that this burden is also great and rapidly growing.

The auditor of State reports cases in which such assessments have been made, amounting to half of the cash value of the property on which they were levied, and, in one case which he refers to, the assessment was double the value of the property.

In respect to these evils it is undoubtedly easier to find fault than to provide a remedy. No single measure will remove them. Probably no system of measures which the General Assembly can adopt will of themselves accomplish what is desired. A complete reform is impossible, unless the city, county, and other officers are disposed and thoroughly competent to do the work of cutting off every unnecessary expenditure.

Much, however, can be accomplished by wise legislation. Let the General Assembly firmly adhere to the policy of the constitution, and refuse to enact special laws granting powers to tax or make assessments. Let such powers be exercised only in pursuance of general laws. Local authorities should be empowered to levy no higher rate of taxation than is absolutely required for practical efficiency under ordinary circumstances. In extraordinary cases general laws should provide for the submission of the proposed tax or assessment to the people to be affected by it, under such regulations that it can not be levied unless at least two-thirds of the tax-payers approve the measure.

One of the most valuable articles of the present State constitution is that which prohibits the State, save in a few exceptional cases, from creating any debt, and which provides for the payment at an early day of the debt already contracted. I am convinced that it would be wise to extend the same policy to

the creation of public debts by county, city, and other local authorities. The rule "pay as you go" leads to economy in public as well as in private affairs; while the power to contract debts opens the door to wastefulness, extravagance, and corruption.

In the early history of the State, when capital was scarce and expensive public works were required for transporting the products of the State to market, public debts were probably unavoidable; but the time, I believe, has come when not only the State, but all of its subordinate divisions, ought to be forbidden to incur debt. The same rule on this subject ought to be applied to local authorities which the constitution applies to the State legislature. Experience has proved that the power to contract debt is as liable to abuse by local boards as it is by the General Assembly. If it is important to the people that the State should be free from debt, it is also important that its municipal divisions should not have power to oppress them with the burden of local indebtedness.

It would promote an economical administration of the laws if all officers, State, county, and municipal, including the members of the legislature, were paid fixed salaries.

Under existing laws a part of the public officers are paid by fees and a part by fixed annual salaries or by a per diem allowance. The result is great inequality and injustice. Many of those who are paid by fees receive a compensation out of all proportion to the services rendered. Others are paid salaries wholly inadequate. For example, many county officers and some city officers receive greater compensation than the judges of the Supreme Court of the State. The salaries paid to the judges ought to be increased; the amount paid to many other public officers ought to be reduced. To do justice, a system of fixed salaries, without fees or perquisites, should be adopted. The people of Ohio will, without question, sustain an increase of the salaries of judges and of other officers who are now inadequately paid; but it can probably best be done as a part of a system which would prevent the payment to public officers of enormous sums by means of fees and perquisites. To remove all ground of complaint, on account of injustice to present incumbents, the new system should apply only to those elected after its adoption.

In addition to considerations already presented in favor of a revision of the rates of taxation which local officers and boards are authorized to levy,

another controlling reason is not to be omitted. By the recent revaluation of real estate the total basis of taxation for the State at large will probably be increased almost forty per cent, and in many of the cities the increase will be nearly one hundred per cent. This renders it imperatively necessary to revise the present rates, so as to prevent the collection and expenditure of sums much greater than the public good demands.

Under prudent and efficient management the earnings of the penitentiary continue to exceed its expenses, and at the same time gratifying progress has been made in improving the condition and treatment of the prisoners. The hateful and degrading uniform of past years is disappearing; increased means of education, secular and religious, are afforded, and the officers of the institution exhibit an earnest desire to employ every instrumentality authorized by existing laws to restore its inmates to society improved in habits, capacity, and character.

While much has been done in our State during the last twenty-five years for the improvement of prison discipline, it is not to be denied that much more yet remains unaccomplished.

Assuming that the time has not arrived to attempt a radical change of our prison discipline, the following practical suggestions, consistent with the present system, are offered for your consideration: A convict is now allowed a deduction from the period of his sentence as a reward for good behavior. The power to extend the period of the sentence as a punishment for bad conduct would also, under proper regulations, exercise a wholesome influence in the discipline of the prison.

The importance of classification among convicts is now universally admitted. For economical or other reasons the establishment of an intermediate prison will perhaps be deemed inexpedient at this time. It is believed, however, that by employing convict labor the additional buildings and improvements required for a satisfactory classification can be erected on the ground adjoining the old prison, recently purchased and now enclosed, at a small expense compared with the cost of a new prison. This plan, it is hoped, will receive your careful consideration.

It is also recommended that the Board of State Charities be empowered to aid discharged convicts to obtain honest employment. An annual appropriation of a small sum for this purpose, in the course of a few years, would probably

save a large number, who, without such help, would again return to a criminal course of life.

The most defective part of our present prison system is probably our county jails. It is supposed about 8,000 persons pass through our county jails each year. They are generally persons charged with crimes and awaiting trial. But lunatics and petty offenders in considerable numbers are also confined in these places. The young and the old, the innocent and the guilty, hardened offenders and beginners in crime, are commonly mingled together in the jails, under few restraints, without useful occupation and with abundant leisure and temptation to learn wickedness. The jails have been fitly termed nurseries of crime. Plans of jails, not too expensive, have been furnished by the Board of State Charities, which provide for the absolute separation of the prisoners. It is recommended that the law shall require all jails to be so constructed as to entirely prevent this promiscuous and dangerous intercourse.

Your attention is particularly called to the recommendation of the Board of State Charities that the proper authorities of all of the cities of the State should be required to make full reports annually to the legislature, through the governor, of the statistics of vice and crime and of the work of the police department in such cities; and also to the suggestion that prosecuting attorneys should not be allowed to enter a *nolle prosequi* in any case of an indictment for a crime punishable by imprisonment in the penitentiary or by death, without the written approval of the attorney-general first given upon a written report to him of the facts.

The importance of this is sufficiently shown by the fact that in 1869 the number of cases in which a *nolle prosequi* was entered exceeded fifteen hundred.

The Girls' Reformatory at White Sulphur Springs contains forty-nine inmates, and it is now demonstrated that the number is likely to increase as rapidly as the welfare of the institution will allow. Whatever doubts may have been reasonably entertained as to the necessity for such an institution prior to its establishment, the report of the directors and superintendent and a thorough investigation of the facts will, it is believed, satisfy you that the institution is a very important one, and ought to be liberally supported.

The report of the superintendent and trustees of the Soldiers' Orphans' Home will engage your earnest attention. The duty of providing for the education

and support of the children of the soldiers of Ohio who fell in the war for the Union was fully recognized by the resolutions and acts of your last session. It is not doubted that your action was in accordance with the will of the people of the State, and they earnestly desire that the duty of caring for the soldiers' orphans shall be performed in a manner that will worthily express the affection and gratitude with which these wards of the State must ever be regarded by a just and patriotic community. I therefore respectfully recommend that the legislation deemed necessary by the board and officers in charge of the institution be enacted as promptly as practicable.

The report of the geological survey, to be laid before you, exhibits the encouraging progress of that work. The future growth of Ohio in wealth and population will depend largely on the development of the mining and manufacturing resources of the State. Heretofore, our increase in capital and numbers has been chiefly due to agriculture. Important as that great interest will always be in Ohio, the recent census shows that we may not reasonably anticipate, in future, rapid growth in population or wealth from agriculture alone. Without calling in question the great and immediate benefit to accrue to agriculture from the geological survey, it is yet true that the tendency of its exhibition of our vast mineral wealth is to encourage the employment of labor and capital in mining and manufacturing enterprises. Let the work be continued and sustained by ample appropriations.

It is necessary that the General Assembly, at its present session, should adopt the requisite legislation to carry into effect the following requirement of the constitution: Sec. 3, article 16, of the constitution, provides that "at the general election to be held in the year one thousand eight hundred and seventy-one, and in each twentieth year thereafter, the question, 'Shall there be a convention to revise, alter, or amend the constitution?' shall be submitted to the electors of the State, and in case a majority of all the electors voting at such election shall decide in favor of such a convention, the General Assembly, at its next session, shall provide by law for the election of delegates and the assembling of such convention."

In conclusion, I feel warranted in congratulating you on the favorable judgment of your constituents upon your action on the important subjects which were considered at your last session, and in expressing a confident hope that what remains to be done will, under Providence, be so wisely

ordered that the true interests of all the people of the State will be greatly and permanently advanced.

Without comments of our own, we will simply give the opinions of Democratic journals concerning this message.

The Cincinnati *Enquirer*, of January 4, 1871, said:

"The message of Governor Hayes is a plain, straightforward, and sensible document, and in every respect is creditable to him."

The Columbus *Crisis* said:

"The annual message of Governor R. B. Hayes, printed in this issue, is a very fair and plain statement of the condition of the affairs of the State, and is especially commendable for its brevity and practical purport."

The Steubenville *Gazette* characterized this message as—

"An excellent and appropriate document—short and comprehensive—and, as it should be, devoted wholly to State affairs."

The Cincinnati *Commoner*, *ultra* Democratic, declared:

"The message is brief, but full of wisdom, and deserves the study of every citizen."

The correspondence of 1871 from the executive office reveals letters like these:

"I long since, in conversation, announced my wish and purpose to withdraw from the race for important positions in public affairs. I meant this announcement to apply both to the office I now hold and the senatorship. That purpose remains unchanged."

A letter of May 5th, to a distinguished New York journalist, says:

"Your article on the Ohio governorship is of course satisfactory to me, but you will not object to two corrections. I have not been and shall not be a candidate for re-nomination. I probably could without effort have been renominated, but usage and personal inclination were against it. The more serious error is: You omit to name the Republican candidate who is nearly certain of the nomination and election. General Edward F. Noyes, of Cincinnati, a brave and

popular soldier, who lost a leg in the Atlanta campaign; an eloquent and attractive speaker, and a gentleman of integrity and purity of character, will, I think, without question, be nominated. He is the sort of man you would support heartily if you lived in Ohio."

On the 6th of October, 1871, Governor Hayes delivered the striking address we give below, on the occasion of the inauguration of the celebrated Davidson fountain, in Cincinnati. This fountain, in design and execution, is a work of art of extraordinary merit.

Fellow-Citizens:

It is altogether fitting that the citizens of Cincinnati should feel a deep interest in the occasion which has called together this large assemblage. It is well to do honor to this noble gift, and to do honor to the generous giver. This work lends a new charm to the whole city.

Longfellow's lines in praise of the Catawba that grows on the banks of the Beautiful River gives to the Catawba a finer flavor, and renders the Beautiful River still more beautiful. When art and genius give to us in marble or on canvas the features of those we admire or love, ever afterward we discover in their faces and in their characters more to admire and more to love.

This work makes Cincinnati a pleasanter city, her homes more happy, her aims worthier, and her future brighter.

But this fountain does not pour out its blessings for Cincinnati or for her visitors and guests alone. Cincinnati is one of the central cities of the Nation—of the great continent. It is becoming the convention city. Witness the National assemblies in the interest of commerce, of industry, of education, of benevolence, of progress, of religion, which annually gather here from the most distant parts of America. This monument is an instructor of all who come. Whoever beholds it will carry away some part of the lesson it teaches. The duty which the citizen owes to the community in which, and by which, he has prospered, that duty this work will forever teach. No rich man who is wise will, in the presence of this example, willingly go to his grave with his debt to the public unpaid and unprovided for. Many a last will and testament will have a beneficent codicil, suggested by the work we inaugurate to-day. Parks, fountains, schools, galleries of art, libraries, hospitals, churches—whatever

benefits and elevates mankind—will here receive much needed encouragement and support.

This work says to him who, with anxious toil and care, has successfully gathered and hoarded—Do not neglect your great opportunity. Divide wisely and equitably between the few who are most nearly of your own blood, and the many who in kinship are only a little farther removed. If you regard only those reared under your own roof, your cherished estate will soon be scattered, perhaps wasted by profligate heirs in riotous living, to their own ruin, and you and your fortune will quickly be forgotten. Give a share—pay a tithe to your more distant and more numerous kindred—to the general public, and you will be gratefully remembered, and mankind will be blessed by your having lived!

Many, reflecting on the uncertainty of the future, will prefer to see their benefactions distributed and applied while they are still living. Regarding their obligations to the public as sacred debts, they will wish to pay as they go. This is commendable; perhaps it is safest.

But at some time and somehow the example here presented will and must be followed. All such deeds are the parents of other similar good deeds. And so the circle within which the blessings flowing from this fountain are enjoyed will forever grow wider and wider, and the people of distant times and places will rejoice to drink, as we now do, healthful and copious draughts in honor of its founder.

Here, this matchless structure will link together, in perpetual, grateful remembrance, the names of Tyler Davidson and Henry Probasco! Ever honored be those names in the city they have so greatly honored!

The message of Governor Hayes, on retiring from office at the close of his fourth year, calls attention to the encroachments upon the rights and interests of the people by railway corporations, and discusses at length the important subject of securing economy, efficiency, and purity in the administration of the local governments of cities and towns. For its able discussion of these and other subjects, this message of 1872 commends itself.

Fellow-Citizens of the General Assembly:

The finances of the State government are in a satisfactory condition. The balance in the State treasury on the 15th of November, 1870, was

\$766,038.10; the receipts during the last fiscal year were \$5,241,184.91; making the total amount of available funds in the treasury during the year ending November 15, 1871, \$6,007,223.01.

The disbursements during the year have been \$5,259,046.74, leaving a balance in the treasury, Nov, 15, 1871, of \$748,176.27.

The estimates of the auditor of State of receipts and expenditures for the current year, are as follows:

Estimated receipts from all sources, including balances, \$5,206,366.27.

Estimated disbursements for all purposes, \$4,776,035.73.

Leaving an estimated balance in the treasury, November 15, 1872, of \$430,330.54.

The public funded debt of the State November 15, 1870, after deducting the amount invested in Ohio stocks, was \$9,730,144.36.

During the past year the debt has been reduced \$729,415.

Leaving the total debt yet to be provided for, \$9,000,729.36. Of this amount, the sum of \$44,518.31 has ceased to bear interest, the holders thereof having been notified of the readiness of the State to pay the same. This leaves the total interest-bearing debt of the State, \$8,956,211.05.

The taxes levied in 1870, collectible in 1871, were as follows:

State taxes	\$ 4,666,242.23
County and local levies	18,797,389.59
Delinquencies and forfeitures in former years	<u>667,188.69</u>
Total taxes, including delinquencies collectible in 1871	\$24,130,820.51

The taxes levied in 1871, collectible in 1872, were as follows:

State taxes	\$ 4,350,728.28
County and local levies	18,604,660.12
Delinquencies and forfeitures	<u>632,275.84</u>
Total taxes and delinquencies collectible in 1872	\$23,587,664 24

It will be noticed, with gratification, that the annual increase of taxation, to which the people have been long accustomed, has been checked, and that the taxes, both State and local, have been somewhat reduced.

The increase of local indebtedness still continues. The returns made to the auditor of State are imperfect, but enough is shown to warrant the opinion that during the past year the indebtedness of the towns and cities of the State has increased not less than one million of dollars, and that their aggregate indebtedness now equals the indebtedness of the State. I respectfully repeat, as the remedy for this evil, the recommendation heretofore made, that all public debts be prohibited, except in cases of emergency, analogous to those specified in sections 1 and 2, article 8, of the constitution.

The report of the adjutant-general shows that there has been collected by him from the United States during the year, on account of the State war claims, the sum of \$145,304.60, making the total amount of war claims collected \$2,826,247.94. It is probable that about \$100,000 more can be collected on these claims without additional legislation by Congress. This will leave about \$400,000 of claims unpaid, which, it is believed, when presented to Congress, with proper vouchers and explanations, will be provided for by special act. As long, however, as the board of military claims exists, these claims will continue to increase, and it would not be advisable to seek Congressional action until the State, by closing its accounts with individuals, shall be able to ask for a final settlement.

It is therefore recommended that the statutes providing for the allowance of claims against the State by the commissioners of military claims be repealed; the repeal to take effect at such date in the future as will afford opportunity for the presentation and allowance of all just claims.

The report of the commissioner of common schools shows that, upon the whole, the educational interests of the State continue to be very prosperous. He presents, however, for your consideration, a number of changes in the school laws, which he deems essential to further progress. The proposed reforms are treated of in his report under the following heads: normal instruction, supervision, a codification of the laws, and the township system.

The commanding position which Ohio has held in the great transactions of our recent civil and military history is largely due to the educational advantages enjoyed by her people. Every measure which tends to continue

and increase those advantages merits your earnest and favorable consideration.

For many years the most eminent teachers and friends of education have urged the necessity of establishing institutions for the instruction of teachers in the principles and duties of their high and honorable calling. A few thousand dollars of the school fund applied every year to this purpose will, it is believed, make the expenditures for school purposes vastly more beneficial to the State.

There are serious objections to the present mixed system of school management by means of township boards and sub-district directors. It is believed that this system ought to give place to the purely township system, in which all of the schools of the township are under the exclusive control of a board of education chosen by the electors of the township. This plan is in conformity with that which has been adopted with satisfactory results in most of our towns, and is sustained by the experience of other States in which the purely township system has been tried.

In several counties of the State colored children are practically deprived of the privilege of attending public schools. The denial of education to any citizen of Ohio is so manifestly unjust that it is confidently believed that the legislature needs only to be informed that such a wrong exists to promptly provide a remedy.

The official reports of the penitentiary, the Reform School for Boys, the Reform School for Girls, and the benevolent institutions of the State, which will be laid before you, show that the work of these institutions has during the past year been well done. They will, without question, receive from you all needed encouragement and support. It seems proper, however, to direct your attention to the urgent necessity of such legislation as will empower the boards of trustees and directors charged with the erection of buildings for the insane and for the orphans of deceased soldiers, to complete them as soon as practicable.

By the census of 1870 the number of insane persons in the State was 3,414. The number of patients under treatment in the insane asylums of the State was, last year, only 1,346. The trustees of the Soldiers' and Sailors' Orphans' Home report that the number of orphans in Ohio needing care is about eight hundred, and that the number cared for is only about two hundred and fifty.

These facts sufficiently demonstrate the importance of the suggestion here made.

I renew the recommendation heretofore made that the legislature provide for the erection of suitable monuments at the graves of General Harrison and General Hamer.

General Harrison has many titles to the grateful remembrance of the people of Ohio. He was one of the pioneers of the West, a soldier of honorable fame in two wars against the savages and in the war of 1812, a secretary and acting governor of the Northwest Territory before Ohio was organized, a law-maker of conspicuous usefulness at the State capital and at Washington, and was chief magistrate of the Nation at the time of his death. To honor him is to honor all who were eminent and useful in the early settlement of Ohio.

General Hamer served with distinction four times in the General Assembly; was the speaker of the house of representatives; was six years a member of Congress from the Brown county district, and died in Mexico in 1846, a volunteer from Ohio, in the service of his country, with the rank of brigadier-general. At the time of his death the General Assembly, with entire unanimity, "resolved that the body of the deceased be brought from Mexico and interred in the soil of Ohio, at the expense of the State." Having undertaken, as the duty of the State, to give the remains of General Hamer a fitting burial, the legislature can not regard that duty as completely performed until an appropriate monument has been built at his grave.

Since the adoption of the present constitution the governor's duties have compelled him to reside at the capital. If any change is made in respect to the powers and duties of the executive in the revision about to be made of the constitution, the change, it is probable, will increase rather than diminish his duties. The evident impropriety of subjecting each new incumbent of the office to the inconvenience and expense of procuring and furnishing a suitable residence for the short period of a governor's term of office has led, in many States, to the purchase of a governor's mansion. Three of the States adjoining Ohio have adopted this course. It can not be doubted that Ohio will, at no distant day, follow their example. The rapid increase in the value of real estate in Columbus in consequence of its present growth and its promise of continued prosperity in the future gives force to the suggestion that if the

State is to purchase a governor's residence at all it would be well to do it promptly.

The importance of wise legislation on the subject of railroads, in a State having the geographical position which belongs to Ohio, can not be over-estimated. The greater part of the trade and travel between the commercial and manufacturing States of the East and the agricultural States of the West, and of the business of the continental railways which connect the Atlantic and Pacific oceans, passes over the railroads of this State. Fourteen years ago, Governor Chase, speaking of the railroads of Ohio, said: "This vast interest, affecting vitally so many other interests, has grown suddenly to its present dimensions without system, without general organization, and, in some important respects, without responsibility." Then the railroads of the State carried annually about a million of passengers, and their gross receipts were about six millions of dollars a year. Last year they carried twelve millions of passengers, and their gross receipts exceeded thirty million of dollars.

All of the just powers of the corporations which conduct this immense business are derived from the laws of the State. If these laws fail to guard adequately the rights and the interests of our citizens, it is the duty of the General Assembly to supply their defects. Serious and well-grounded apprehensions are felt that in the management of these companies, which are largely controlled by non-residents of Ohio, practices, not sanctioned by the law, nor by sound morality, have become common, which are prejudicial to the interests of the great body of the people, and which, if continued, will ultimately destroy the prosperity of the State.

Regarding railroads as the most useful instrumentality by which intercourse is carried on between different sections of the country, the people do not desire the adoption of a narrow or unfriendly policy toward them. But it should be remembered that these corporations were created, and their valuable franchises granted by the legislature to promote the interests of the people of the State. No railroad company can sacrifice those interests without violating the law of its origin. It is not to be doubted that the authority of the General Assembly is competent to correct whatever abuses have grown up in the management of the railroads of the State.

The late commissioner of railroads and telegraphs, in his last able and valuable report, directs attention to a large number of what he terms "clear

and palpable violations of law" by railroad companies, which are of frequent occurrence.

In relation to the rates prescribed by law for the transportation of persons and property, he says: "There is not a railroad operated in the State, either under special charter or the general law, upon which the law regulating rates is not in some way violated nearly every time a regular passenger, or freight, or mixed train passes over it."

As to the laws regulating the occupation of streets and alleys by railroad tracks, the speed of locomotives in towns and cities, and railroad crossings, he says that statutes which he regards as wholesome are, "it is notorious, wholly ignored by some companies, and only partially obeyed by others."

He quotes the laws forbidding railroad officials from being interested in fast freight, express, or transportation companies, and from dealing in railroad securities, and adds, that "the violation of these laws is believed to be very common among railroad officials."

The commissioner also gives examples of the "increase or watering of stock" by railroad companies, and remarks, "the foregoing statements are the more striking in view of the fact that the stockholders in the company have been in receipt of regular semi-annual dividends for seven years of from six to ten per cent per annum."

The significance of this remark of the commissioner lies in the fact that the rates which railroad companies may charge for the transportation of passengers and freight may be prescribed by the General Assembly, whenever the net profits amount to ten per cent on the capital actually invested.

The interests involved are of such magnitude that all legislation ought to be based on the fullest and most accurate information which a careful investigation can furnish. I, therefore, recommend that a commission of five citizens, of whom the railroad commissioner shall be one, be organized, with ample powers to investigate the management of the railroad companies of the State, their legal rights, and the rights of the State and its citizens, and to report the information acquired, with a recommendation of such measures as the commission shall deem expedient.

During the past year, the traveling public has enjoyed, in Ohio, remarkable immunity from railroad accidents. According to the reports of the railroad

companies to the commissioner, not a single passenger has lost his life by the fault of the railroads in the State during the year. But the number of persons, "other than passengers," and of "employees" who have lost their lives, is quite large. One hundred and fifty-seven persons are reported to have been killed, and it is without doubt that many deaths have occurred which have not been reported. Many of these fatal accidents happened in the streets of towns and cities, and at street and road crossings. It is perfectly practicable to protect citizens from these dangers, by enforcing proper regulations as to the speed of trains, and as to the occupancy and crossing of streets and roads. Your special attention is called to this subject.

One of the most difficult and interesting practical problems which now engages the thoughts of the American people is how to maintain economy, efficiency, and purity in the administration of local affairs, and especially in the government of towns and cities, without a departure from principles and methods which are deemed essential to free popular government. Many of the most important functions of government are in the hands of the local authorities. They are directly charged with the expenditure of large sums of money, with the protection of life and property, and with the administration of civil and criminal justice. These duties, in one way or another, touch nearly and constantly the interests and feelings of every citizen. Upon their faithful performance depends the prosperity, happiness, and safety of the community. It is true that as yet Ohio is happily, in a great measure, free from the operation of causes which in the commercial metropolis of the country recently led to such extraordinary corruption in the government of that city. But those causes do not belong alone to the great cities of the East. They are already at work in our midst, and they are steadily and rapidly increasing in power. No political party is altogether free from their influence, and no political party is solely responsible for them. We have laws prohibiting almost every conceivable official neglect and abuse, and penalties are affixed to the violation of those laws which can not be regarded as inadequate. The difficulty is to secure their enforcement. Those whose duty it is to detect and prosecute are often interested in maintaining good relations with the wrong-doers. The contractors for public work and supplies not infrequently have a community of interest with those who are the agents of the public to let and superintend the performance of contracts. Where these abuses exist there is apt to be a large circle of apparently disinterested citizens, who labor to conceal the facts and to suppress investigation. What the public welfare

demands is a practical measure which will provide for a thorough and impartial investigation in every case of suspected neglect, abuse, or fraud. Such an investigation, to be effective, must be made by an authority independent, if possible, of all local influences. When abuses are discovered, the prosecution and punishment of offenders ought to follow. But even if prosecutions fail in cases of full exposure, public opinion almost always accomplishes the object desired. A thorough investigation of official corruption and criminality leads with great certainty to the needed reform. Publicity is a great corrector of official abuses. Let it therefore be made the duty of the governor, on satisfactory information that the public good requires an investigation of the affairs of any public office or the conduct of any public officer, whether State or local, to appoint one or more citizens who shall have ample powers to make such investigation.

If by the investigation violations of law are discovered, the governor should be authorized, in his discretion, to notify the attorney-general, whose duty it should be, on such notice, to prosecute the offenders. The constitution makes it the duty of the governor to "see that the laws are faithfully executed." Some such measure as the one here recommended is necessary to give force and effect to this constitutional provision.

In compliance with the constitution, the last General Assembly submitted to the people the question of holding a convention "to revise, alter, or amend" the constitution, and at the October election a large majority of the voters of the State decided in favor of a convention. It is the duty of the General Assembly, at its present session, to provide by law for the election of delegates and the assembling of the convention.

The vote on the question of calling the convention which formed the present constitution was taken at the October election, 1849. At the next session of the General Assembly an act was passed which provided for the election of delegates to the convention the first Monday of April, 1850, and the convention was convened on the first Monday of May following.

In conclusion, I wish to make my grateful acknowledgments to the people of Ohio for the honorable trusts they have confided to me, and to express the hope that the harmony, prosperity, and happiness which they now enjoy in such full measure may, under Providence, be perpetual.

Hayes, during his two terms as Governor, proposed and carried through the following measures of the first importance to the welfare of the State:

He recommended and had completed a comprehensive Geological Survey of Ohio.

He secured the establishment of a Soldiers' Orphans' Home.

He had the powers of the Board of State Charities restored and enlarged.

He had provision made for the care, by the State, of the chronic insane.

Under his direction the graded system was adopted in the State Prison and prison reforms introduced.

Minority representation on Election Boards was secured.

The Agricultural and Mechanical College was founded, trustees appointed, and the institution organized.

Portraits of the Governors of Ohio were placed in the State collection.

The suffrage amendment to the Constitution of the State was adopted.

The fifteenth amendment to the Constitution of the United States was ratified.

The Lincoln Memorial, an admirable work of art, was placed in the capitol.

The right of soldiers in the National Asylum to vote was restored.

The students' privilege of voting while attending college was given back.

The odious "visible admixture" law was repealed.

The St. Clair papers were purchased, and letters and manuscripts relating to pioneer history collected.

A Reform School for Girls was established and made successful.

The State debt was reduced, and all increase of debt opposed.

Can any Governor of any State say that he has done a better business?

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CHAPTER IX.

THIRD TIME ELECTED GOVERNOR.

The Senatorship declined—Army Banquet Speech—Third Time nominated for Congress—Glendale Speech—Declines a Federal Office—Making a Home—Nomination for Governor—Platform—Serenade Speech—Democratic Convention and Platform—Marion Speech of Hayes—Woodford—Grosvenor—Schurz—Inflation Drive—Interest in the Contest—Honest Money Triumphant—Third Inaugural.

Just as Governor Hayes was vacating the office of chief executive of Ohio, to which he had positively refused to be re-elected, he was offered and declined the Senatorship from that State. The proofs of this fact are before us. The circumstances were these: A Senator in Congress was to be elected by the State Legislature, in January, 1872, to succeed John Sherman. Mr. Sherman had secured the nomination and election of a majority of Republicans who were favorable to his own re-election; but the Republican majority on joint ballot was small. Before the meeting of the Republican caucus, a sufficient number of members to control the result, with the aid of the Democrats, proposed to Governor Hayes to stay out of the caucus, and, uniting the entire opposition to Sherman, secure his defeat.

Hayes had authoritative assurances that the Democratic members would support him, with a view of defeating Sherman; while the Independent or anti-Sherman Republicans, who held the balance of power, were importunate that he should allow himself to be their compromise candidate. But he firmly rejected all these overtures, and forbid the use of his name in connection with the matter in any manner whatever. A leading State Senator declared it "was most extraordinary to see the Senatorship refused, with the Presidency in prospect."

On the 7th of April, General Hayes delivered a speech in Cincinnati in response to the toast "Our Country," which contains thoughts worthy of reproduction. It was upon the occasion of the fifth annual banquet of the

Army of the Tennessee. After some general introductory remarks, the orator said:

"Consider the history of our country. It is the youngest of the nations. We are just beginning to look forward to the celebrations, five years hence, of the completion of the first century of its existence. This brief period, so crowded with interesting events, with great achievements in peace and war, and adorned with illustrious names in every honorable walk of life, has witnessed a progress in our country without a parallel in the annals of the race.

"Add to these considerations the visions of greatness and prosperity which the future opens to America, and we shall begin to see by what titles our country claims from all of her children admiration, gratitude, and loyal love.

"Those who are accustomed to take gloomy views of every event and every prospect, will perhaps remind us that all the parts of this picture have their dark side; that this extended and magnificent territory of ours must needs have rival interests hostile and dangerous to unity; that people differing in race, nationality, religion, language, and traditions will, with difficulty, be fused into one harmonious Nation; that written constitutions do not make a government unless their provisions are obeyed or enforced. As to our boasted history, they will point to pages darkened with grave crimes against the weaker races; and as to our future, they will tell us of the colossal fortunes which, under the sanction of law, are already consolidating in the hands of a few men—not always the best men—powers which threaten alike good government and our liberties.

"In reply to these views, it can not be denied that in a wide domain like ours, inhabited by people not always harmonious, something more than written constitutions are required. A mere paper government is not enough. The law, if not voluntarily obeyed, must be firmly enforced. To accomplish this there must be wisdom, moderation, firmness, not only in those who administer the government, but in the people, who, at last, are the government.

"The great task is to educate a whole people in these high virtues, to the end that they may be equal to their opportunities and to the dangers that surround them. The chief instrumentalities in this education are the home, the school, the platform, the pulpit, and the press, and all good men and women are the educators.

"Doubt and difficulty and danger lend to every human enterprise its chief interest and charm. Every man who fought in the Army of the Tennessee at Shiloh knows that the gloom and despondency in which the first day's battle closed, gave an added glory to the victory of the second day; that the victory is always most highly prized which, after a long and desperate struggle, is snatched at last from the very jaws of disaster and defeat.

"If, in the future of our country, trials and conflicts and calamities await her, it is but the common allotment of Providence to men. The brave and the good will (here always) find noble work and a worthy career, and will rejoice that they are permitted to live and to act in such a country as the American republic."

In July, 1872, Ex-Governor Hayes received a petition, signed by the most influential men in the second Congressional district in Cincinnati, asking him to accept a nomination for Congress. Scores of letters and telegrams were sent to him at Fremont, where he was detained by illness in his family, urging upon him the duty of sacrificing personal to public interests and consent to become a candidate. He refused absolutely. The nominating convention met August 6th, and the following telegram tells the story:

"In spite of your protests, you were nominated on first ballot. Great enthusiasm, and whole party lifted up. We assured Republicans that Governor Hayes never retreated when ordered to advance. Things are looking bright.

"RICHARD SMITH."

Two days after, a petition was forwarded, signed by two hundred influential Republican and non-partisan voters of the second district, containing the words, we "most urgently solicit you to accept the nomination given you."

His acceptance being demanded on the ground of duty, he returned to Cincinnati and made the canvass. At Glendale, on September 4, he delivered a lengthy speech, from which we take these extracts:

Fellow-citizens:

My purpose in addressing you this evening is to spread before the people of the second district my views on the questions of National policy which now engage the public attention.

In the present condition of the country, two things are of vital importance—peace and a sound financial policy. We want peace—honorable peace—with all nations; peace with the Indians, and peace between all of the citizens of all of the States. We want a financial policy so honest that there can be no stain on the National honor and no taint on the National credit; so stable that labor and capital and legitimate business of every sort can confidently count upon what it will be the next week, the next month, and the next year. We want the burdens of taxation so justly distributed that they will bear equally upon all classes of citizens in proportion to their ability to sustain them.

We want our currency gradually to appreciate, until, without financial shock or any sudden shrinkage of values, but in the natural course of trade, it shall reach the uniform and permanent value of gold. With lasting peace assured, and a sound financial condition established, the United States and all of her citizens may reasonably expect to enjoy a measure of prosperity without a parallel in the world's history.

When the debates of the last presidential election were in progress, four years ago, there were troubles with other nations threatening the public peace, and, in particular, there was a most difficult, irritating, and dangerous controversy with Great Britain, which it seemed almost impossible peaceably to settle. Now we are at peace with all nations; the American government is everywhere abroad held in the highest honor; and an example of submitting National disputes to the decision of a court of arbitration has been set, which is of incalculable value to the world.

Four years ago, and for a considerable period since, the public peace has been broken or threatened in a majority of the late slave States, by bands of lawless men, oath bound, disguised, and armed, who, by terror, by scourging, and by assassination, undertook to deprive unoffending citizens, both white and colored, of their most cherished rights, for no reason except a difference of political sentiment. Now these organizations have, it is claimed by their political associates, disbanded. Large numbers of citizens in those States, heretofore hostile to the recent amendments to the constitution, and to the equal rights of colored people, declare themselves satisfied with those amendments, and ready to maintain the constitutional rights of colored

citizens. Notwithstanding the predictions of our adversaries, that to confer political rights upon colored people would lead to a war of races, white people and colored people are now voting side by side in all of the old slave States, and their elections are quite as free from violence and disorder as they were when whites alone were the voters. In a word, peace prevails in the South to an extent which, under the circumstances, the ablest statesmen among our adversaries three years ago pronounced impossible. The watchword of the Republican party four years ago was "Let us have peace." A survey of every field where the public peace was then imperiled, of our affairs with foreign nations, with the Indians, and in the South, shows that the pledge implied in that famous watchword has been substantially made good, and that, if the people continue to stand by the government, the peace we now enjoy will be continued and enduring.

CIVIL SERVICE REFORM.

There are several questions relating to the present and the future which merit the attention of the people. Among the most interesting of these is the question of civil service reform.

About forty years ago a system of making appointments to office grew up, based on the maxim, "to the victors belong the spoils." The old rule—the true rule—that honesty, capacity, and fidelity constitute the highest claim to office, gave place to the idea that partisan services were to be chiefly considered. All parties in practice have adopted this system. Since its first introduction it has been materially modified. At first, the president, either directly or through the heads of departments, made all appointments. Gradually, by usage, the appointing power in many cases was transferred to members of Congress—to senators and representatives. The offices in these cases have become not so much rewards for party services as rewards for personal services in nominating and electing senators and representatives. What patronage the president and his cabinet retain, and what offices congressmen are by usage entitled to fill is not definitely settled. A congressman who maintains good relations with the executive usually receives a larger share of patronage than one who is independent. The system is a bad one. It destroys the independence of the separate departments of the government, and it degrades the civil service. It ought to be abolished. General Grant has again and again explicitly recommended reform. A majority of Congress has been unable to

agree upon any important measure. Doubtless the bills which have been introduced contain objectionable features. But the work should be begun. Let the best obtainable bill be passed, and experience will show what amendments are required. I would support either Senator Trumbull's bill or Mr. Jenckes' bill, if nothing better were proposed. The admirable speeches on this subject by the representative of the first district, the Hon. Aaron F. Perry, contain the best exposition I have seen of sound doctrine on this question, and I trust the day is not distant when the principles which he advocates will be embodied in practical measures of legislation. We ought to have a reform of the system of appointments to the civil service, thorough, radical, and complete.

The people of the United States will be agreeably surprised to learn that, four years ago, not only the sentiments, but almost the identical language of the recent letter of acceptance upon the subject of this great reform was publicly proclaimed by the Republican candidate for the presidency.

In 1872, when the Presidency was not in his thoughts, he advocated with great force the doctrines which Independent Republicans especially commend him for maintaining to-day. These opinions it would then be foolishly needless to say are honest; they are deep-rooted convictions of long growth.

The elections went heavily against the Republicans in Hamilton county, in 1872. Mr. Eggleston, the sitting member of Congress from the First District, was beaten three thousand five hundred and sixty-nine votes; and General Hayes was defeated by General H. B. Banning, whose majority was one thousand five hundred and two. Compared with the result in the First District, Hayes ran a thousand votes ahead of his ticket. He had performed his duty and was satisfied.

A few months later he was offered, by the President, the office of Assistant Treasurer of the United States, at Cincinnati, which appointment he respectfully declined.

The years 1873 and 1874 were employed by General Hayes in making and adorning a future home for himself and his family, near Fremont. He planted over a thousand trees, and filled his grounds with vines, shrubs, and flowers.

In January, 1874, his patron uncle and life-long friend Sardis Birchard died, leaving his favorite nephew heir to a considerable estate. It elevates our estimate of human nature to find that this heir-apparent, or rather heir

inevitable to a handsome fortune, diminished the amount he would naturally inherit by persuading his uncle to make bequests, amounting to seventy-five thousand dollars, to the citizens of Fremont for a Public Park and a Free Public Library. It is not necessary to add, that this unselfish course of action makes known character, nor to say what kind of a character it makes known.

The Republican State Convention, which assembled at Columbus, June 2, 1875, nominated General Hayes a third time for the office of Governor. He received the news of the nomination while playing base ball with his children at their home in Fremont. The circumstances of this nomination were extraordinary, and the honor it implied exceptional. The facts, in brief, were these: The Hon. William Allen having been put in nomination by the Democrats, for the office of Governor, in 1873, mainly through the influence of his nephew, Senator Thurman, was elected by a small majority in October of that year. Mr. Allen, as Governor, made himself active in the direction of economy and the reduction of taxation, and seemed to increase his popularity because of the high reputation he enjoyed for personal integrity. Early in 1875 it became apparent that he would secure, without opposition, a re-nomination. It became equally apparent, also, that the Republicans would encounter no slight difficulty in defeating him. He was in possession, he had the *prestige* of victory, and was immensely popular with his party. It was the plainest dictate of policy and duty for the Republicans to proceed with extremest caution and put in nomination their very strongest man. Personal ambitions and interests must be put aside in every great emergency, when the success of a cause is at stake. What every great emergency needs is a MAN. The eyes of the Republicans of Ohio were at the same period of time turned toward Hayes as that leader—that man. He was written to, from every portion of the State, to consent to become again a candidate. His uniform reply was, that he had retired finally and absolutely from public life, and that his tastes and interests would keep him at home. Some, receiving these responses in the spirit in which they were given, looked around for other candidates. In Cincinnati there was a strong local influence favoring Judge Taft, the able and most estimable gentleman who is now Attorney-General of the United States. Governor Hayes repeatedly announced that he would, under no circumstances, be a candidate against his friend, Judge Taft, and urged the delegates from his county to support Taft, which they did. Notwithstanding these facts, when the Convention met, the delegates, according to the public statement of General Grosvenor, were four to one in favor of Hayes'

nomination. On the first ballot, two hundred and seventy-four being necessary to a choice, Hayes received four votes less than four hundred, and Taft one hundred fifty-one. The nomination was made unanimous on motion of Judge Taft's son.

Finding himself once more an involuntary candidate for office, Governor Hayes lost no time in getting ready for the supreme struggle, thus far, of his life. Visiting, three weeks later, the home of his relative, General Mitchell, in Columbus, he was serenaded by the Hayes Club of the capital city, and, in response to their calls, foreshadowed the great issues of the approaching campaign. Without circumlocution, he said:

"If it shall turn out that the party in power are opposed to a sound, safe, stable currency, I have no doubt that in October the people will make a change. If it shall turn out that the party in power were guilty of gross corruption in the legislative department, and that when that corruption was exposed the majority shielded those who were implicated, I have no doubt the people will make a change. If it shall turn out that the party in power yielded to the dictation of an ecclesiastical sect, and through fear of a threatened loss of votes and power has suffered itself to be domineered over in its exercise of the law-making power, there ought to be, as I doubt not there will be, a great change. If it shall turn out that the party in power is dangerously allied to any body of men who are opposed to our free schools, and have proclaimed undying hostility to our educational system, then I doubt not the people will make a change in the administration."

The convention which nominated Hayes had adopted some sensible resolutions. It declared, first, that:

"The United States are one as a Nation, and all citizens are equal under the laws, and entitled to their fullest protection.

"Third. We are in favor of a tariff for revenue with incidental protection to American industry.

"Fourth. We stand by free education, our public school system, the taxation of all for its support, and no division of the school fund.

"Eleventh. The observance of Washington's example in retiring at the close of a second presidential term will be in the future, as it has been in the past, regarded as a fundamental rule in the unwritten law of the Republic."

The Democratic State Convention met on the 17th of June, and was presided over by Judge Rufus P. Ranney. It renominated Governor Allen by acclamation and a rising vote amidst great cheering.

The governor delivered an intemperate speech upon the occasion, in which his denunciation was about equally divided between the old alien and sedition laws and Grant's administration. Samuel F. Cary, nominated for lieutenant-governor, made a loud speech. Pendleton, Ewing, Thurman, Allen, and Cary spoke at the ratification meeting in the evening.

The platform contained the sound proposition that the president's services should be limited to one term, thereby endorsing a material part of Governor Hayes' letter of acceptance in advance. It also contained what some have called the rascally, others the asinine propositions that the volume of currency should be made and kept equal to the wants of trade; that all National Bank circulation should be promptly and permanently retired, and legal tenders be issued in their stead, and that the payment of at least one-half of the customs should be in legal tenders.

Senator Thurman, much to the surprise of his eastern friends, acquiesced in, or at least failed to denounce this inflation platform. He forgot the proverb that it is the bold man who wins. Had he made a ringing, thirty-minutes, hard-money speech on the occasion, no power on the continent could probably have kept him out of the White House. This was the day of his destiny, but the day of his destiny is over.

The public and non-partisan estimate of this Democratic platform is fairly reflected in the editorial utterances of the Cincinnati *Commercial* of June 18th, to the effect that:

"This platform is a declaration of war upon the National credit. The programme of repudiation is made particularly clear.... The contest in Ohio this summer in an extraordinary degree concerns the Nation."

The Chicago *Times* said:

"If Allen be elected, the immediate effect is very sure to be a prodigious rise in the threatening and dangerous tidal wave of inflation and repudiation. The political tradition which goes by the name of the Democratic party, will be forthwith pervaded in every part by an active and aggressive repudiation sentiment."

The inflation Democracy were not only hopeful but boastful. Governor Allen made and repeated the prediction that he would be re-elected by from 60,000 to 70,000 majority. He said that he would not compromise with Hayes on 20,000. It was represented that the hard times were caused by the Republicans, and that the people wanted "more money," which interpreted meant more debts or due bills. Much was said on the stump about what "the people think," forgetting that the material question is not what they think, but what they ought to think.

Governor Hayes was not unmindful of the national and international importance of the contest. Knowing that the Democrats had carried the State the year before by a majority of 17,000 on their State ticket and 24,000 on their Congressional ticket, he did not underrate the difficulties to be contended with in the struggle. Several Republican members of Congress had taken the inflation shute, and were continually writing him not to be too decided; that a little more currency would be a good thing. But he buckled on his hard-money armor, and going into the contest early, delivered at Marion, Lawrence county, the sound and solid speech which closes this volume. Thus, in the midst of the miners and furnace men who were suffering most from hard times and clamoring most loudly for more money, Hayes boldly proclaimed his sound currency creed, and opposed inflation to the extent of a dollar.

Strong men came from other States to aid him in this battle against odds. The strongest in this kind of battle were Stewart L. Woodford, of New York, and Schurz and Grosvenor, of Missouri. General Woodford, in the dozen debates he conducted with General Ewing, the ablest of the inflationists, developed debating abilities of the first order, and exhibited a complete mastery of the science of finance.

Colonel Wm. M. Grosvenor showed the same powers on the stump he had shown as a writer, and presented arguments which will probably remain unanswered for some centuries to come.

Carl Schurz appeared late in the field, upon the call of two hundred merchants of Cincinnati, who assured him that the cause of "National honor and common honesty" was involved, and delivered a half dozen superb speeches. Senator Morton, Senator Oglesby, Senator Windom, and Senators Sherman, Dawes, and Boutwell took part in the canvass.

Attorney-General Taft, Ex-Governor Noyes, Garfield, Monroe, Foster, Danford, and Lawrence strengthened the State forces.

We can not waste time upon the dreary drivel on the inflation side of this campaign. Men who have not learned the elementary principles of the science of political economy, who have not mastered the definitions, as we say, in geometry, could say nothing intelligible to the finite understanding. The speeches were as "incoherent" as the *New York World* proved the platform to be. They all contained doctrines, however, in perpendicular antagonism to the financial doctrines of the St. Louis convention. When the inflationists learn what money is—what its office, its function is—they may be able to resume the discussion of finance with their opponents in the Democratic party.

After a campaign which called forth almost daily leaders from the press of New York and London, and aroused the interest of Europe, General Hayes was a third time elected governor of Ohio by a majority of 5,544.

The character of the contest lifted him from a State leader to a national, an international man, and made the presidency a possibility. We now leave the reader to engage in the profitable pleasure of reading the only Ohio governor's third inaugural:

Fellow-citizens of the General Assembly:

Questions of National concern, in the existing condition of public affairs, may well be left to those officers to whom the people, in conformity with the constitution of the United States, have confided the important duties and responsibilities of the various departments of the general government.

During the term for which you have been elected, the constitution of the State devolves on you the task of dealing with many subjects very interesting to the people of Ohio. The duty of communicating to you the condition of the State, and of recommending measures deemed expedient, was performed at the opening of your present session by the distinguished citizen who has preceded me in the executive office. In complying with the usage which requires me to appear before you on this occasion, I am, therefore, relieved from the necessity of entering upon any extensive examination of the subjects which will claim your attention. There are, however, a few topics on which brief suggestions may, perhaps, be profitably submitted.

The attention of the legislature has often been earnestly invoked to the rapid increase of municipal and other local expenditures, and the consequent augmentation of local taxation and local indebtedness. This increase is found mainly in the cities and large towns. It is certainly a great evil. How to govern cities well, consistently with the principles and methods of popular government, is one of the most important and difficult problems of our time. Profligate expenditure is the fruitful cause of municipal misgovernment. If a means can be found which will keep municipal expenses from largely exceeding the public necessities, its adoption will go far toward securing honesty and efficiency in city affairs. In cities large debts and bad government go together. Cities which have the lightest taxes and smallest debts are apt, also, to have the purest and most satisfactory governments.

The following statement, showing the increase of municipal taxation and indebtedness in the cities and large towns of Ohio, ought to arrest attention:

In 1871, in thirty-one of the principal cities and towns of the State, the average rate of taxation was twenty-three and one-tenth mills on the dollar. The total amount of taxes levied for all purposes was \$8,988,064. The total indebtedness was \$7,187,082.

In 1875, in the same cities and towns, the average rate of taxation was twenty-eight and three-tenths mills on the dollar. The total amount of taxes levied for all purposes was \$12,361,934. The total indebtedness was \$20,800,491.

The salient points in this statement are, that in four years the rate of municipal taxation has increased almost 25 per cent; the total amount of municipal taxes has increased over thirty-seven per cent, and municipal indebtedness has increased about one hundred and ninety per cent, or more than thirteen and a half millions of dollars. If this great increase of burdens affected directly the whole people of the State, they would give their agents in the legislative and executive departments of the State government no peace until effective measures to prevent its continuance were adopted. But, in fact, the whole people of the State are deeply interested in this subject. The burdens borne by the cities and towns must be shared, in part at least, by all who transact business with them. The town and the neighboring country have a common interest, and, in many respects must be regarded as one community.

It has been said that the discretion committed to the local authorities, however limited and guarded, must be necessarily large; that in respect to the

imposition of the largest proportion of the burden imposed upon the citizen, they constitute the real legislature; and that for the prevention of the evils we are considering, the people must exercise the greatest care in the choice of citizens to fill the important local offices. Experience does not seem to justify the expectation that an adequate remedy can be obtained in this way.

I submit that to the subject of local indebtedness the General Assembly should apply the principles of the State constitution on the subject of State indebtedness.

It is not enough to require in every grant of special authority to incur debt as a condition precedent that the people interested shall approve it by their votes. It is well known how easily such elections are carried under the influence of local excitement and local rivalries. If the rule of the State constitution which forbids all debts except in certain specified emergencies is deemed too stringent to be applied to local affairs, the legislature should at least accompany every authority to contract debt with an imperative requirement that a tax sufficient to pay off the indebtedness within a brief period shall be immediately levied, and thus compel every citizen who votes to increase debts to vote at the same time for an immediate increase of taxes sufficient to discharge them.

The wisdom of the policy long since adopted of placing a judicious limitation on the power of municipal authorities to levy taxes has been vindicated by experience. It must, however, ultimately fail to accomplish its object if the increase of municipal indebtedness is allowed to go on. To authorize a town to contract a debt, whose expenditures already require taxation up to the limit allowed by law, is, in its necessary effect, tantamount to a repeal of the limitation.

Under the provisions of the eighth article of the constitution, already referred to, the State debt, notwithstanding the extraordinary expenditures of the war, has been reduced from over twenty millions, the amount due in 1851, until it is now only about seven millions. An important part of the constitutional provisions which have been so successful in State finances is the section which requires the creation of a sinking fund and the annual payment of a constantly increasing sum on the principal of the State debt. Let a requirement analogous to this be enacted in regard to existing local indebtedness; let a judicious limitation of the rate of taxation which local authorities may levy be

strictly adhered to, and allow no further indebtedness to be authorized except in conformity with these principles; and we may, I believe, confidently expect that within a few years the burdens of debt now resting upon the cities and towns of the State will disappear, and that other wholesome and much needed reforms in the whole administration of our municipal government will of necessity follow the adoption of what may be called the cash system in local affairs.

Among the most interesting duties you will have to perform are those which relate to the guardianship and care of the unfortunate classes of society and to the punishment and reformation of criminals. According to the latest official reports the State is responsible for the support and care of about fifteen thousand of her dependent citizens. The State is also bound to see that many thousands more, who are imprisoned for longer or shorter periods on account of crime, have just and wise treatment. There is annually expended in the performance of these duties a sum exceeding two and a half millions of dollars. The people of Ohio feel a profound interest in what are known as the benevolent, reformatory, and penal institutions of the State.

In order that the General Assembly might from time to time receive full and accurate information as to the efficiency of the management of these institutions, and of the county and city jails, infirmaries, and work-houses, it was enacted in 1867 that a Board of State Charities be established. It was intended that this board should be composed of citizens of intelligence and benevolence, who would serve without compensation. They were "to investigate the system of the public charitable and correctional institutions of the State, and to make such recommendations as they might deem necessary." They were also required to make annually a full and complete report of their doings to the legislature. In pursuance of this law a board was organized, which, at a trifling expense to the State, did much valuable work. By reason of their investigations and reports, important improvements were introduced into the infirmaries and jails of the State, and the general efficiency of our penal and reformatory system was increased. In 1872 the General Assembly, without due consideration, it is believed, repealed the act creating the board. I respectfully recommend that the Board of State Charities be re-established.

It is believed that an investigation in the interest of economy will discover that several offices, somewhat expensive to the State, may, without detriment

to the public service, be either abolished, or so consolidated as to accomplish a material saving to the treasury.

Agreeing generally with the sentiments of Governor Allen's recent message, I desire especially to concur in what is said on the subject of the National Centennial Celebration.

No community in the world has been permitted by Providence to enjoy more largely the blessings conferred on mankind by the great event of 1776 than the people of Ohio. Ohio and her interests had no existence one hundred years ago. They are the growth of less than a century. The people naturally wish that their State, and her history, and her advantages should be widely known. No other such opportunity for their exhibition will probably occur for several generations.

Let your session be short—avoid all schemes requiring excessive expenditure, whether State or local, and your constituents will cheerfully approve the appropriation required to secure to Ohio a fitting representation in the approaching celebration of the Nation's birth.

Before taking the oath of office, I desire to make my acknowledgments to my predecessor, Governor Allen, for the friendly and considerate way in which he has treated me, both during and since the recent political contest in Ohio; and to express the wish, in which I am sure you and all the people whom he has served will unite with me, that, returning to his beautiful home overlooking the ancient capital of our State, he may enjoy for many years to come the best blessings which belong to this stage of existence.

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CHAPTER X.

NOMINATION TO THE PRESIDENCY.

Early Suggestions—Letters on Subject—Garfield Letter—Action of State Convention—Cincinnati Convention—Course of his Friends—First and Second Day's Events—Speech of Noyes—Balloting—Nominated on Seventh Ballot—Officially Notified—Habits—Personal Appearance—Family—Letter of Acceptance—Character as a Soldier, Magistrate, and Man—Domestic Surroundings..

No able man can for a long time fill the office of chief magistrate of one of the three great States of the Union without having his name more or less mentioned by his friends in connection with the presidency. As early as October, 1871, the president of the Chamber of Commerce of Cincinnati, at a large public meeting held in that city just prior to the fall election, introduced Governor Hayes as the next Republican candidate for President of the United States.

In 1872 a modest poet was inspired by the surrounding sentiment to sing:

"We bow not down to yonder rising sun,
As did the Parsee worshiper of old,
But bend in homage when its race is run,
And watch it sink in purple-fretted gold.
And thus to thee, oh Hayes! the tried, the true,
On battle-field and in the civic chair,
Our heart's deep gratitude, thy meed and due,
(As closes far too soon thy proud career),
Goes out with benedictions pure and high:
Oh may thy set be brief, and, like the sun,
Rise thou again—thy light to fill the sky,
A brighter course of glory still to run,
Till millions now unborn shall hail thy name
In ages yet to come, with grand acclaim!"

Early in 1875 he was overwhelmed with letters urging upon him the acceptance of the third nomination for governor. Many of these letters presented as an inducement in favor of acceptance that if he ran for governor and succeeded in beating Allen, the prize of the presidency would be within his reach. To one of these letters from a leading editor he replied on April 10:

"The personal advantages you suggest rather tend to repel me. The melancholy thing in our public life is the insane desire to get higher.... But now I can't take that direction, and I will be ever so much obliged if you will help drop me out of it as smoothly as may be."

To a member of the State legislature he wrote:

"Content with the past, I am not in a state of mind about the future. It is for us to act well in the present. George E. Pugh used to say there is no political hereafter."

In the canvass of 1875, so much were the hearts of the people set upon having their great State leader the National leader, that the masses were invited in announcements for political meetings to come out and hear "the next President of the United States."

As illustrating the firmness of Governor Hayes in adhering to convictions, we give below a letter addressed to Hon. James A. Garfield. It must be remembered that at the time this letter was written the paper money madness prevailed through Ohio and in Congress to an alarming extent.

EXECUTIVE DEPARTMENT, STATE OF OHIO, }

COLUMBUS, *March 4, 1876.*

My Dear General:

I have your note of 2d. I am kept busy with callers, correspondence, and the routine details of the office, and have not therefore tried to keep abreast of the currents of opinion on any of the issues. My notion is that the true contest is to be between inflation and a sound currency. The Democrats are again drifting all to the wrong side. We need not divide on details, on methods, or time when.

The previous question will again be irredeemable paper as a permanent policy, or a policy which seeks a return to coin. My opinion is decidedly against yielding a hair's breadth.

We can't be on the inflation side of the question. We must keep our face, our front, firmly in the other direction. "No steps backward," must be something more than unmeaning platform words. "The drift of sentiment among our friends in Ohio," which you inquire about, will depend on the conduct of our leading men. It is for them to see that the right sentiment is steadily upheld. We are in a condition such that firmness and adherence to principle are of peculiar value just now. I would "consent" to no backward steps. To yield or compromise is weakness, and will destroy us. If a better resumption measure can be substituted for the present one, that may do. But keep cool. We can better afford to be beaten in Congress than to back out.

Sincerely,

R. B. HAYES.

Here is high courage and lofty political morality. The letter proclaims the grand truth that the only inquiry worthy of a statesman is, not what the tendency of public opinion is, but what ought it to be?

To a delegate to the Cincinnati Convention he wrote, under date of April 6:

"Having done absolutely nothing to make myself the candidate of Ohio, I feel very little responsibility for future results. When the State Convention was called it seemed probable that if I encouraged my friends to organize for the purpose, every district would elect my decided supporters. But to make such an effort in my own behalf, to use Payne's phrase on repudiation, 'I abhorred.'"

The Republican State Convention, which met March 29, had passed, by a unanimous vote, and with boundless enthusiasm, the following resolution:

"The Republican party of Ohio, having full confidence in the honesty, ability, and patriotism of Rutherford B. Hayes, cordially presents him to the National Republican Convention, for the nomination for president of the United States, and our State delegates to that Convention are instructed and the district delegates are requested to use their earnest efforts to secure his nomination."

We shall not stop to trace the growth of the Hayes sentiment in other States. When the Sixth Republican National Convention assembled in Cincinnati, on June 14, 1876, the situation was this: Hayes was the first choice of every one for the second place on the ticket, and every one's second choice for the first. He and his friends had in no way antagonized other candidates, and had been guilty of no uncharitableness of judgment toward them. In the convention, he was modestly presented as the one candidate who could harmonize all interests, and unite all party elements. His friends argued that he combined merit and availability to a higher degree than any one whose name was before the convention.

The spirit of the convention was good, and there seemed a willing response to this portion of the opening prayer:

"By Thy grace, give to them a spirit of concord, that harmony may prevail in their counsels; a spirit of wisdom that may discern and use the right means to promote the end for which they are convened; a spirit of patriotism, that the prosperity of the Nation may overshadow all personal or sectional desires; a spirit of courage, that they may be faithful to the deepest convictions of duty."

Ex-Governor Morgan, of New York, Chairman of the National Executive Committee, in his opening address, pertinently said:

"Resumption accomplished, then, in all human probability, will follow ten or fifteen years of prosperity, equal to that of any former period, perhaps greater than the country has yet seen. If you will, in addition, put a plank in your platform, declaring for such an amendment of the constitution as will extend the presidential office to six years, and make the incumbent ineligible for re-election, you will deserve the gratitude of the American people."

The Hon. Theodore M. Pomeroy, Temporary Chairman, forcibly declared:

"No, gentlemen, the late war was not a mere prize-fight for National supremacy. It was the outgrowth of the conflict of irreconcilable moral, social, and political forces. Democracy had its lot with the moral, social, and political forces of the cause which was lost; the Republican party with those which triumphed and survived. The preservation of the results of that victory devolves upon us here and now. Democracy has no traditions of the past, no impulses of the present, no aspirations for the future, fitting it for this task. The reaction of 1874 has already spent itself in a vain effort to realize the

situation. It has simply demonstrated that no change in the machinery of the government can be had outside of the Republican party, without drawing with it a practical nullification of the great work of reconstruction, financial chaos, and administrative revolution. The present House of Representatives has succeeded in nothing except the development of its own incapacity."

The additional speeches delivered on the first day (which was devoted to organization) were by Senator Logan, General Joseph R. Hawley, Ex-Governor Noyes, Rev. Henry Highland Garnett, Ex-Governor Wm. A. Howard, of Michigan, and Fred. Douglass.

Mr. Douglass was vociferously applauded, when he said:

"The thing, however, in which I feel the deepest interest, and the thing in which I believe this country feels the deepest interest, is that the principles involved in the contest which carried your sons and brothers to the battle-field, which draped our Northern churches with the weeds of mourning, and filled our towns and our cities with mere stumps of men—armless, legless, maimed, and mutilated—the thing for which you poured out your blood and piled a debt for after-coming generations higher than a mountain of gold, to weigh down the necks of your children and your children's children—I say those principles, those principles involved in that tremendous contest, are to be dearer to the American people in the great political struggle now upon them than any other principles we have."

The most significant event of the first day's proceedings was the reading from the platform, by George William Curtis, of the outspoken address of the Republican Reform Club of the city of New York.

The Hon. Edward McPherson, of Pennsylvania, was chosen permanent chairman. The important events of the second day's proceedings were the adoption of the platform and the putting presidential candidates in nomination. The candidate the convention subsequently selected was placed in nomination by Ex-Governor Noyes, of Ohio, through the following eminently appropriate speech:

GENTLEMEN:—On behalf of the forty-four delegates from Ohio, representing the entire Republican party of Ohio, I have the honor to present to this convention the name of a gentleman well known and favorably known throughout the country; one held in high respect, and much beloved, by the

people of Ohio; a man who, during the dark and stormy days of the rebellion, when those who are invincible in peace and invisible in battle were uttering brave words to cheer their neighbors on, himself, in the fore-front of battle, followed his leaders and his flag until the authority of our government was established from the lakes to the Gulf, and from the river round to the sea. A man who has had the rare good fortune since the war was over to be twice elected to Congress from the district where he resided, and subsequently the rarer fortune of beating successively for the highest office in the gift of the people of Ohio, Allen G. Thurman, George H. Pendleton, and William Allen. He is a gentleman who has somehow fallen into the habit of defeating Democratic aspirants for the Presidency, and we in Ohio all have a notion that from long experience he will be able to do it again. In presenting the name of Governor Hayes, permit me to say we wage no war upon the distinguished gentlemen whose names have been mentioned here to-day. They have rendered great service to their country, which entitles them to our respect and to our gratitude. I have no word to utter against them. I only wish to say that General Hayes is the peer of these gentlemen in integrity, in character, in ability. They appear as equals in all the great qualities which fit men for the highest positions which the American people can give them. Governor Hayes is honest; he is brave; he is unpretending; he is wise, sagacious, a scholar, and a gentleman. Enjoying an independent fortune, the simplicity of his private life, his modesty of bearing, is a standing rebuke to the extravagance—the reckless extravagance—which leads to corruption in public and in private places.

Remember now, delegates to the convention, that a responsible duty rests upon you. You can be governed by no wild impulse. You can run no fearful risks in this campaign. You must, if you would succeed, nominate a candidate here who will not only carry the old, strong Republican States, but who will carry Indiana, Ohio, and New York, as well as other doubtful States. We care not who the man shall be, other than our own candidate. Whoever you nominate, men of the convention, shall receive our heartiest and most earnest efforts for their success. But we beg to submit that in Governor Hayes you have those qualities which are calculated best to compromise all difficulties, and to soften all antagonisms. He has no personal enemies: His private life is so pure that no man has ever dared to assail it. His public acts throughout all these years have been above suspicion even. I ask you, then, if, in the lack of these antagonisms, and with all of these good qualities, living in a State which

holds its election in October, the result of which will be decisive, it may be, of the presidential campaign—it is not worth while to see to it that a candidate is nominated against whom nothing can be said, and who is sure to succeed in the campaign?

In conclusion, permit me to say that, if the wisdom of this convention shall decide at last that Governor Hayes' nomination is safest, and is best, that decision will meet with such responsive enthusiasm here in Ohio as will insure Republican success at home, and which will be so far-reaching and wide-spreading as to make success almost certain from the Atlantic to the Pacific.

The nomination was seconded by Benjamin F. Wade, of Ohio, Colonel J. W. Davis, of West Virginia, Hon. A. St. Gem, and Hon. J. P. Jones, of Missouri.

The third and last day of the sitting of the Convention was employed in balloting and in making the nominations.

At twenty minutes to 11 the balloting for president began:

FIRST BALLOT.

STATES.	Blaine	Morton	Conkling	Bristow	Hayes	Hartranft	Wheeler	Jewell
Alabama	10	...	...	7	2	...	...	1
Arkansas	...	12	...	...	...	...	...	...
California	9	...	1	2	...	...	...	...
Connecticut	...	...	...	2	...	...	...	10
Delaware	6	...	...	...	...	...	...	...
Florida	1	4	8	...	...	...	...	...
Georgia	5	6	8	3	...	...	...	...
Illinois	38	...	...	3	1	...	...	...
Indiana	...	30	...	...	...	...	...	...
Iowa	22	...	...	...	...	...	...	...
Kansas	10	...	...	...	...	...	...	...
Kentucky	...	...	...	24	...	...	...	...
Louisiana	2	14	...	...	...	...	...	...
Maine	14	...	...	...	...	...	...	...
Maryland	16	...	...	...	...	...	...	...

Massachusetts	6	...	...	17	...	...	3	...
Michigan	8	...	1	9	4	...	...	...
Minnesota	10	...	...	...	...	...	...	...
Mississippi	...	12	...	3	...	...	...	...
Missouri	14	12	1	2	1	...	...	...
Nebraska	6	...	...	...	...	...	...	...
Nevada	...	...	2	3	1	...	...	...
New Hampshire	7	...	...	3	...	...	...	...
New Jersey	13	...	...	...	5	...	...	...
New York	...	...	69	1	...	...	...	...
North Carolina	9	2	7	1	...	...	...	...
Ohio	...	...	...	...	44	...	...	...
Oregon	6	...	...	...	...	...	...	...
Pennsylvania	...	...	...	...	...	58	...	...
Rhode Island	2	...	...	6	...	...	...	...
South Carolina	...	13	...	1	...	...	...	...
Texas	2	5	3	6	...	...	...	...
Tennessee	4	10	...	10	...	...	...	...
Vermont	1	...	...	8	1	...	...	...
Virginia	16	3	3	...	...	...	...	...
West Virginia	8	...	...	...	2	...	...	...
Wisconsin	20	...	...	...	...	...	...	...
Arizona	2	...	...	...	...	...	...	...
Colorado	6	...	...	...	...	...	...	...
Dakota	2	...	...	...	...	...	...	...
Idaho	2	...	...	...	...	...	...	...
Montana	2	...	...	...	...	...	...	...
New Mexico	2	...	...	...	...	...	...	...
Utah	2	...	...	...	...	...	...	...
District of Columbia	...	2	...	...	...	...	...	...
Washington	2	...	...	...	...	...	...	...

Wyoming	1	...	...	1	...	...	...	...
Totals	285	125	99	113	61	58	3	11

The second ballot resulted as follows: Blaine, 296; Morton, 120; Bristow, 114; Conkling, 93; Hayes, 64; Hartranft, 63; Wheeler, 3; Washburne, 1.

Third ballot: Blaine, 293; Bristow, 121; Morton, 113; Conkling, 90; Hartranft, 08; Hayes, 67; Wheeler, 2; Washburne, 1.

Fourth ballot: Blaine, 292; Bristow, 126; Morton, 108; Conkling, 84; Hartranft, 71; Hayes, 68; Washburne, 3; Wheeler, 2.

Fifth ballot: Whole number of votes cast, 755. Necessary to a choice, 378. Not voting, 1. Blaine, 286; Morton, 95; Bristow, 114; Conkling, 82; Hayes, 104; Hartranft, 69; Wheeler (Mass.), 2; Washburne, (Ga. 1, 111. 1, Minn. 1), 3.

On this ballot Hayes passed from the fifth to the third place, through the aid of 22 votes cast for him by Michigan, and 12 by North Carolina. This was the first distinct foreshadowing of the result.

On the sixth ballot Hayes was second, the vote standing: Blaine, 308; Hayes, 113; Bristow, 111; Morton, 85; Conkling, 81; Hartranft, 50; Washburne, 5; Wheeler, 2.

The decisive ballot stood:

SEVENTH BALLOT.

STATES.	Hayes	Blaine	Bristow
Alabama	...	17	3
Arkansas	1	11	...
California	3	16	...
Connecticut	3	2	7
Delaware	...	6	...
Florida	...	8	...
Georgia	7	14	1
Illinois	3	35	5
Indiana	25	...	5

Iowa	...	22	...
Kansas	...	10	...
Kentucky	24	...	...
Louisiana	2	14	...
Maine	...	14	...
Maryland	...	16	...
Massachusetts	21	5	...
Michigan	22	...	...
Minnesota	1	9	...
Mississippi	16	...	...
Missouri	10	20	...
Nebraska	...	6	...
Nevada	6	...	...
New Hampshire	3	7	...
New Jersey	6	12	...
New York	61	9	...
North Carolina	20	...	...
Ohio	44	...	...
Oregon	...	6	...
Pennsylvania	28	30	...
Rhode Island	6	2	...
South Carolina	7	7	...
Texas	15	1	...
Tennessee	18	6	...
Vermont	10	...	...
Virginia	8	14	...
West Virginia	4	6	...
Wisconsin	4	16	...
Arizona	...	2	...
Colorado	...	6	...
Dakota	...	2	...
Idaho	...	2	...
Montana	2	...	...
New Mexico	...	2	...

Utah	...	2	...
District of Columbia	...	2	...
Washington	...	2	...
Wyoming	2	...	...
Totals	381	351	21

The nomination of Governor Hayes was received with indescribable enthusiasm, with long-continued cheering, and every other demonstration of joy and delight.

Outside of Ohio the State that contributed most to this far-reaching result was Michigan. From the fact that Mr. Bristow telegraphed to the Kentucky delegation several hours before the crisis was reached to cast their votes for Hayes, that State should share, after Michigan, the honor of achieving the grand result. Indiana, North Carolina, and New York followed close upon Kentucky, if it is possible to compare the value of the aid each State brought.

On motion of the Hon. Wm. P. Frye, of Maine, Rutherford B. Hayes was declared the unanimous choice of the Republican National Convention for President of the United States.

This great convention concluded its labors by nominating the able and incorruptible Wm. A. Wheeler, of New York, for vice-president by acclamation.

On the 17th of June, the day following the nomination, the committee appointed by the convention to notify Governor Hayes of the fact presented themselves in the executive office at Columbus.

Mr. McPherson, the chairman, approaching him, said:

"GOVERNOR HAYES: We have been deputed by the National convention of the Republican party, holden at Cincinnati on the 14th of the present month, to inform you officially that you have been unanimously nominated by that convention for the office of President of the United States. The manner in which that action was taken, and the response to it from every portion of the country, attest the strength of the popular confidence in you and the belief

that your administration will be wise, courageous, and just. We say, sir, your administration, for we believe that the people will confirm the action of the convention, and thus save the country from the control of the men and the operations of the principles and policy of the Democratic party. We have also been directed to ask your attention to the summary of the Republican doctrine contained in the platform adopted by the convention. In discharging this agreeable duty we find cause of congratulation in the harmonious action of the convention, and in the hearty response given by the people we see the promise of assured success. Ohio, we know, trusts and honors you. Henceforth you belong to the whole country. Under circumstances so auspicious, we trust you will indicate your acceptance of the nomination."

The governor, who had had no intimation as to what the length or character of the address would be, was left in doubt with respect to the response expected from him by the committee. He, however, without embarrassment, but in an intentionally subdued tone of voice, gave this appropriately brief reply:

"SIR: I have only to say in response to your information that I accept the nomination. Perhaps at the present time it would be improper for me to say more than this, although even now I should be glad to give some expression to the profound sense of gratitude I feel for the confidence reposed in me by yourselves and those for whom you act. At a future time I shall take occasion to present my acceptance in writing, with my views upon the platform."

Since his nomination for the presidency, Governor Hayes has changed in no perceptible respect the habits, recreations, or labors of his daily life. He rises early and accomplishes much work before breakfast. He labors in the executive office in the capitol from nine until five, discharging his varied duties as governor, answering or dictating the answers to be given his official, political, and private correspondence, and remaining at all times accessible to visitors of every age, sex, color, and condition, who seek to see him. His evenings are passed with his family, or at the social parties of his many friends. He makes his customary trips to his home and farms near Fremont, and, while profitably managing large property interests, finds time to devote to pioneer history, to domestic architecture, to gardening, to

general literature, to languages, and other liberal studies and pursuits. He is sobered, but not overpowered or oppressed by the new responsibilities cast upon him. He suffers himself to be—as he ever has been—natural. Moderate, discreet, and wise in all things as he has been in the past and is in the present, he is conspicuously one who grows wiser each day that he lives.

Governor Hayes has reached the age of fifty-four, is five feet nine inches in height, and weighs one hundred and eighty pounds. Perfect health and habits leave him just in the ripe maturity of physical manhood and mind. His shoulders and breast are broad, his frame solid and compact, his limbs muscular and strong. He has a fresh, ruddy complexion, is full of activity and elasticity, and is very fond of the amusements of young people. He has an exceptionally high and full forehead, a prominent nose, and bluish-gray eyes. A heavy sandy mustache and beard, which are silvered a little, conceal his mouth and chin. His light-brown hair is thin and slightly sprinkled with gray.

The Governor is the father of eight children, five of whom are now living. Those still living were born as follows: Birchard Austin, November 4, 1853; Webb Cook, March 20, 1856; Rutherford Platt, June 24, 1858; Fanny Hayes, September 2, 1867; Scott Russell, February 8, 1871.

The youngest of these children was born in Columbus, the others in Cincinnati. The oldest son graduated at Cornell University, in the class of 1874, and is now at the Harvard Law School. The second son passed three years at Cornell, and is now at home. The third son is at Cornell.

Three weeks from the day that Governor Hayes was nominated for the Presidency, his private secretary, Captain A. E. Lee, put upon the telegraphic wires, at Columbus, the following accurate copy of:

THE LETTER OF ACCEPTANCE.

COLUMBUS, OHIO, *July 8, 1876.*

Hon. Edward McPherson, Hon. Wm. A. Howard, Hon. Joseph H. Rainey, and others, Committee of the Republican National Convention.

GENTLEMEN: In reply to your official communication of June 17, by which I am informed of my nomination for the office of President of the United States by the Republican National Convention at Cincinnati, I accept the nomination with gratitude, hoping that, under Providence, I shall be able, if elected, to execute the duties of the high office as a trust for the benefit of all the people.

I do not deem it necessary to enter upon any extended examination of the declaration of principles made by the convention. The resolutions are in accord with my views, and I heartily concur in the principles they announce. In several of the resolutions, however, questions are considered which are of such importance that I deem it proper to briefly express my convictions in regard to them.

The fifth resolution adopted by the convention is of paramount interest. More than forty years ago, a system of making appointments to office grew up, based upon the maxim "To the victors belong the spoils." The old rule, the true rule, that honesty, capacity, and fidelity constitute the only real qualifications for office, and that there is no other claim, gave place to the idea that party services were to be chiefly considered. All parties, in practice, have adopted this system. It has been essentially modified since its first introduction. It has not, however, been improved.

At first the president, either directly or through the heads of departments, made all the appointments. But gradually the appointing power, in many cases, passed into the control of members of Congress. The offices, in these cases, have become not merely rewards for party services, but rewards for services to party leaders. This system destroys the independence of the separate departments of the government; it tends directly to extravagance and official incapacity; it is a temptation to dishonesty; it hinders and impairs that careful supervision and strict accountability by which alone faithful and efficient public service can be secured; it obstructs the prompt removal and sure punishment of the unworthy. In every way it degrades the civil service and the character of the government. It is felt, I am confident, by a large majority of the members of Congress, to be an intolerable burden, and an unwarrantable hindrance to the proper discharge of their legitimate duties. It ought to be abolished. The reform should be thorough, radical, and complete.

We should return to the principles and practice of the founders of the government, supplying by legislation, when needed, that which was formerly established custom. They neither expected nor desired from the public officer any partisan service. They meant that public officers should owe their whole service to the government and to the people. They meant that the officer should be secure in his tenure as long as his personal character remained untarnished, and the performance of his duties satisfactory. If elected, I shall conduct the administration of the government upon these principles; and all constitutional powers vested in the executive will be employed to establish this reform.

The declaration of principles by the Cincinnati Convention makes no announcement in favor of a single presidential term. I do not assume to add to that declaration; but, believing that the restoration of the civil service to the system established by Washington and followed by the early presidents can be best accomplished by an executive who is under no temptation to use the patronage of his office to promote his own re-election, I desire to perform what I regard as a duty, in stating now my inflexible purpose, if elected, not to be a candidate for election to a second term.

On the currency question, I have frequently expressed my views in public, and I stand by my record on this subject. I regard all the laws of the United States relating to the payment of the public indebtedness, the legal tender notes included, as constituting a pledge and moral obligation of the Government, which must in good faith be kept. It is my conviction that the feeling of uncertainty inseparable from an irredeemable paper currency, with its fluctuations of values, is one of the great obstacles to a revival of confidence and business, and to a return of prosperity. That uncertainty can be ended in but one way—the resumption of specie payments; but the longer the instability connected with our present money system is permitted to continue, the greater will be the injury inflicted upon our economical interests, and all classes of society.

If elected, I shall approve every appropriate measure to accomplish the desired end, and shall oppose any step backward.

The resolution with respect to the public school system is one which should receive the hearty support of the American people. Agitation upon this

subject is to be apprehended, until, by constitutional amendment, the schools are placed beyond all danger of sectarian control or interference. The Republican party is pledged to secure such an amendment.

The resolution of the convention on the subject of the permanent pacification of the country, and the complete protection of all its citizens in the free enjoyment of all their constitutional rights, is timely and of great importance. The condition of the Southern States attracts the attention and commands the sympathy of the people of the whole Union. In their progressive recovery from the effects of the war, their first necessity is an intelligent and honest administration of government, which will protect all classes of citizens in all their political and private rights. What the South most needs is peace, and peace depends upon the supremacy of law. There can be no enduring peace if the constitutional rights of any portion of the people are habitually disregarded. A division of political parties, resting merely upon distinctions of race, or upon sectional lines, is always unfortunate, and may be disastrous. The welfare of the South, alike with that of every other part of the country, depends upon the attractions it can offer to labor, to immigration, and to capital. But laborers will not go, and capital will not be ventured, where the constitution and the laws are set at defiance, and distraction, apprehension, and alarm, take the place of peace-loving and law-abiding social life. All parts of the constitution are sacred, and must be sacredly observed—the parts that are new no less than the parts that are old. The moral and material prosperity of the Southern States can be most effectively advanced by a hearty and generous recognition of the rights of all by all—a recognition without reserve or exception.

With such a recognition fully accorded, it will be practicable to promote, by the influence of all legitimate agencies of the general government, the efforts of the people of those States to obtain for themselves the blessings of honest and capable local government.

If elected, I shall consider it not only my duty, but it will be my ardent desire, to labor for the attainment of this end.

Let me assure my countrymen of the Southern States that if I shall be charged with the duty of organizing an Administration, it will be one which will regard and cherish their truest interests—the interests of the white and

of the colored people both, and equally; and which will put forth its best efforts in behalf of a civil policy which will wipe out forever the distinction between North and South in our common country.

With a civil service organized upon a system which will secure purity, experience, efficiency, and economy; with a strict regard for the public welfare, solely, in appointments; with the speedy, thorough, and unsparing prosecution and punishment of all public officers who betray official trusts; with a sound currency; with education unsectarian and free to all; with simplicity and frugality in public and private affairs, and with a fraternal spirit of harmony pervading the people of all sections and classes, we may reasonably hope that the second century of our existence as a Nation will, by the blessing of God, be pre-eminent as an era of good feeling, and a period of progress, prosperity, and happiness.

Very respectfully,

Your fellow-citizen,

R. B. HAYES.

The non-partisan verdict upon this letter is that it is faultless in style, sound in principle, courageous, broad and elevated in tone, liberal, wise, statesmanlike, and strong. It is, in short, the declaration of faith of an honest man who has a heart in his breast and a head on his shoulders, with purity in that heart and brains in that head.

The conclusions which follow our study of the public career of Rutherford Birchard Hayes, and the study of that interior life, the beauty of which the world will not know until he has passed from it, are briefly these.

In boyhood, in battle, in the civic chair, in the esteem of his State, in every duty and relation of life, he has been first, and now, it would seem, is first in the hearts of his countrymen. As a student, he was foremost; as a lawyer, he was in the front rank; as a soldier, he was the bravest; as a legislator, the most judicious; as a governor, second to none of Ohio's great magistrates.

The most striking characteristic of Hayes as a soldier was his personal intrepidity. Anthony Wayne, Francis Marion, and Ethan Allen were called brave men in the Revolution, and so they were; but we look in vain in their histories for as numerous proofs of unsurpassable daring as the hero of

Cloyd Mountain, Cedar Creek, and South Mountain, has given us. Four horses shot under him; four wounds in action; fighting after he fell; a hundred days exposed to death under fire—these are the evidences of as lofty a courage as is yet known among men.

As a regimental, brigade, and division commander, his most striking quality as a leader was his impetuosity. General Crook used to say that Hayes fought infantry as other men fought cavalry. He was always wanting to move forward, to charge, to get at the enemy with cold steel. His favorite step was the double-quick; his choice of distance two paces; and his preferred mode of fighting, the hand-to-hand grapple. This meant business, was decisive, and was soon over.

Another characteristic was his constant care for the comfort of his soldiers. He was much in the hospitals, cheering up the wounded, writing letters for them, and sending last messages from the lips of the dying to wives, mothers, and friends. He shared his blanket, his last crust, his last penny, with the neediest of his men, and abstained from food when they had none.

His house is to-day, and has been since the war, a soldiers' home, where all who served with him are invited to come at all times and partake at his own table with his wife and children. Seldom is this generous hospitality imposed on by the members of his large military family. Once, only, a pseudo-soldier, whom the children called the "Veteran," having served two days and a half in the army, remained just double the term of his military service under the governor's roof. He doubtless found that the rations at this camp were good.

As a civil magistrate, Governor Hayes has developed executive and administrative abilities of the highest order. He has a practical, common-sense, direct way of doing things. He first finds what things ought to be done, and then how. When his own party has been in a minority, he has made friends with a few of the most reasonable men in the opposition, and through them, as instruments, has accomplished his purposes.

He is a discriminating judge of human nature, and is magnetic enough to make legislators follow his lead, as his soldiers followed him.

He has fixed rules of official conduct to which he adheres in all cases. For example, if he has a judge to appoint—and he has appointed many to fill vacancies—his simple inquiry is, Whom do the members of the legal profession want, who live in the judicial district to be provided for? When that fact is accurately ascertained, the appointment follows as a matter of course, even though the lawyer preferred may be his personal enemy. In the interests of learning, higher education, human benevolence, and equal rights, Hayes has accomplished more than any governor Ohio has yet had. We make this statement with the honorable records of old Jeremiah Morrow, Corwin, Chase, Tod, Brough, and Cox spread before us.

In a word, Governor Hayes is square-built, solid and sound, mentally, morally, and physically. His integrity is a proverb; his fidelity to his convictions is recognized by political enemies; his record is of unassailable soundness; and there is absolutely nothing vulnerable in his character. He has a Lincoln-like soundness of judgment, and is as inexorably just as old John Marshall. He is a man absolutely free from eccentricities and affectations; he neither walks nor talks on stilts. His manners have the warmth and grace that sincerity and simplicity give. In bearing, he is animated and thoughtful, manly and refined. His firmness, while it does not amount to obstinacy, marks the clear-cut individuality and decision of his character. He has the guiding faculty and the power of containing himself. He takes a just measure both of himself and of other men. If the country will do this, his future is as secure as his past. If president, he would do the right thing at the right time, in the right way. His election will give us, not a "solid South" or a solid North, but a solid Union!

Since experience has taught us how essential it is that the representative of the women of America in the executive mansion should worthily represent all that is best and most elevated in our social life, a word in regard to the companion of Governor Hayes may not be out of taste. If any public man in our history has been more fortunate and happy in his home surroundings and family relations, we are not aware who he may be. If the voice of the people should decree the transplanting of the ideal home of this family from the capital of Ohio to the capital of the Republic, the pure and elevating influences radiating from such a home would pervade and purify the social life of the National city, if not of the land. A severer simplicity would mark the inner and the outer life of the president's household. Extravagance in

dress and living, wastefulness in vain displays and in ambitious entertainments, would find no encouragement from the mistress of the Nation's mansion. The lessons of truth and piety, of purity and virtue, of charity and benevolence, of sincerity and self-forgetfulness, would be taught by example. A whole people could here find in illustration the sacredness of the family and the holiness of home.

A union of rare accomplishments, social and domestic, with beauty of features, manners, and character, may yet be found in a successor of Mrs. Madison.

A doctor of divinity and a doctor of laws, the president of the Ohio Wesleyan University, bears this weighty testimony, in a public address, to the correctness of what we have hereinbefore recorded:

"It is in no spirit of partisanship, nor with the slightest reference to merely political ends, but simply in illustration of our subject that we add, already there are hopeful signs of reformation in our National life. It is a sign of progress that the suspicion of sullied purity is beginning to be fatal to a public man. It is an omen of good when in a large and representative convention, with the names of many distinguished men before it, one is borne above them all on the tide of popular enthusiasm and with ringing peals of applause is presented to the American people, without effort of his own, as a candidate for the highest office in the Nation, not only because of his eminent ability, but largely because of the transparent purity of his character and his high, manly, moral worth.

"It is doubtless a cause of honest pride to the citizens of this town, irrespective of political creeds and preferences, that the man thus highly distinguished is a native of your classic city. By reason of its youth this university can not claim him as a son, but it regards with maternal pride his not less worthy companion, who, after graduation at one of the best female colleges in the State, indicated her rare good sense by passing through much of the college curriculum of our university here.

"If, by the decree of the people and the providence of God, this worthy pair, honored graduates of Ohio's higher schools of learning, shall be lifted to the highest position and power and influence in the Nation, we have reason to believe that they will illustrate the salutary influence of that cultured

goodness of which we have spoken, and that the National capital and the entire National domain will enjoy a purer atmosphere."

[Top](#)

APPENDIX.

Speech of GENERAL R. B. HAYES, delivered at Lebanon, Ohio, August 5, 1867.

Fellow-Citizens:

President Lincoln began his memorable address at the dedication of the Gettysburg National Cemetery with these words:

"Four score and seven years ago our fathers brought forth on this continent a new Nation, conceived in liberty and dedicated to the proposition that all men are created equal."

This was Abraham Lincoln's opinion of what was accomplished and what was meant by the Declaration of Independence. His idea was that it gave birth to a Nation, and that it dedicated that Nation to equal rights.

Now, so far as the performance of duty in the present condition of our country is concerned, "this is the whole law and the prophets." The United States are not a confederacy of independent and sovereign States, bound together by a mere treaty or a compact, but the people of the United States constitute a Nation, having one flag, one history, "one country, one constitution, one destiny." Whoever seeks to divide this Nation into two sections—into a North and a South, or into four sections, according to the cardinal points of the compass, or into thirty or forty independent sovereignties—is opposed to the Nation, and the Nation's friends should be opposed to him.

Washington, in his Farewell Address, says:

"The unity of government, which constitutes you one people, is also now dear to you. It is justly so; for it is a main pillar in the edifice of your real independence, the support of your tranquillity at home, your peace abroad; of your safety, of your prosperity, of that very liberty which you so highly prize.... The name of American, which belongs to you in your National

capacity, must always exalt the just pride of patriotism more than any appellation derived from local discriminations. With slight shades of difference, you have the same religion, manners, habits, and political principles. You have, in a common cause, fought and triumphed together; the independence and liberty you possess are the work of joint counsels and joint efforts—of common dangers, sufferings, and successes."

The sentiment of Nationality is the sentiment of the Declaration of Independence; it is the sentiment of the fathers; it is the sentiment which carried us through the war of the Revolution, and through the war of the late Rebellion; and it is a sentiment which the people of the United States ought forever to cultivate and cherish.

The great idea to which the Nation, according to Mr. Lincoln, was dedicated by the fathers is expressed in the Declaration in these familiar phrases: "We hold these truths to be self-evident, that all men are created equal; that they are endowed by their Creator with certain inalienable rights; that among these are life, liberty, and the pursuit of happiness. That to secure these rights governments are instituted among men, deriving their just powers from the consent of the governed."

An intelligent audience will not wish to hear discussion as to the import of these sentences. Their language is simple, their meaning plain, and their truth undoubted. The equality declared by the fathers was not an equality of beauty, of physical strength, or of intellect, but an equality of rights. Foolish attempts have been made by those who hate the principles of the fathers to destroy the great fundamental truth of the Declaration, by limiting the application of the phrase "all men" to the men of a single race.

But Jefferson's original draft of the Declaration leaves no room to doubt what he meant by these words. The gravest charge he made against the King of Great Britain in the original draft of the Declaration of Independence was the following:

"He has waged cruel war against human nature itself, violating its most sacred rights of life and liberty in the persons of a distant people, who never offended him, capturing and carrying them into slavery in another hemisphere, or to incur miserable death in their transportation thither. This piratical warfare, the opprobrium of infidel powers, is the warfare of the

Christian King of Great Britain, determined to keep open market where MEN should be bought and sold."

In this sentence the word "men" is written by Jefferson in capital letters, showing with what emphasis he wished to declare that the King of Great Britain was making slaves of a people to whom belonged the rights of men.

Unfortunately for our country, that King, and others who "waged cruel war against human nature itself," had already succeeded in planting in the bosom of American society an element implacably hostile to human rights, and destined to become the enemy of the Union, whenever the American people, in their National capacity, should refuse assent to any measures which the holders of slaves should deem necessary or even important for the security or prosperity of their "peculiar institution."

I need not, upon this occasion, repeat what is now familiar history—how, by the invention of the cotton-gin, and the consequent enormous increase of the cotton crop, slave labor in the cotton States, and slave breeding in the Northern slave States, became so profitable that the slaveholders were able, for many years, largely to influence, if not control, every department of the National Government. The slave power became something more than a phrase—it was a definite, established, appalling fact. The Missouri controversy, South Carolina nullification, the Texas controversy, the adoption of the compromise measures of 1850, and the repeal of the Missouri compromise in 1854, were all occasions when the country was compelled to see the magnitude, the energy, the recklessness, and the arrogance of the slave power.

Precisely when the men who wielded that power determined to destroy the Union it is not now necessary to inquire. Threats of disunion were made in the first Congress that assembled under the constitution. Upon various pretexts they were repeated from time to time, and no one doubts that slavery was at the bottom of them. In 1833 General Jackson wrote to Rev. A. J. Crawford: "Take care of your nullifiers; you have them among you; let them meet with the indignant frown of every man who loves his country. The tariff, it is now known, was a mere pretext ... and disunion and a Southern Confederacy the real object. The next pretext will be the negro or slavery question." General Jackson was no doubt right as to the existence of

a settled purpose to break up the Union, and to establish a Southern Confederacy, as long ago as 1832. But why was there such a purpose? On what ground did it stand?

Great political parties, whether sectional or otherwise, do not come by accident, nor are they the invention of political intrigue. A faction born of a clique may have some strength at one or two elections, but the wisest political wire-workers can not, by merely "taking thought," create a strong and permanent party. The result of the Philadelphia Convention last summer probably taught this truth to the authors of that movement. Great political movements always have some adequate cause.

Now, on what did the conspirators who plotted the destruction of the Union and the establishment of a Southern Confederacy rely? In the first place, they taught a false construction of the National constitution, which was miscalled State rights, the essential part of which was that "any State of the Union might secede from the Union whenever it liked." This doctrine was the instrument employed to destroy the unity of the Nation. The fact which gave strength and energy to those who employed this instrument was that in the southern half of the Union, society, business, property, religion, and law were all based on the proposition that over four millions of our countrymen, capable of civilization and religion, were, because of their race and color, "so far inferior that they had no rights which the white man was bound to respect." The practice, founded upon this denial of the Declaration of Independence, protected by law and sanctioned by usage, was our great National transgression, and was the cause of our great National calamity.

In a country where discussion was free, sooner or later, parties were sure to be formed on the issues presented by the slaveholders. The supporters of the Union and of human rights would band together against the supporters of disunion and slavery. For many years after the struggle really began, the issues were not clearly defined, and neither party was able to occupy its true and final position, or to rally to its standard all who were in fact its friends. Old parties encumbered the ground. Men were slow to give up old associations and leave the discussion of obsolete, immaterial, or ephemeral issues.

At last the crisis came. In 1860, Mr. Lincoln, who was unfriendly to slavery and faithful to the Union, was elected president. The party of disunion and slavery were prepared for this event. Their action was prompt, decisive, and defiant. They proceeded to organize southern conventions, and formally to withdraw from the Union, and undertook to establish a new government and a new Nation on the soil of the United States.

Prior to 1860 the party calling itself Democratic had gathered under one name and one organization almost the whole of the secessionists of the South and a large body of the people of the North, many of whom had no sympathy either with secession or slavery. In 1860 the secessionists were so arrogant in their demands that the great body of the Democratic party in the North refused to yield to them, and supported Mr. Douglass in opposition both to Mr. Lincoln, and to the disunion and slavery candidate, Mr. Breckenridge. But it was well known that many leading Democrats who supported Mr. Douglass leaned strongly toward the southern Calhoun democracy, and that their sympathies were with slave-holding or at least with slaveholders.

The evidence of this is abundantly furnished in their recorded opinions. The most distinguished and perhaps the most influential Democrat now actively engaged in politics in Ohio, who presided over and addressed the last Democratic State Convention held at Columbus, Mr. Pendleton, delivered a speech in the House of Representatives on the 18th of January, 1861.

You will recollect how far the slaveholders had progressed in their great rebellion at that date. Mr. Pendleton himself says:

"To-day, sir, four States of this Union have, so far as their power extends, seceded from it. Four States, as far as they are able, have annulled the grants of power made to the Federal Government; they have resumed the powers delegated by the Constitution; they have canceled, so far as they could, every limitation upon the full exercise of all their sovereign rights. They do not claim our protection; they ask no benefit from our laws; they seek none of the advantages of the confederation. On the other hand, they renounce their allegiance; they repudiate our authority over them, and they assert that they have assumed—some of them that they have resumed—their position among the family of sovereignties, among the nations of the

earth.... To-day, even while I am speaking, Georgia is voting upon this very question. And unless the signs of the times very much deceive us, within three weeks other States will be added to the number."

Mr. Pendleton might also have said that prior to that date, forts, arsenals, dock-yards, mints, and other places and property belonging to the United States, had been seized by organized and armed bodies of rebels; the collection of debts due in the South to Northern creditors had been stopped; South Carolina had declared that any attempt to reinforce Fort Sumter by the United States would be regarded by that State as an act of hostility against her and equivalent to a declaration of war; the Star of the West, an unarmed vessel, with the American flag floating at her mast-head, carrying provisions to the famishing garrison of Fort Sumter, had been fired on and driven from Charleston harbor; in short, at that date the rebels were engaged in actual war against the Nation, and the only reason why blood had not been shed was that the National government had failed in its duty to defend the Nation's property, and to maintain the sacredness of the National flag.

At that crisis Mr. Pendleton delivered and sent forth a speech bearing this significant motto: "But, sir, armies, money, blood, can not maintain this Union—justice, reason, peace, may." The speech was according to its motto. Accustomed as he is to speak cautiously, and in a scholarly and moderate way, we can not be mistaken as to his drift. On the authority of the National government he says:

"Now, sir, what force of arms can compel a State to do that which she has agreed to do? What force of arms can compel a State to refrain from doing that which her State government, supported by the sentiment of her people, is determined to persist in doing.... Sir, the whole scheme of coercion is impracticable. It is contrary to the genius and spirit of the Constitution."

These extracts sufficiently and fairly show Mr. Pendleton's notion of the duty and authority of the Nation in that great crisis. He held the States rights doctrines of Calhoun and Breckenridge, and not the National principles of Washington and Jackson.

As to the treatment of rebels already in arms, and as to the "demands" of the slave power, consider this advice which he gave to Congress and the people:

"If these Southern States can not be conciliated; if you, gentlemen, can not find it in your hearts to grant their demands; if they must leave the family mansion, I would signalize their departure by tokens of love; I would bid them farewell so tenderly that they would be forever touched by the recollection of it; and if in the vicissitudes of their separate existence they should desire to come together with us again in one common government, there should be no pride to be humiliated, there should be no wound inflicted by my hand to be healed. They should come and be welcome to the places they now occupy."

Thus we see there were those who, with honeyed phrases and soft words, would have looked smilingly on, while the great Republic—the pride of her children, the hope of the ages—built by the fathers at such an expense of suffering, of treasure, and of blood, was stricken by traitors' hands from the roll of living Nations, and while an armed oligarchy should establish in its stead a nation founded on a denial of human rights, and under whose sway south of the Potomac more than half of the territory of the old Thirteen Colonies—soil once fertilized by the best blood of the Revolution—should, for generations to come, continue to be tilled by the unrequited toil of slaves.

The best known, the boldest, and perhaps the ablest leader of the peace Democracy in the North is Mr. Vallandigham. He was chairman of the committee on resolutions in the last Democratic State Convention in Ohio, and reported the present State platform of his party. He, probably, still enjoys in a greater degree than any other public man the affection and confidence of the positive men of the Ohio Democracy, who, from beginning to end, opposed the war. On the 20th of February, 1861, he delivered a speech in the House of Representatives in support of certain amendments which he proposed to the Constitution of the United States. In an appendix to that speech, he published an extract from a card in the Cincinnati *Enquirer* of November 10, 1860, from which I quote:

"And now let me add that I did say, ... in a public speech at the Cooper Institute, on the 2d of November, 1860, that if any one or more of the States of this Union should at any time secede, for reasons of the sufficiency and justice of which, before God and the great tribunal of history, they alone may judge, much as I should deplore it, I never would, as a representative in

Congress of the United States, vote one dollar of money whereby one drop of American blood should be shed in a civil war.... And I now deliberately repeat and reaffirm it, resolved, though I stand alone, though all others yield and fall away, to make it good to the last moment of my public life." Here was another strong man of large influence solemnly pledged to allow the Union to be broken up and destroyed, in case the rebel conspirators chose that alternative, rather than forgo their demands in favor of oppression and against human rights.

On the 23d of January, 1861, the Democratic party held a State Convention at Columbus. Remember, at that date the air was thick with threats of war from the South. The rebels were organizing and drilling; arms robbed from the National arsenals were in their hands; and the question upon all minds was whether the Republic should perish without having a single blow struck in her defense, or whether the people of the loyal North should rise as one man, prepared to wage war until treason and, if need be, slavery went down together. On this question, that convention was bound to speak. Silence was impossible. There were present war Democrats and peace Democrats, followers of Jackson, and followers of Calhoun. There was a determined and gallant struggle on the part of the war Democrats, but the superior numbers, or more probably the superior tactics and strategy, of the peace men triumphed.

The present candidate of the Democratic party for Governor of Ohio, Judge Thurman, a gentleman of character and ability, a distinguished lawyer and judge and a politician of long experience, succeeded in passing through the convention this resolution:

"Resolved, That the two hundred thousand Democrats of Ohio send to the people of the United States, both North and South, greeting; and when the people of the North shall have fulfilled their duties to the constitution and to the South, then, and not until then, will it be proper for them to take into consideration the question of the right and propriety of coercion."

In support of this famous resolution, Judge Thurman addressed the convention, and, among other things, is reported to have said:

"A man is deficient in understanding who thinks the cause of disunion is that the South apprehended any overt act of oppression in Lincoln's

administration. It is the spirit of the late presidential contest that alarms the South.... It would try the ethics of any man to deny that some of the Southern States have no cause for revolution.... Then you must be sure you are able to coerce before you begin the work. The South are a brave people. The Southern States can not be held by force. The blacks won't fight for the invaders.... The Hungarians had less cause of complaint against Austria than the South had against the North."

When we reflect on what the rebels had done and what they were doing when this resolution was passed, it seems incredible that sane men, having a spark of patriotism, could for one moment have tolerated its sentiments. The rebels had already deprived the United States of its jurisdiction and property in about one-fourth of its inhabited territory, and were rapidly extending their insurrection so as to include within the rebel lines all of the slave States. The lives and property of Union citizens in the insurgent States were at the mercy of traitors, and the National flag was everywhere torn down, and shameful indignities and outrages heaped upon all who honored it.

This resolution speaks of fulfilling the duties of the people of the North to the South. The first and highest duty of the people of the North to themselves, to the South, to their country, and to God, was to crush the rebellion. All speeches and resolutions against either the right or the propriety of coercion merely gave encouragement, "moral aid and comfort," more important than powder and ball, to the enemies of the Nation.

Do I state too strongly the mischievous, the fatal tendency of these proceedings? The resolution adopted by the peace Democracy of Ohio is addressed in terms "to the people of all the States, North and South," and in fact was sent, I am informed, to the governors of all the States.

In the South, Union men were laboring by every means in their power to prevent secession. Their most cogent argument was that the National government would defend itself by war against rebellion. To this, the rebel reply was, "There will be no war. Secession will be peaceable. The peace party of the North will prevent coercion. If there is fighting, it will be as Ex-President Pierce writes to Jefferson Davis, 'The fighting will not be along

Mason and Dixon's line merely. It will be within our own borders, in our own streets.'"

For the evidence of the correctness of this opinion, the rebels could point confidently to such speeches and resolutions as those we are now considering. Governor Orr, of South Carolina, in a recent speech at the Charleston Board of Trade banquet, is reported to have said:

"I know there is an apprehension widespread in the North and West that, after the reconstruction of the Southern States, we shall fall into the arms of our old allies and associates, the old Democratic party. I say to you, gentlemen, however, that I would give no such pledges. We have accounts to settle with that party, gentlemen, before I, at least, will consent to affiliate with it. Many of you will remember that, when the war first commenced, great hopes and expectations were held out by our friends in the North and West that there would be no war, and that if it commenced, it would be North of Mason and Dixon's line, and not in the South."

Without pausing to inquire how much strength accrued to the rebellion in its earlier stages by the encouragement it received from sympathizers in the North, let us pass on to the spring and summer of 1861, after the bombardment and surrender of Fort Sumter, and when the armies of the Union and of the rebellion were facing each other upon a line of operations extending from the Potomac to the Rio Grande. The most superficial observer could not fail to discover these facts.

In the South, where slavery was strongest, the rebellion was strongest. Where there were few slaveholders, there were few rebels. South Carolina and Mississippi, having the largest number of slaves in proportion to population, were almost unanimous for rebellion. Western Virginia, Eastern Kentucky, East Tennessee, had few slaves, and love of the Union and hatred of secession in those mountain regions was nearly universal.

The counterpart of this was found everywhere in the North. In counties and districts where the majority of the people had been accustomed to defend or excuse the practice of slave-holding and the aggressions of the slaveholders, there was much sympathy with the rebellion and strong opposition to the war. Men who abused and hated negroes did not usually hate rebels. On the

other hand, anti-slavery counties and districts were quite sure to be Union to the core.

In Ohio, as in other free States, the Democratic party could not be led off in a body after the peace Democracy. Brough, Tod, Matthews, Dorsey, Steedman, and a host of Democrats of the Jackson school, nobly kept the faith. Lytle, McCook, Webster, and gallant spirits like them, from every county and neighborhood of our State, sealed their devotion to the Union and to true Democracy with their life's blood.

They believed, with Douglass, in the last letter he ever wrote, that "it was not a party question, nor a question involving partisan policy; it was a question of government or no government, country or no country, and hence it became the imperative duty of every Union man, every friend of constitutional liberty, to rally to the support of our common country, its government and flag, as the only means of checking the progress of revolution, and of preserving the Union of the States."

They believed the words of Douglass' last speech: "This is no time for a detail of causes. The conspiracy is now known. Armies have been raised, war is levied to accomplish it. There are only two sides to the question. Every man must be for the United States or against it. There can be no neutrals in this war—only patriots and traitors."

As the war progressed, the great political parties of the country underwent important changes, both of organization and policy. In the North, the Republican party, the great body of the American or Union party of 1860, and the war Democracy formed the Union party. The Democracy of the South, for the most part, became rebels, and in the North those who did not unite with the Union party generally passed under the control and leadership of the peace Democracy.

At the beginning of the war, the creed of the Union party consisted of one idea—it labored for one object—the restoration of the Union. Slavery, the rights of man, the principles of the Declaration of Independence, were for the time lost sight of in the struggle for the Nation's life. As late as August, 1862, President Lincoln wrote to Mr. Greeley: "My paramount object is to save the Union, and not either to save or to destroy slavery. If I could save the Union without freeing any slave, I would do it; and if I could save it by

freeing all the slaves, I would do it; and if I could do it by freeing some and leaving others alone, I would also do that."

Slowly, gradually, after repeated disasters and disappointments, the eyes of the Union leaders were opened to the fact that slavery and rebellion were convertible terms; that the Confederacy, according to its Vice-President, Alexander H. Stephens, was founded upon "exactly the opposite idea" from that of Jefferson and the fathers. "Its foundations," said he, "are laid, its corner-stone rests upon the great truth that the negro is not equal to the white man; that slavery, subordination to the superior race, is his natural and normal condition." Mr. Lincoln and the Union party, struggling faithfully onward, finally reached the solid ground that the American government was founded on the broad principles of right, justice, and humanity, and that, for this Nation, "Union and liberty" were indeed "one and inseparable."

The leaders of the peace Democracy were for a time overwhelmed by the popular uprising which followed the attack on Fort Sumter, and were not able during the year 1861 or the early part of 1862 to mark out definitely the course to be pursued. But, like the Union party, they gradually approached the position they were ultimately to occupy.

Their success in the autumn elections of 1862 encouraged them to enter upon the pathway in which they have plodded along consistently if not prosperously ever since. Opposition to the war measures of Mr. Lincoln's administration, and in particular to every measure tending to the enfranchisement and elevation of the African race, became their settled policy. By this policy they were placed in harmony with their former associates, the rebels of the South. The rebels were fighting to destroy the Union. The peace party were opposing the only measures which could save it. The rebels were fighting for slavery. The peace party were laboring in their way to keep alive and inflame the prejudice against race and color, on which slavery was based.

The abolition of slavery in the District of Columbia, the repeal of the fugitive slave law, Mr. Lincoln's proclamation of emancipation, in a word, every step of the Union party toward enfranchisement of the colored people, the peace Democracy opposed. Every war measure, every means

adopted to strengthen the cause of the Union and weaken the rebellion, met with the the same opposition. Whatever Mr. Lincoln or Congress did to get money, to get men, or to obtain the moral support of the country and the world—tax laws, tariff laws, greenbacks, government bonds, army bills, drafts, blockades, proclamations—met the indiscriminate and bitter assaults of these men. The enlistment of colored soldiers, a measure by which between one and two hundred thousand able-bodied men were transferred from the service of the rebels in corn-fields to the Union service in battle-fields—how Mr. Lincoln and the Union party were vilified for that wise and necessary measure! But worse, infinitely worse, than mere opposition to war measures, were their efforts to impair the confidence of the people, to diminish the moral power of the government, to give hope and earnestness to the enemies of the Union, by showing that the administration was to blame for the war, that it was unnecessary, unjust, and that it had been perverted from its original object, and that it could not but fail.

I need not go beyond the record of leaders of the Ohio Democracy of to-day for proof what I am saying. Mr. Pendleton, usually so gentlemanly and prudent in speech, lost his balance after the victories of the peace Democracy in 1862. At the Democratic jubilee in Butler county over the elections, Mr. Pendleton is reported as saying:

"I came up to see if there were any Butternuts in Butler county. I came to see if there were any Copperheads in Butler county, as my friends of the *Cincinnati Gazette* and *Commercial* are fond of terming the Democracy of the country. I came up to tell you that there are a good many of that stripe of animals in old Hamilton. I have traveled about the country lately, and I assure you there is a large crop of Butternuts everywhere: not only that, but the quality and character of the nut is quite as good as the quantity."

Of course, Mr. Pendleton was applauded by his audience; and he returned to his place in the House of Representatives at Washington prepared to give expression to his views with the same plainness and boldness which marked the utterances of his colleague, Mr. Vallandigham.

On the 31st of January, 1863, he made an elaborate speech against the enlistment of negroes into the service of the United States, in which he said:

"I should be false to you, my fellow-representatives, if I did not tell you that there is an impression, growing with great rapidity, upon the minds of the people of the Northwest that they have been deliberately deceived into this war—that their patriotism and their love of country have been engaged to call them into the army, under the pretense that the war was to be for the Union and the Constitution, when, in fact, it was to be an armed crusade for the abolition of slavery. I tell you, sir, that unless this impression is speedily arrested it will become universal; it will ripen into conviction, and then it will be beyond your power to get from their broad plains another man, or from their almost exhausted coffers another dollar."

In the same speech he says:

"I said two years ago, on this floor, that armies, money, war can not restore this Union; justice, reason, peace, may. I believed it then; I have believed it at every moment since; I believe it now. No event of the past two years has for a moment shaken my faith. Peace is the first step to Union. Peace is Union. Peace unbroken would have preserved it; peace restored will, I hope, in some time reconstruct it. The only bonds which can hold these States in confederation, the only ties which can make us one people, are the soft and silken cords of affection and interest. These are woven in peace, not war; in conciliation, not coercion; in deeds of kindness and acts of friendly sympathy, not in deeds of violence and blood. The people of the Northwest were carried away by the excitement of April and May. They believed war would restore the Union. They trusted to the assurances of the president and his cabinet, and of Congress, that it should be carried on for that purpose alone. They trusted that it would be carried on under the Constitution. They were patriotic and confiding. They sent their sons, and brothers, and husbands to the army, and poured out their treasures at the feet of the administration. They feel that the war has been perverted from this end; that the Constitution has been disregarded; that abolition and arbitrary power, not Union and constitutional liberty, are the governing ideas of the administration. They are in no temper to be trifled with. They think they have been deceived. There is danger of revolution. They are longing for peace."

Need I pause to inquire who would receive encouragement, or whose spirits would be depressed, on reading these remarkable sentences? Imagine them

read by the rebel camp-fires, or at the fire-sides of the rebel people. What hope, what exultation we should behold in the faces of those who heard them! On the other hand, at Union camp-fires, or by the loyal fire-sides of the North, what sorrow, what mortification, what depression such statements would surely carry wherever they were heard and believed!

The course of the peace Democracy of Ohio during the memorable contest of 1863, between Brough and Vallandigham, is too well known to require attention now. Judge Thurman was one of the committee who constructed the platform of the convention which nominated Mr. Vallandigham, and was the ablest member of the State Central Committee which had charge of the canvass in his behalf during his exile.

The key-note to that canvass was given by Mr. Vallandigham himself in a letter written from Canada, July 15, 1863. That letter contained the following:

"If this civil war is to terminate only by the subjugation or submission of the South to force and arms, the infant of to-day will not live to see the end of it. No, in another way only can it be brought to a close. Traveling a thousand miles and more, through nearly half of the Confederate States, and sojourning for a time at widely different points, I met not one man, woman, or child, who was not resolved to perish rather than yield to the pressure of arms, even in the most desperate extremity. And whatever may and must be the varying fortune of the war, in all which I recognize the hand of Providence pointing visibly to the ultimate issue of this great trial of the States and people of America, they are better prepared now every way to make good their inexorable purpose than at any period since the beginning of the struggle. These may be unwelcome truths; but they are addressed only to candid and honest men."

The assumption of the certain success of the rebellion, and that the war for the Union would assuredly fail, was the strong point of these gentlemen in favor of the election of Vallandigham and the defeat of Brough. Fortunately, the patriotic people saw the situation from another standpoint, and under the influence of different feelings and different sympathies.

In the elections of 1863, the peace Democracy of Ohio and other States sustained defeats which have no parallel in our political history. But,

notwithstanding their reverses, the year 1864, the year of the presidential election, found the Ohio leaders possibly sadder, but certainly not wiser nor more patriotic than before.

At the National Convention at Chicago, in August, Mr. Pendleton was nominated for vice-president, Judge Thurman was a delegate of the State of Ohio at large, and Mr. Vallandigham as a district delegate, and as a member of the committee on platform, was the author of the following resolution adopted by the convention:

"Resolved, That this convention does explicitly declare, as the sense of the American people, that, after four years of failure to restore the Union by the experiment of war, during which, under pretense of military necessity, or war power higher than the constitution, the constitution has been disregarded in every part, and public liberty and private rights have been alike trodden down, and the material prosperity of the country essentially impaired, justice, humanity, liberty, and the public welfare demand that immediate efforts be made for a cessation of hostilities, with a view to an ultimate convention of all the States, or other peaceable means, to the end that at the earliest practicable moment peace may be restored on the basis of the Federal Union of the States."

This resolution does not seem to require explanation or comment. But as General McClellan's letter accepting the nomination for president did not square well with this part of the party platform, Mr. Vallandigham, in a speech at Sidney, Ohio, September 24, 1864, explained it at some length. In that speech, he said:

"I am speaking now of the fact that this convention pronounced this war a failure, and giving you the reasons why it is a failure.... What has been gained by this campaign? More lives have been lost, more hard fighting has been done, more courage has been exhibited by the Federal as well as the Southern soldiers than in any former campaign, and what has been accomplished? General Grant is nearer to Richmond, occupying a territory of perhaps eleven miles, which was not in the possession of the United States when the campaign began, from City Point to the suburbs of Petersburg. To secure that he gave up all the country from Manassas down to Richmond and a large part of the valley.... How about the Southern

campaign? General Sherman, through the courage of the best disciplined, best organized, and most powerful army that has been seen since the campaigns of the first Napoleon, has taken Atlanta—a town somewhat larger than Sidney. It has cost him sixty thousand men and four or five months of the most terrible campaign ever waged on this continent or any other, or any other part of the globe. He occupies from two to five miles on each side of a railroad of one hundred and thirty-eight miles in length. He has penetrated that far into Georgia. What has been surrendered to obtain that? All of Texas, nearly all of Louisiana, nearly all of Arkansas, Mississippi, Alabama, and a part of Tennessee, which were in possession of the Federals on the first of May. Kentucky has been opened to continual incursions of the Confederate armies. All this has been surrendered in order to gain this barren strip of country on the line of the railroad. The war, then, has been properly pronounced a failure in a military point of view. The convention meant that it has failed to restore the Union, and there is not a Republican in the land who does not know it."

In the Sidney speech, Mr. Vallandigham says, also:

"What will you have now? Four years more of war? What guaranties of success have you? Do you want two million more of men to go forth to this war as the Crusaders went to the sepulcher at Jerusalem? The beginning of this administration found us with very little debt, comparatively no taxation, and peace and happiness among the States; and now look at the scene! Four more years of war, do you tell me, when the first four, with every advantage, has failed? Now, too, that the hearts of one-half of the people are turned away from war, and intent upon the arts of peace? What will be the consequence? Four thousand millions more of debt, five hundred millions more of taxation, more conscriptions, more calls for five hundred thousand men, more sacrifices for the next four years. All this is what Abraham Lincoln demands of you in order that the South may be compelled not to return to the Union, but to abandon slavery."

All this logic, this eloquence, this taxing the imagination to portray the horrors of war, failed to deceive the people; Lincoln was re-elected; the war went on, and a few short months witnessed the end of the armed rebellion, and the triumph of liberty and of Union.

Now came the work of reconstruction. The leaders of the Peace Democracy, who had failed in every measure, in every plan, in every opinion, and in every prediction relating to the war, were promptly on hand, and with unblushing cheek were prepared to take exclusive charge of the whole business of reorganization and reconstruction. They had a plan all prepared—a plan easily understood, easily executed, and which they averred would be satisfactory to all parties. Their plan was in perfect harmony with the conduct and history of its authors and friends during the war. They had been in very close sympathy with the men engaged in the rebellion, while their sympathy for loyal white people at the South was not strong, and they were bitterly hostile to loyal colored people both North and South. Their plan was consistent with all this.

According to it, the rebels were to be treated in the same manner as if they had remained loyal. All laws, State and National, all orders and regulations of the military, naval, and other departments of the government, creating disabilities on account of participation in the rebellion, were to be repealed, revoked, or abolished. The rebellious States were to be represented in Congress by the rebels without hindrance from any test oath. All appointments in the army, in the navy, and in the civil service, were to be made from men who were rebels, on the same terms as from men who were loyal. The people and governments in the rebellious States were to be subjected to no other interference or control from the military or other departments of the general government than exists in the States which remained loyal. Loyal white men and loyal colored men were to be protected alone in those States by State laws, executed by State authorities, as if they were in the loyal States.

There were to be no amendments to the constitution, not even an amendment abolishing slavery. In short, the great rebellion was to be ignored or forgotten, or, in the words of one of their orators, "to be generously forgiven." The war, whose burdens, cost, and carnage they had been so fond of exaggerating, suddenly sank into what the Rev. Petroleum V. Nasby calls "the late unpleasantness," for which nobody but the abolitionists were to blame. Under this plan the States could soon re-establish slavery where it had been disturbed by the war. Jefferson Davis, Toombs, Slidell, and Mason could be re-elected to their old places in the Senate of the United States; Lee could be re-appointed in the army, and

Semmes and Maury could be restored to the navy. Of course this plan of the Peace Democracy was acceptable to the rebels of the South.

But the loyal people, who under the name of the Union party fought successfully through the war of the rebellion, objected to this plan as wrong in principle, wrong in its details, and fatally wrong as an example for the future. It treats treason as no crime and loyalty as no virtue; it contains no guarantees, irreversible or otherwise, against another rebellion by the same parties and on the same grounds. It restores to political honor and power in the government of the Nation men who have spent the best part of their lives in plotting the overthrow of that government, and who for more than four years levied public war against the United States; it allows Union men in the South, who have risked all—and many of whom have lost all but life in upholding the Union cause—to be excluded from every office, State and National, and in many instances to be banished from the States they so faithfully laboured to save; it abandons the four millions of colored people to such treatment as the ruffian class of the South, educated in the barbarism of slavery and the atrocities of the rebellion, may choose to give them; it leaves the obligations of the Nation to her creditors and to the maimed soldiers and to the widows and orphans of the war, to be fulfilled by men who hate the cause in which those obligations were incurred; it claims to be a plan which restores the Union without requiring conditions; but, in conceding to the conquered rebels the repeal of laws important to the Nation's welfare, it grants conditions which they demand, while it denies to the loyal victors conditions which they deem of priceless value.

In the meantime, President Johnson having declared that "the rebellion, in its revolutionary progress, had deprived the people of the rebel States of all civil government," proceeded by military power to set up provisional State governments in those States, and to require them to declare void all ordinances of secession, to repudiate the rebel debt, and to adopt the thirteenth amendment of the constitution, proposed by the Union party, abolishing slavery throughout the United States. The Peace Democracy opposed all conditions, and, instinctively unsound upon human rights, opposed the amendment abolishing slavery. The elections of 1865 settled that question against them, and deprived them of New Jersey, the last free State which adhered to their fallen fortunes.

At the session of Congress of 1865-66, the president, finding that his co-called State governments in the rebel States—created by military power alone and without the sanction of the legislative power of the government—had accepted his conditions; insisted that those States were fully restored to their former proper relations with the general government, and that they were again entitled to representation in the same manner with the loyal States. This plan accorded with the wishes of all unrepentant rebels, and as a matter of course received the support of their allies of the Peace Democracy.

The Union party, at the sacrifice of all of the power and patronage of the administration they had elected, firmly opposed and finally defeated this project. They required, before the complete restoration of the rebel States, that the fourteenth amendment of the constitution should be adopted, which was framed to secure civil rights to the colored people, equal representation between the free States and the former slave States, the disqualification for office of leading rebels, the payment of the loyal obligations to creditors, to maimed soldiers, and to widows and orphans, and the repudiation of the rebel debt, and of claims to payment for slaves. On the adoption of this amendment turned the elections of 1866. After the amplest debates before the people the Union party carried the country in favor of the amendment, electing more than three-fourths of the members of the House of Representatives. They also secured the adoption of the amendment in twenty-one out of the twenty-four States now represented, which have acted upon it by an average vote in the State legislature of more than four to one.

In striking contrast with this was the action of the rebel States. Tennessee alone ratified the amendment. The other ten promptly and defiantly rejected it by an average majority in their State legislatures of more than fifty to one. When, therefore, the Thirty-ninth Congress met in the session of 1866-67 they found the work of reconstruction in those ten States still unaccomplished.

Now, in what condition were those ten rebel States? In the first place all political power in those States was in the hands of rebels, and for the most part of leading and unrepentant rebels. Their governors, their members of legislature, their judges, their county and city officers, and their members of

Congress, with rare exceptions, were rebels. Such was their political condition.

What was their condition with respect to the preservation of order, the suppression of crime, and the redress of private grievances? After the suppression of the rebellion the next plain duty of the National government was to see that the lives, liberty, and property of all classes of citizens were secure, and especially to see that the loyal white and colored citizens who resided or might sojourn in those States did not suffer injustice, oppression, or outrage because of their loyalty. Loyal men, without distinction of race or color, were clearly entitled to the full measure of protection usually found in civilized countries, if in the nature of things it was possible for the Nation to furnish it.

Inquiring as to the condition of things in the South, I waive the uniform current of information derived from the press and other unofficial sources from all parts of the South, and rely exclusively on the official reports of army officers like Grant, Thomas, Sheridan, and Howard—officers of clear heads, of strong sense, and of spotless integrity, whose business it is to know the facts, and who all united in warning the Nation that Union men, either white or colored, were not safe in the South.

General Grant says that the class at the South who "will acknowledge no law but force" is sufficiently formidable to justify the military occupation of that territory.

General Sheridan, in an official report, says the "trial of a white man for the murder of a freedman in Texas would be a farce; and, in making this statement, I make it because truth compels me, and for no other reason.... Over the killing of many freedmen nothing is done." General Sheridan cites cases in which our National soldiers wearing the uniform of the Republic have been deliberately shot "without provocation" by citizens, and the grand jury refused to find a bill against the murderers. Even in Virginia, General Schofield was compelled to resort to a military tribunal because "a gentleman" who shot a negro dead in cold blood "was instantly acquitted by one of the civil courts."

General Ord reports in Arkansas fifty-two murders of freed persons by white men in the past three or four months, *and no reports have been*

received that the murderers have been imprisoned or punished.... "The number of murders reported is not half the number committed."

General Sickles says that in South Carolina, "in certain counties, such as Newberry, Edgecombe, and Laurens, so much countenance was given to outrages on freedmen by the indifference of the civil authorities and by the population, who made themselves accomplices in the crimes, that other measures became necessary."

In Mississippi, General Thomas calls attention to the legislation in regard to colored people. "It is oppressive, unjust, and unconstitutional." The laws as to buying real estate, bearing arms, making contracts, and the like, are of such a character "that the constitutional gift of freedom is not much more than a name."

General Sheridan, speaking of Louisiana, says: "Homicides are frequent in some localities. Sometimes they are investigated by a coroner's jury, which justifies the act and releases the perpetrator; in other cases, ... the parties are held to bail in a nominal sum; but the trial of a white man for the killing of a freedman can, in the existing state of society in this State, be nothing more or less than a farce."

General Thomas, in February last, in relation to the display of the rebel flag in Rome, Georgia, said: "The sole cause of this and similar offenses lies in the fact that certain citizens of Rome, and a portion of the people of the States lately in rebellion, do not and have not accepted the situation, and that is that the late civil war was a rebellion, and history will so record it.... Everywhere in the States lately in rebellion treason is respectable and loyalty odious. This the people of the United States who ended the rebellion and saved the country will not permit; and all attempts to maintain this unnatural order of things will be met by decided disapproval."

Upon these official reports, showing not merely that atrocious crimes were everywhere committed against loyal people, but that the civil authorities did not even attempt to prevent them by the punishment of the perpetrators, it became the plain duty of Congress to adopt measures "to enforce peace and good order in the rebel States, until loyal and Republican State governments could be legally established." How well this duty was performed will appear from a brief examination of the reconstruction acts which were

passed by Congress in March last, and by the auspicious results which followed their adoption and execution.

By these acts, the ten rebel States were divided into five military districts, subject to the military authority of the United States; and it was made the duty of the president to assign military officers, not below the rank of brigadier-general, to command each of said districts, and to detail a sufficient military force to enable such officers to perform their duties. The duties of military commanders were defined as follows, in the 3d section of the act:

"Sec. 3. *And be it further enacted*, That it shall be the duty of each officer assigned as aforesaid, to protect all persons in their rights of person and property, to suppress insurrection, disorder, and violence, and to punish, or cause to be punished, all disturbers of the public peace and criminals; and to this end he may allow local civil tribunals to take jurisdiction of and to try offenders; or when, in his judgment, it may be necessary for the trial of offenders, he shall have power to organize military commissions or tribunals for that purpose; and all interference, under color of State authority, with the exercise of military authority under this act shall be null and void."

The act also sets forth the manner in which the people of any one of the rebel States could form a State constitution, and the terms on which the State would be fully restored to proper relations with the Union. The most important provisions are those relating to the qualifications of voters, and the one requiring the adoption of the amendment to the constitution proposed by the Thirty-ninth Congress, known as article fourteen. The right of suffrage is given to all men of suitable age and residence, without distinction of race or color, except a limited number who are excluded for participation in the rebellion.

In pursuance of these acts, the district of Louisiana and Texas was placed under the command of General Sheridan; Arkansas and Mississippi under General Ord; Alabama, Georgia, and Florida under General Pope; North Carolina and South Carolina under General Sickles; and Virginia under General Schofield. The merits of this plan are obvious.

1. It places the rebels again under the control of the power which conquered them, and of the very officers to whom they surrendered.
2. It is well calculated to afford protection to all loyal people, white or colored, against those who would oppress or injure them on account of their loyalty.
3. It places the new State governments of the South upon the solid basis of justice and equal rights.

This plan received in Congress the support of many members of Congress who did not uniformly vote with the Union party, and was acceptable to some of its most distinguished adversaries. In the Senate, Reverdy Johnson, a Maryland Democrat, voted for it, and made effective speeches in its support. The loyal press of the North, without exception, upheld it.

In the South, its success was everywhere gratifying and unexampled. Its enemies had said that it would organize anarchy in the rebel States—that it would immediately inaugurate a war of races between whites and blacks—and compared the condition of the South under it to the condition of India under English oppression, and to Hungary under the despotism of Austria.

But the course of the public press, and the conduct, the letters, and speeches of public men in the rebel States, vindicated the wisdom and justice of the measure. I will quote only from rebel sources.

In Virginia, the Charlottesville *Chronicle* addressed its readers as follows:

"FOR WHITE FOLKS AND COLORED FOLKS.—Every colored person may now go where and when he pleases. He is a free man and a full citizen. This is not all; by another bound they have become voters. They will take part in the government of the country. No people was ever so suddenly, so rapidly lifted up.

"Shall we all live happily together, or shall we hate each other, and quarrel and bear malice?

"Let us all try and get on together. The land is big enough. Let the whites accommodate themselves to the new state of things. Let them be polite and kind to all, and be always ready to accord to every man, whether white or

colored, his full rights. We make bold to say that the behavior of the colored people of this State, since they were set free, has surprised all fair-minded white people. We do not believe the white people, under the same circumstances, would have behaved so well by twenty per cent. They have shown the greatest moderation. They have passed from plantation hands to freedom and the ballot without outward excitement."

The Richmond *Examiner*, the organ of the fire-eaters, says of the colored people:

"This class of our population, as a general thing, manifest a disposition to prepare themselves for the altered political condition in which the events of the past two years have placed them. The sudden abolition of slavery did not, as most persons expected, turn their heads. They have been, in the main, orderly and well behaved. They have not presumed upon their newly-acquired freedom to commit breaches of the peace or to be guilty of any acts calculated to sow dissension between the two races. The utmost good feeling is felt by the white people of this city toward the negroes. There is not one particle of bitterness felt for them."

In South Carolina, Wade Hampton addressed a mixed assembly of whites and colored people at Columbia, in which he quoted from a former speech to his old soldiers:

"There is one other point on which there should be no misunderstanding as to our position—no loop on which to hang a possible misconstruction as to our views—and that is the abolition of slavery. The deed has been done, and I, for one, do honestly declare that I never wish to see it revoked. Nor do I believe that the people of the South would now remand the negro to slavery, if they had the power to do so unquestioned.

"Under our paternal care, from a mere handful, he grew to be a mighty host. He came to us a heathen; we made him a Christian. Idle, vicious, savage in his own country, in ours he became industrious, gentle, civilized. As a slave, he was faithful to us; as a freeman, let us treat him as a friend. Deal with him frankly, justly, kindly, and, my word for it, he will reciprocate your kindness. If you wish so see him contented, industrious, useful, aid him in his efforts to elevate himself in the scale of civilization, and thus fit him not only to enjoy the blessings of freedom, but to appreciate his duties."

After stating the provisions of the "military bill," as he calls the reconstruction law, he said to the colored people:

"But suppose the bill is pronounced unconstitutional; how then? I tell you what I am willing to see done. I am willing to give the right of suffrage to all who can read and who pay a certain amount of taxes; and I agree that this qualification shall bear on white and black alike. You would have no right to complain of a law which would put you on a perfect political equality with the whites, and which would put within your reach and that of your children the privilege enjoyed by any class of citizens."

In Georgia, the prevailing sentiment is indicated by the following. The *Atlanta New Era* says:

"We freely accept the Sherman platform as the only means whereby to rescue the country from total destruction, and if we mistake not, our backbone will prove sufficiently strong to enable us to look the issue full in the face, without a shudder. It is our bounden duty, and that of every other patriot and well-wisher of the South, to at once signify an unconditional acceptance of the measures perfected by Congress for our restoration to the Union, and heartily co-operate with the United States authorities in securing that most desirable end."

The *Augusta Press*, alluding to the recent meeting of negroes at Columbia, S. C., and the fact that speeches were made by General Wade Hampton and others, states that—

"All good citizens all over the South entertain precisely the same kind feelings for the colored people that were exhibited by these eminent Carolinians, and it is unfortunate that these sentiments are not more widely manifested in meetings for public counsel with them. 'Representative men' in every community should be prompt and earnest in signifying their wish to co-operate with the colored people in the administration of the laws and the preservation of harmony and good will. To this end, we deem it our duty to urge that in every community public meetings be held, in which the two races may take friendly counsel together."

In Florida, Hon. R. S. Mallory, a former Democratic United States Senator, is reported to have said, at a large meeting composed of whites and blacks,

in Pensacola, that—

"The recent legislation of Congress ought to be submitted to in good faith; that, as the negro was now entitled to vote, it was the interest of the State that he should be educated and enlightened, and made to comprehend the priceless value of the ballot, and the importance to himself and to the State of its judicious use.

"Let us fully and frankly acknowledge, as well by deeds as by words, their equality with us, before law, and regard it as no less just to ourselves and them than to our State and her best interests to aid in their education, elevation, and enjoyment of all the rights which follow their new condition."

Governor Patton, of Alabama, says:

"It seems to me that it is the true feeling of the Southern people to contribute their best influence in favor of an early organization of their respective States, in accordance with the requirements of the recent reconstruction act. Congress claims the right to control this whole question. In my humble judgment, it is unwise to contend longer against its power, or to struggle further against its repeatedly expressed will."

"The freedmen are now to vote the first time. We should cherish against them no ill-feeling. The elective franchise is conferred upon them; let them exercise it freely, and in their own way. No effort should be made to control their votes, except such as may tend to enable them to vote intelligently, and such as may be necessary to protect them against mischievous influences to which, from their want of intelligence, they may possibly be subjected. Above all things, we should discourage everything which may tend to generate antagonism between white and colored voters."

In Mississippi, Albert G. Brown, a former Democratic United States Senator, and a rebel, says:

"To those who think it most becoming men in my situation to keep quiet, I am free to say 'that is very much my own opinion.'"

"As I speak reluctantly, you will not be surprised if I say as little as possible."

"The negro is a fixture in this country. He is not going out of it; he is not going to die out, and he is not going to be driven out. Nor is his exodus from the country desirable. I am frank in saying if they, every one of them, could be packed in a balloon, carried over the water, and emptied into Africa, I would not have it done, unless, indeed, it were already arranged that the balloon should return by the way of Germany, Ireland, Scotland, etc., and bring us a return cargo of white laborers. If the negro is to stay here, and it is desirable to have him do so, what is the duty of the intelligent white man toward him? Why, to educate him, admit him, when sufficiently instructed, to the right of voting, and as rapidly as possible prepare him for a safe and rational enjoyment of that 'equality before the law' which, as a free man, he has a right to claim, and which we can not long refuse to give."

The Mississippi *Index* says:

"There are some laws on our statute-book respecting negroes that are of no practical use, and will have to be done away with some day. The sooner we dispense with them the better. But in the matter of educating the negro we can accomplish more toward convincing the people of the North that we have been misrepresented and slandered than by legislative action. Let us take the work of education out of the hands of the Yankees among us. We can do this by encouraging the establishment of negro schools and placing them in the charge of men and women whom we know to be competent and trustworthy."

In Louisiana, General Longstreet, one of the most distinguished of the rebel Generals, says:

"The striking feature, and the one that our people should keep in view, is, that we are a conquered people. Recognizing this fact fairly and squarely, there is but one course left for wise men to pursue—accept the terms that are offered us by the conquerors. There can be no discredit to a conquered people for accepting the conditions offered by their conquerors. Nor is that

any occasion for a feeling of humiliation. We have made an honest, and I hope that I may say, a creditable fight, but we have lost. Let us come forward, then, and accept the ends involved in the struggle.

"Our people earnestly desire that the constitutional government shall be re-established, and the only means to accomplish this is to comply with the requirements of the recent Congressional legislation."

"The military bill and amendments are peace offerings. We should accept them as such, and place ourselves upon them as the starting-point from which to meet future political issues as they arise."

"Like other Southern men, I naturally sought alliance with the Democratic party, merely because it was opposed to the Republican party. But, as far as I can judge, there is nothing tangible about it, except the issues that were staked upon the war and lost. Finding nothing to take hold of except prejudice, which can not be worked into good for any one, it is proper and right that I should seek some standpoint from which good may be done."

Quotations like these from prominent Democratic politicians, from rebel soldiers, and from influential rebel newspapers, might be multiplied indefinitely. Enough have been given to show how completely and how exactly the Reconstruction Acts have met the evil to be remedied in the South. My friend, Mr. Hassaurek, in his admirable speech at Columbus, did not estimate too highly the fruits of these measures. Said he:

"And, sir, this remedy at once effected the desired cure. The poor contraband is no longer the persecuted outlaw whom incurable rebels might kick and kill with impunity; but he at once became 'our colored fellow-citizen,' in whose well-being his former master takes the liveliest interest. Thus, by bringing the negro under the American system, we have completed his emancipation. He has ceased to be a pariah. From an outcast he has been transformed into a human being, invested with the great National attribute of self-protection, and the re-establishment of peace, and order, and security, the revival of business and trade, and the restoration of the Southern States on the basis of loyalty and equal justice to all, will be the

happy results of this astonishing metamorphosis, provided the party which has inaugurated this policy remains in power to carry it out."

The Peace Democracy generally throughout the North oppose this measure. In Ohio they oppose it especially because it commits the people of the Nation in favor of manhood suffrage. They tell us that if it is wise and just to entrust the ballot to colored men in the District of Columbia, in the Territories, and in the rebel States, it is also just and wise that they should have it in Ohio and in the other States of the North.

Union men do not question this reasoning, but if it is urged as an objection to the plan of Congress, we reply: There are now within the limits of the United States about five millions of colored people. They are not aliens or strangers. They are here not by the choice of themselves or of their ancestors. They are here by the misfortune of their fathers and the crime of ours. Their labor, privations, and sufferings, unpaid and unrequited, have cleared and redeemed one-third of the inhabited territory of the Union. Their toil has added to the resources and wealth of the nation untold millions. Whether we prefer it or not, they are our countrymen, and will remain so forever.

They are more than countrymen—they are citizens. Free colored people were citizens of the colonies. The Constitution of the United States, formed by our fathers, created no disabilities on account of color. By the acts of our fathers and of ourselves, they bear equally the burdens and are required to discharge the highest duties of citizens. They are compelled to pay taxes and to bear arms. They fought side by side with their white countrymen in the great struggle for independence, and in the recent war for the Union. In the revolutionary contest, colored men bore an honorable part, from the Boston massacre, in 1770, to the surrender of Cornwallis, in 1781. Bancroft says: "Their names may be read on the pension rolls of the country side by side with those of other soldiers of the revolution." In the war of 1812 General Jackson issued an order complimenting the colored men of his army engaged in the defense of New Orleans. I need not speak of their number or of their services in the war of the rebellion. The Nation enrolled and accepted them among her defendants to the number of about two hundred thousand, and in the new regular army act, passed at the close of the rebellion, by the votes of Democrats and Union men alike, in the Senate

and in the House, and by the assent of the president, regiments of colored men, cavalry and infantry, form part of the standing army of the Republic.

In the navy, colored American sailors have fought side by side with white men from the days of Paul Jones to the victory of the Kearsarge over the rebel pirate Alabama. Colored men will, in the future as in the past, in all times of National peril, be our fellow-soldiers. Tax-payers, countrymen, fellow-citizens, and fellow-soldiers, the colored men of America have been and will be. It is now too late for the adversaries of nationality and human rights to undertake to deprive these tax-payers, freemen, citizens, and soldiers of the right to vote.

Slaves were never voters. It was bad enough that our fathers, for the sake of Union, were compelled to allow masters to reckon three-fifths of their slaves for representation, without adding slave suffrage to the other privileges of the slaveholder. But free colored men were always voters in many of the Colonies, and in several of the States, North and South, after independence was achieved. They voted for members of the Congress which declared independence, and for members of every Congress prior to the adoption of the Federal Constitution; for the members of the convention which framed the Constitution; for the members of many of the State conventions which ratified it, and for every president from Washington to Lincoln.

Our government has been called the white man's government. Not so. It is not the government of any class, or sect, or nationality, or race. It is a government founded on the consent of the governed, and Mr. Broomall, of Pennsylvania, therefore properly calls it "the government of the governed." It is not the government of the native born, or of the foreign born, of the rich man, or of the poor man, of the white man, or of the colored man—it is the government of the freeman. And when colored men were made citizens, soldiers, and freemen, by our consent and votes, we were estopped from denying to them the right of suffrage.

General Sherman was right when he said, in his Atlanta letter, of 1864: "If you admit the negro to this struggle for any purpose, he has a right to stay in for all; and, when the fight is over, the hand that drops the musket can not be denied the ballot."

Even our adversaries are compelled to admit the Jeffersonian rule, that "the man who pays taxes and who fights for the country is entitled to vote."

Mr. Pendleton, in his speech against the enlistment of colored soldiers, gave up the whole controversy. He said: "Gentlemen tell us that these colored men are ready, with their strong arms and their brave hearts, to maintain the supremacy of the Constitution, and to defend the integrity of the Union, which in our hands to-day is in peril. What is that Constitution? It provides that every child of the Republic, every citizen of the land is before the law the equal of every other. It provides for all of them trial by jury, free speech, free press, entire protection for life and liberty and property. It goes further. It secures to every citizen the right of suffrage, the right to hold office, the right to aspire to every office or agency by which the government is carried on. Every man called upon to do military duty, every man required to take up arms in its defense, is by its provisions entitled to vote, and a competent aspirant for every office in the government."

The truth is, impartial manhood suffrage is already practically decided. It is now merely a question of time. In the eleven rebel States, in five of the New England States, and in a number of the Northwestern States, there is no organized party able to successfully oppose impartial suffrage. The Democratic party of more than half of the States are ready to concede its justice and expediency. The *Boston Post*, the able organ of the New England Democracy, says:

"Color ought to have no more to do with the matter (voting) than size. Only establish a right standard, and then apply it impartially. A rule of that sort is too firmly fixed in justice and equality to be shaken. It commends itself too clearly to the good sentiment of the entire body of our countrymen to be successfully traversed by objections. Once let this principle be fairly presented to the people of the several States, with the knowledge on their part that they alone are to have the disposal and settlement of it, and we sincerely believe it would not be long before it would be adopted by every State in the Union."

The *New York World*, the ablest Democratic newspaper in the Union, says:

"Democrats in the North, as well as the South, should be fully alive to the importance of the new element thrust into the politics of the country. We

suppose it to be morally certain that the new constitution of the State of New York, to be framed this year, will confer the elective franchise upon all adult male negroes. We have no faith in the success of any efforts to shut the negro element out of politics. It is the part of wisdom frankly to accept the situation, and get beforehand with the Radicals in gaining an ascendancy over the negro mind."

The Chicago *Times*, the influential organ of the Northwestern Democracy, says:

"The word 'white' is not found in any of the original constitutions, save only that of South Carolina. In every other State negroes, who possessed the qualifications that were required impartially of all men, were admitted to vote, and many of that race did vote, in the Southern as well as in the Northern States. And, moreover, they voted the Democratic ticket, for it was the Democratic party of that day which affirmed their right in that respect upon an impartial basis with white men. All Democrats can not, even at this day, have forgotten the statement of General Jackson, that he was supported for the presidency by negro voters in the State of Tennessee.

"The doctrine of impartial suffrage is one of the earliest and most essential doctrines of Democracy. It is the affirmation of the right of every man who is made a partaker of the burdens of the State to be represented by his own consent or vote in its government. It is the first principle upon which all true republican government rests. It is the basis upon which the liberties of America will be preserved, if they are preserved at all. The Democratic party must return from its driftings, and stand again upon the immutable rock of principles."

In Ohio the leaders of the Peace Democracy intend to carry on one more campaign on the old and rotten platform of prejudice against colored people. They seek in this way to divert attention from the record they made during the war of the rebellion. But the great facts of our recent history are against them. The principles of the fathers, reason, religion, and the spirit of the age are against them.

The plain and monstrous inconsistency and injustice of excluding one-seventh of our population from all participation in a government founded on the consent of the governed in this land of free discussion is simply

impossible. No such absurdity and wrong can be permanent. Impartial suffrage will carry the day. No low prejudice will long be able to induce American citizens to deny to a weak people their best means of self-protection for the unmanly reason that they are weak. Chief Justice Chase expressed the true sentiment when he said "the American Nation can not afford to do the smallest injustice to the humblest and feeblest of her children."

Much has been said of the antagonism which exists between the different races of men. But difference of religion, difference of nationality, difference of language, and difference of rank and privileges are quite as fruitful causes of antagonism and war as difference of race. The bitter strifes between Christians and Jews, between Catholics and Protestants, between Englishmen and Irishmen, between aristocracy and the masses are only too familiar. What causes increase and aggravate these antagonisms, and what are the measures which diminish and prevent them, ought to be equally familiar. Under the partial and unjust laws of the Nations of the Old World men of one nationality were allowed to oppress those of another; men of one faith had rights which were denied to men of a different faith; men of one rank or caste enjoyed special privileges which were not granted to men of another. Under these systems peace was impossible and strife perpetual. But under just and equal laws in the United States, Jews, Protestants, and Catholics, Englishmen and Irishmen, the former aristocrat and the masses of the people, dwell and mingle harmoniously together. The uniform lesson of history is that unjust and partial laws increase and create antagonism, while justice and equality are the sure foundation of prosperity and peace.

Impartial suffrage secures also popular education. Nothing has given the careful observer of events in the South more gratification than the progress which is there going on in the establishment of schools. The colored people, who as slaves were debarred from education, regard the right to learn as one of the highest privileges of freemen. The ballot gives them the power to secure that privilege. All parties and all public men in the South agree that, if colored men vote, ample provision must be made in the reorganization of every State for free schools. The ignorance of the masses, whites as well as blacks, is one of the most discouraging features of Southern society. If Congressional reconstruction succeeds, there will be free schools for all. The colored people will see that their children attend them. We need indulge

in no fears that the white people will be left behind. Impartial suffrage, then, means popular intelligence; it means progress; it means loyalty; it means harmony between the North and the South, and between the whites and the colored people.

The Union party believes that the general welfare requires that measures should be adopted which will work great changes in the South. Our adversaries are accustomed to talk of the rebellion as an affair which began when the rebels attacked Fort Sumter in 1861, and which ended when Lee surrendered to Grant in 1865. It is true that the attempt by force of arms to destroy the United States began and ended during the administration of Mr. Lincoln. But the causes, the principles, and the motives which produced the rebellion are of an older date than the generation which suffered from the fruit they bore, and their influence and power are likely to last long after that generation passes away. Ever since armed rebellion failed, a large party in the South have struggled to make participation in the rebellion honorable and loyalty to the Union dishonorable. The lost cause with them is the honored cause. In society, in business, and in politics, devotion to treason is the test of merit, the passport to preferment. They wish to return to the old state of things—*an oligarchy of race and the sovereignty of States*.

To defeat this purpose, to secure the rights of man, and to perpetuate the National Union, are the objects of the Congressional plan of reconstruction. That plan has the hearty support of the great generals (so far as their opinions are known)—of Grant, of Thomas, of Sheridan, of Howard—who led the armies of the Union which conquered the rebellion. The statesmen most trusted by Mr. Lincoln and by the loyal people of the country during the war also support it. The Supreme Court of the United States, upon formal application and after solemn argument, refuse to interfere with its execution. The loyal press of the country, which did so much in the time of need to uphold the patriot cause, without exception, are in favor of the plan.

In the South, as we have seen, the lessons of the war and the events occurring since the war have made converts of thousands of the bravest and of the ablest of those who opposed the National cause. General Longstreet, a soldier second to no living corps commander of the rebel army, calls it "a peace offering," and advises the South in good faith to organize under it.

Unrepentant rebels and unconverted Peace Democrats oppose it, just as they opposed the measures which destroyed slavery and saved the nation.

Opposition to whatever the Nation approves seems to be the policy of the representative men of the Peace Democracy. Defeat and failure comprise their whole political history. In laboring to overthrow reconstruction they are probably destined to further defeat and further failure. I know not how it may be in other States, but if I am not greatly mistaken as to the mind of the loyal people of Ohio, they mean to trust power in the hands of no man who, during the awful struggle for the Nation's life, proved unfaithful to the cause of liberty and of Union. They will continue to exclude from the administration of the government those who prominently opposed the war, until every question arising out of the rebellion relating to the integrity of the Nation and to human rights shall have been firmly settled on the basis of impartial justice.

They mean that the State of Ohio, in this great progress, "whose leading object is to elevate the condition of men, to lift artificial weights from all shoulders, to clear the paths of laudable pursuits for all, to afford all an unfettered start and a fair chance in the race of life," shall tread no step backward.

Penetrated and sustained by a conviction that in this contest the Union party of Ohio is doing battle for the right, I enter upon my part of the labors of the canvass with undoubting confidence that the goodness of the cause will supply the weakness of its advocates, and command in the result that triumphant success which I believe it deserves.

Speech of GENERAL R. B. HAYES, delivered at Sidney, Ohio, Wednesday, September 4, 1867.

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Mr. President and Fellow-Citizens:

It was very plain at the beginning of the pending canvass in Ohio that the leading speakers of the peace party of the State were desirous to persuade the people that at this election they were to pass upon different issues from

those which have been considered in former elections. They undertook at the beginning, generally, to discuss questions which have not heretofore been much considered. They told the people that the old issues were settled, and that in this canvass in particular, there would be no propriety in discussing the record made by men during the war; that the war was over; that by-gones ought to be permitted to be by-gones; and they started a considerable number of subjects for discussion, which I claim are either unimportant matters, or are matters which are in no sense party questions. For example, Judge Ranney, in a very elaborate speech at Mansfield, of great length, discussed perhaps a dozen or fifteen topics, almost all of which are in no sense party questions. For example, he talked about the land grants that had been made to the railroads, particularly to the Pacific Railroad, during the last few years, and of the subsidies of money that by law have been given to the railroad companies. Now, this is but a specimen of the topics discussed by Judge Ranney. It is enough to say, in regard to the railroads, that they were voted for indiscriminately by Union men and by Democrats—peace Democrats and war Democrats—and that they were finally made laws by the signature of Andrew Johnson. They are in no sense, therefore, party issues; and the only purpose of discussing them is, so far as I can see, to mislead the people, and to withdraw their attention from the main issues before them.

Judge Thurman has discussed the subject of a standing army. He has spoken of the great expense of keeping up a standing army, and, as I think, has greatly exaggerated the sum requisite—naming two hundred and fifty millions as the annual expense of it. I suppose that is three or four, or perhaps five times as great as the actual amount: but I do not stop to argue that matter with him. I say to him, in regard to it, that Democrats voted for it in both houses, and it became a law by the signature of the president whom he supports. It is not, therefore, a party issue.

I can not, in any reasonable length of time, even name the various topics that have been discussed in this way. Perhaps none has attracted more attention than the subject of finances, and the main issue presented by our Democratic friends on that subject has been this—namely, that it is for the interest of the people to pay off the whole of the present bonded debt by an issue of greenbacks. At the beginning of the canvass, the Cincinnati *Enquirer*, and, I think, the leading peace party paper at Columbus, and Mr.

Vallandigham, presented this as the leading question before the people. The *Enquirer* told us that Democratic conventions in forty counties had resolved in favor of it; and certainly if any one of the topics which have been presented in this way may be regarded as a party topic, that is one. If they have succeeded in making a new issue, that is one. On the 20th of last month, I spoke at Batavia, and I referred to that subject. I said that Judge Thurman was plainly committed against the issue of more greenbacks; that when we were in the midst of the war, and the necessities of the country were such that it was necessary to get money by every means in our power, he had told the people there was no constitutional authority to issue greenbacks. I said further, that in his speech at Waverly he had spoken of this currency as a currency of rags; and that, therefore, I was authorized to say he was opposed to this new scheme of the Cincinnati *Enquirer*. That speech of mine was reported in the Cincinnati *Commercial* of the next morning. On the following day, the 22d of August, the *Enquirer* noticed my speech. I will read you the whole of the *Enquirer's* article on that subject. I do this because I think, in this county as well as elsewhere, Democrats are claiming the votes of Union men on the ground that it is wise to pay off the bonded debt by an issue of greenbacks, and I wish to show that Judge Thurman is opposed to the scheme. Therefore, it is no party issue, because no party State convention has resolved in favor of it, and the peace party candidate for governor is against it. The *Enquirer* says, under the caption of "Judge Thurman and the bondholders:"

"In his speech at Batavia, Clermont county, on Tuesday, General Hayes, while discussing the payment of the public debt question, said:

"Judge Thurman has not yet spoken distinctly on this question. But his well-known opinion, that even the necessities of the war did not authorize, under our constitution, the issue of the legal-tender currency, coupled with the fact that he speaks of it in his Waverly speech as a currency of 'rags—only rags'—warrants me in saying that he is probably opposed, on grounds both of constitutional law and of expediency, to the financial scheme of Mr. Vallandigham and of the Cincinnati *Enquirer*. Judge Ranney and Judge Jewett are also evidently unwilling to accept the inflation theories of the *Enquirer*. They are both opposed to taking up the greenbacks now in circulation by an issue of bonds bearing interest, and repeat the same arguments against this policy of Johnson's administration which were urged

by the Cincinnati *Gazette* and by Thaddeus Stevens and Judge Kelley, with much more cogency, a year or two ago."

Commenting on the above, the *Enquirer* says, editorially:

"This will render it necessary for Judge Thurman to do what he ought to have done in his first (Waverly) speech, define his position distinctly on this question. As one of his friends and supporters, we call upon him to put a stop to these representations of General Hayes by giving the people his views.

"Is he for the bondholders or the people? Does he believe that the debts due the bondholders should be paid in any other than the government money, which pays all other debts and liabilities, even those which were contracted in gold?

"Is he for one currency for the bondholders and another and different currency for the people?

"The Democracy of more than forty counties in Ohio have spoken out on this question, and we have no doubt the example will be followed by every county in the State. In some counties no other resolutions have been passed.

"The time has passed when the people kept step to the music of candidates. The latter must now march with and not against the people. Will Judge Thurman define his position, for thousands of votes may depend upon it?"

On the 27th of August, at Wapakoneta, Judge Thurman made a speech, which I hold in my hand—as you see, a very long speech, covering all of one side of the *Commercial*, and parts of two others. One would suppose that, a week having elapsed since the speech to which his attention was called had been made, that in this speech, at least, if this was an important issue of the canvass, we should have his position plainly and clearly defined. Of that long speech he devotes to that important question, which the *Enquirer* says is the real question, and which many of your speakers doubtless here say is the real question, precisely eleven lines—one short paragraph. And the pith of that paragraph is contained in these two lines: "I am sorry that what I have to say on that subject for publication I must reserve for some future time."

I think that this satisfactorily shows where my friend Judge Thurman stands on that issue, and that we therefore need no longer discuss it—in short, that, as a party question, it is abandoned by the candidate of the Democratic party. There is another phase of the financial question. Judge Ranney and Judge Jewett are telling the people that it is the policy of Secretary McCulloch to take up the greenback currency and issue in its stead interest-bearing bonds, not taxable, principal and interest, both payable in coin at the option of the secretary. That is true. That was the policy, and is the policy of Secretary McCulloch. But they go further, and say they are authorized to say that this is the policy of the Union party. I take issue with them on that statement. They offer no proof that it is true, except the fact that it is the policy of the Johnson administration; and I submit to an intelligent audience that the fact that Johnson and his administration are in favor of a measure is no evidence whatever that the Union party supports it. It is not for me to prove a negative, but I am prepared, nevertheless, to prove it. The very measure which was intended to carry out this policy of Secretary McCulloch to enable him to take up the greenback currency with interest-bearing bonds was introduced in Congress in March, 1866. I have here the votes upon that question, and I say to you that the Democratic party in both houses—all the members of the Democratic party in both houses—voted for Senator McCulloch's plan, and that Mr. Julian, Judge Schofield, Mr. Lawrence, all of whom I see here, and myself, a majority of the Republican members of Congress, voted against the scheme, and it became a law because a minority of the Union party, with the unanimous vote of the Democratic party, supported it; and because, when it was submitted to Andrew Johnson, instead of vetoing it, as he did all Union party measures, he wrote his name, on the 12th of April, at the bottom of it, "Approved, Andrew Johnson." Now, it is under that measure, and by virtue of that law, voted for by Mr. Finck and and Mr. LeBlond, of the Democratic party of Ohio, in the House of Representatives; it is by virtue of that law that to-day Secretary McCulloch is issuing interest-bearing bonds, not taxable, to take up the greenback currency of the country. I think, then, I am authorized in saying that these gentlemen are mistaken when they accuse the Union party of being in favor of taking up the greenback currency and putting in the place of it interest-bearing, non-taxable bonds.

This investigation of two or three of the leading questions presented to the people at the beginning of this canvass by the advocates of the peace party of Ohio is, I think, sufficient to warrant me in saying that all of the side issues presented are merely urged on the people to withdraw their minds from the great main issue which ought to engage the attention of the American Nation. What is that great issue? It is reconstruction. That is the main question before us, and until it is settled, and settled rightly, all other issues sink into insignificance in comparison with it. Fortunately for the Union party of Ohio, events are occurring every day at Washington which tend more and more clearly to define the exact question before the people, showing that the main question is whether the Union shall be reconstructed in the interests of the rebellion or in the interests of loyalty and Union; whether that reconstruction shall be carried on by men who, during the war, were in favor of the war and against the rebellion, or by men who in the North were against the war, and who in the South carried on the rebellion. On one side of this question we see Andrew Johnson, Judge Black, and the other leaders of the peace party of the North and the unrepentant rebels of the South; and on the other side is the great war secretary, Stanton, with General Grant, General Sheridan, General Thomas, General Howard, and the other Union commanders engaged in carrying out the reconstruction acts of Congress. This presents clearly enough the question before the people. General Grant, in one paragraph of his letter to the president, said to him:

"General Sheridan has performed his civil duties faithfully and intelligently. His removal will only be regarded as an effort to defeat the laws of Congress. It will be interpreted by the unreconstructed element in the South—those who did all they could to break up this government by arms, and now wish to be the only element consulted as to the method of restoring order—as a triumph. It will embolden them to renewed opposition to the will of the loyal masses, believing that they have the executive with them."

This presents exactly the question before the people. We want the loyal people of the country, the victors in the great struggle we have passed through, to do the work; we want reconstruction upon such principles, and by means of such measures that the causes which made reconstruction necessary shall not exist in the reconstructed Union; we want that foolish notion of State rights, which teaches that the State is superior to the Nation

—that there is a State sovereignty which commands the allegiance of every citizen higher than the sovereignty of the nation—we want that notion left out of the reconstructed Union; we want it understood that whatever doubts may have existed prior to the war as to the relation of the State to the National government, that now the National government is supreme, anything in the constitution or laws of any State to the contrary notwithstanding. Again, as one of the causes of the rebellion, we want slavery left out, not merely in name, but in fact, and forever; we want the last vestige, the last relic of that institution, rooted out of the laws and institutions of every State; we want that in the South there shall be no more suppression of free discussion. I notice that in the long speech of my friend, Judge Thurman, he says that for nearly fifty years, throughout the length and breadth of the land, freedom of speech and of the press was never interfered with, either by the government or the people. For more than thirty years, fellow-citizens, there has been no such thing as free discussion in the South. Those moderate speeches of Abraham Lincoln on the subject of slavery—not one of them—could have been delivered without endangering his life, south of Mason and Dixon's line. We want in the reconstructed Union that there shall be the same freedom of the press and freedom of speech in the States of the South that there always has been in the States of the North. Again, we want the reconstructed Union upon such principles that the men of the South who, during the war, were loyal and true to the government, shall be protected in life, liberty, and property, and in the exercise of their political rights. It becomes the solemn duty of the loyal victors in the great struggle to see that the men who, in the midst of difficulties, discouragements, and dangers in the South were true, are protected in these rights. And, in order that our reconstruction shall be carried out faithfully and accomplish these objects, we further want that the work shall be in the hands of the right men. Andrew Johnson, in the days when he was loyal, said the work of reconstruction ought to be placed absolutely in the hands of the loyal men of the State; that rebels, and particularly leading rebels, ought not to participate in that work; that while that work is going on they must take back seats. We want that understood in our work of reconstruction. How important it is to have the right men in charge of this work appears upon the most cursory examination of what has already been done. President Lincoln administered the same laws substantially—was sworn to support the same constitution with Andrew

Johnson—yet how different the reconstruction as carried out by these two men. Lincoln's reconstruction in all the States which he undertook to reorganize gave to those States loyal governments, loyal governors, loyal legislatures, judges, and officers of the law. Andrew Johnson, administering the same constitution and the same laws, reconstructs a number of States, and in all of them leading rebels are elected governors, leading rebels are members of the legislature, and leading rebels are sent to Congress. It makes, then, the greatest difference to the people of this country who it is that does the work.

This, my friends, brings me to a proposition to which I call the attention of every audience that I have occasion to address, and that is this, that until the work of reconstruction is complete, until every question arising out of the rebellion relating to the integrity of the Nation and to human rights has been settled, and settled rightly, no man ought to be trusted with power in this country, who, during the struggle for the Nation's life, was unfaithful to Union and liberty. That is the proposition upon which I go before the people of Ohio. At the beginning of the canvass, as I have said, the gentlemen who are engaged in advocating the claims of the peace party of Ohio did not desire to have this record discussed. I am happy to know by this long Wapakoneta speech of Judge Thurman that at last they have found it necessary to come to the discussion of the true question. Judge Thurman, in that speech, invites us to the discussion of it. He says:

"I give all of them this bold and unequivocal defiance, that there is no one act of my life, or one sentence ever uttered by me that I am not prepared to have investigated by the American people; and I wish them to stand up to the same rule, that I may see what is in their past record, and see how it tallies with what they say to the American people at the present time."

He proceeds to do this. He proceeds to examine the record of various gentlemen connected with the Union party. Now, I am not in the habit of giving challenges or accepting challenges, but I desire, for a few minutes, to ask the attention of this audience to the record of my friend, Judge Thurman. He under-takes to justify the course he took as a leader of the peace party of Ohio, by telling us what Mr. Lincoln said in 1848. Now, what is it that Mr. Lincoln said? He made a speech during the Mexican war as to the title which Texas had to certain lands in dispute between the State

of Texas and Mexico, or rather between the United States and Mexico. He laid down the doctrine that a revolutionary government is entitled to own just as much of the property of the former government as it has succeeded in conquering; and he says, in the course of that speech, that it is the right of every people to revolutionize; that the right of revolution, in short, belongs to every people; that it was the right exercised by our forefathers in 1776. Now, that is all true—that is all correct; but how does my friend Judge Thurman find any justification for the rebellion in that? What is the right of revolution? It is the right to resist a government under which you live, if that government is guilty of intolerable oppression or injustice, but not otherwise. And that is the doctrine of Abraham Lincoln. Now, in order to make that a precedent for the rebellion, Judge Thurman is bound to take the position that, in the case of the rebel States, there had been acts of intolerable oppression and injustice done to that part of the country which went into rebellion. I know that the rebels, for the most part, did not put the rebellion upon that ground; but Judge Thurman now does it for them. He makes it out—or must make it out to sustain himself—that it was a case of revolution, growing out of the exercise of that right which our fathers exercised in 1776. Now, if Judge Thurman can show that there was justification for the rebellion, he has made out his case. If that rebellion was not justified by such circumstances—if there was no such intolerable injustice and oppression—he has failed in his precedent. He goes further, and says that Mr. Wade, Chief Justice Chase, Secretary Stanton, and General Butler all held sentiments before the war the same as the sentiments which he held then, and holds now, on the subject of the rights of the States. Suppose they did—suppose they belonged to the same party before the war—is that any defense of his conduct during the war? They saw fit, after the war had broken out, to rally to the side of their country, notwithstanding any notions or theories they might have held with regard to the rights of the States.

I do not stop now to discuss the correctness of Judge Thurman's opinions as to the course of these men prior to the war. It is enough for me to say that the question I make—the question which the people of Ohio make—is, What was your conduct after it was found that there was a conspiracy to break up the Union, after war was upon us, and armies were raised—what was your conduct then? That is the question before the people. And I ask of

an intelligent audience, what was the duty of a good citizen after that war for the destruction of the government and the Union had begun? Need I ask any old Jackson Democrat what is his duty when the Union is at stake? In 1806, Aaron Burr proposed this matter to Andrew Jackson, of making a new confederacy in the Southwest. Jackson said:

"I hate the Dons, and I would like to see Mexico dismembered; but before I would see one State of this Union severed from the rest, I would die in the last ditch."

That was Jackson's Democracy. Douglass said:

"This is no time for delay. The existence of a conspiracy is now known; armies are raised to accomplish it. There can be but two sides to the question. A man must be either for the United States or against the United States. There can be no neutrals in this war—only patriots and traitors."

There is the Douglass doctrine. But I need not go back to Jackson and Douglass. I have the opinions of the very gentlemen who now lead the peace party on this subject. Let me read you a resolution, introduced and passed through a Democratic convention, in 1848, by Clement L. Vallandigham:

"Resolved, That whatever opinions might have been entertained of the origin, necessity or justice, by the Tories of the revolutionary war, by the Federalists of the late war with England, or by the Whigs and Abolitionists of the present war with Mexico, the fact of their country being engaged in such a war ought to have been sufficient for them and to have precluded debate on that subject till a successful termination of the war, and that in the meantime the patriot could have experienced no difficulty in recognizing his place on the side of his country, and could never have been induced to yield either physical or moral aid to the enemy."

I will quote also from Judge Thurman himself. In a speech lecturing one of his colleagues, who thought the Mexican war was unnecessary, he says:

"It is a strange way to support one's country, right or wrong, to declare after war has begun, when it exists both in law and in fact, that the war is aggressive, unholy, unrighteous, and damnable on the part of the government of that country, and on that government rests its responsibility

and its wrongfulness. It is a strange way to support one's country right or wrong in a war, to tax one's imagination to the utmost to depict the disastrous consequences of the contest; to dwell on what it has already cost and what it will cost in future; to depict her troops prostrated by disease and dying with pestilence; in a word, to destroy, as far as possible, the moral force of the government in the struggle, and hold it up to its own people and the world as the aggressor that merits their condemnation. It was for this that I arraigned my colleague, and that I intend to arraign him. It was because his remarks, as far as they could have any influence, were evidently calculated to depress the spirits of his own countrymen, to lessen the moral force of his own government, and to inspire with confidence and hope the enemies of his country."

He goes on further to say:

"What a singular mode it was of supporting her in a war to bring against the war nearly all the charges that were brought by the peace party Federalists against the last war, to denounce it as an unrighteous, unholy, and damnable war; to hold up our government to the eyes of the world as the aggressors in the conflict; to charge it with motives of conquest and aggrandizement; to parade and portray in the darkest colors all the horrors of war; to dwell upon its cost and depict its calamities."

Now, that was the doctrine of Judge Thurman as to the duties of citizens in time of war—in time of such a war as the Mexican war even, in which no vital interest of the country could by possibility suffer. Judge Thurman says that General Hayes, in his speech, has a great many slips cut from the newspapers, and that he must have had some sewing society of old ladies to cut out the slips for him. I don't know how he found that out. I never told it, and you know the ladies never tell secrets that are confided to them. I hold in my hand a speech of Judge Thurman, from which I have read extracts, and I find that he has in it slips cut from more than twenty different prints, sermons, newspapers, old speeches, and pamphlets, to show how, in the war of 1812, certain Federalists uttered unpatriotic sentiments. I presume he must have acquired his slips on that day in the way he says I acquired mine now.

Now, my friends, I propose to hold Judge Thurman to no severe rule of accountability for his conduct during the war. I merely ask that it shall be judged by his own rule: "Your country is engaged in war, and it is the duty of every citizen to say nothing and do nothing which shall depress the spirits of his own countrymen, nothing that shall encourage the enemies of his country, or give them moral aid or comfort." That is the rule. Now, Judge Thurman, how does your conduct square with it? I do not propose to begin at the beginning of the war, or even just before the war, to cite the record of Judge Thurman. I am willing to say that perhaps men might have been mistaken at that time. They might have supposed in the beginning a conciliatory policy, a non-coercive policy, would in some way avoid the threatened struggle. But I ask you to approach the period when the war was going on, when armies to the number of hundreds of thousands of men were ready on one side and the other, and when the whole world knew what was the nature of the great struggle going on in America. Taking the beginning of 1863, how stands the conflict? We have pressed the rebellion out of Kentucky and through Tennessee. Grant stands before Vicksburg, held at bay by the army of Pemberton; Rosecranz, after the capture of Nashville, has pressed forward to Murfreesboro, but is still held out of East Tennessee by the army of Bragg. The army of the Potomac and the army of Lee, in Virginia, are balanced, the one against the other. The whole world knows that that exhausting struggle can not last long without deciding in favor of one side or the other. That the year 1863 is big with the fate of Union and of liberty, every intelligent man in the world knows—that on one side it is a struggle for nationality and human rights. There is not in all Europe a petty despot who lives by grinding the masses of the people, who does not know that Lincoln and the Union are his enemies. There is not a friend of freedom in all Europe who does not know that Lincoln and the loyal army are fighting in the cause of free government for all the world. Now, in that contest, where are you, Judge Thurman? It is a time when we need men and money, when we need to have our people inspired with hope and confidence. Your sons and brothers are in the field. Their success depends upon your conduct at home.

The men who are to advise you what to do have upon them a dreadful responsibility to give you wise and patriotic advice. Judge Thurman, in the speech I am quoting from, says:

"But now, my friends, I shall not deal with obscure newspapers or obscure men. What a private citizen like Allen G. Thurman may have said in 1861 is a matter of indifference."

Ah, no, Judge Thurman, the Union party does not propose to allow your record to go without investigation because you are a private citizen. I know you held no official position under the government at the time I speak of; but, sir, you had for years been a leading, able, and influential man in the great party which had often carried your State. You were acting under grave responsibilities. More than that, during that year 1863, you were more than a private citizen. You were one of the delegates to the State convention of that year; you were one of the committee that forms your party platform in that convention; you were one of the central committee that carries on the canvass in the absence of your standard-bearers; and you were one of the orators of the party. No, sir, you were not a private citizen in 1863. You were one of the leading and one of the ablest men in your party in that year, speaking through the months of July, August, September, and October, in behalf of the candidate of the peace party. You can not escape as a private citizen.

Well, sir, in the beginning of that eventful year, there rises in Congress the ablest member of the peace party, to advise Congress and to advise the people, and what does he say?

"You have not conquered the South. You never will. It is not in the nature of things possible, especially under your auspices. Money you have expended without limit; blood you have poured out like water."

Now, mark the taunt—the words of discouragement that were sent to the people and to the army of the Union:

"Defeat, debt, taxation, sepulchers—these are your trophies. Can you get men to enlist now at any price?"

Listen again to the words that were sent to the army and to the loyal people:

"Ah, sir, it is easier to die at home."

We knew that, Judge Thurman, better than Mr. Vallandigham knew it. We had seen our comrades falling and dying alone on the mountain side and in

the swamps—dying in the prison-pens of the Confederacy and in the crowded hospitals, North and South. Yet he had the face to stand up in Congress, and say to the people and the world, "Ah, sir, it is easier to die at home." Judge Thurman, where are you at this time? He goes to Columbus to the State convention, on the 11th of June of that year, in all the capacities in which I have named him—as a delegate, as committeeman, and as an orator—and he spends that whole summer in advocating the election of the man who taunted us with the words, "Defeat, debt, taxation, sepulchers—these are your trophies."

In every canvass you know there is a key-note. What was the key-note of that canvass? Who sounded it? It came over to us from Canada. On the 15th of July, 1863, Mr. Vallandigham wrote, accepting the nomination of that convention of Judge Thurman's. He said, in his letter:

"If this civil war is to terminate only by the subjugation or submission of the South to force and arms, the infant of to-day will not live to see the end of it. No; in another way only can it be brought to a close. Traveling a thousand miles and more, through nearly half of the Confederate States, and sojourning for a time at widely different points, I met not one man, woman, or child who was not resolved to perish, rather than yield to the pressure of arms, even in the most desperate extremity. And whatever may and must be the varying fortune of the war, in all of which I recognize the hand of Providence pointing visibly to the ultimate issue of this great trial of the States and people of America, they are better prepared now, every way, to make good their inexorable purpose than at any period since the beginning of the struggle."

That was the key-note of the campaign. It was the platform of the candidate in behalf of whom Judge Thurman went through the State of Ohio—all over the State—in July, August, and September, up to the night of the 12th of October—making his last speech just twenty-four hours before the glad news went out to all the world, over the wires, that the people of Ohio had elected John Brough by over one hundred thousand majority, in preference to the author of the sentiment, "Defeat, debt, taxation, sepulchers."

And how true was that sentiment which had been endorsed by the peace party. I do not question the motives of men in any of my speeches. I merely

ask as to the facts. "Better prepared," said he, "than ever before," on the 15th of July. On that theory, they went through the canvass to the end. What was the fact? On the 15th of July, 1863, Grant had captured Vicksburg. That gallant, glorious son of Ohio, who perished afterward in the Atlanta campaign, and whose honored remains now sleep near his old home on the lake shore, General James B. McPherson, on the 4th of July, had ridden at the head of a triumphant host into Vicksburg. On the 7th of July, Banks had captured Port Hudson. A few days afterward, a party of serenaders, calling upon Mr. Lincoln, saw that good man, who had been bowed down with the weight and cares of office; they saw his haggard face lit up with joy and cheer, and he said to them: "At last, Grant is in Vicksburg. The Father of Waters, the Mississippi, again flows unvexed to the sea."

On the 15th of July, what else had happened? The army of Lee, defiantly crowding up into Pennsylvania, and claiming to go where it pleased, and take what it pleased, only doubting whether they would first capture Washington, Baltimore, Philadelphia, or New York, and concluding finally that it was a matter of military strategy first to capture the Army of the Potomac—that army, which had invaded Pennsylvania under such flattering auspices, was, on the 15th of July, when Mr. Vallandigham's letter was written, straggling back over the swollen waters of the Potomac, glad to escape from the pursuing armies of the Union, with the loss of thirty thousand of its bravest and best, killed, wounded, and captured, and utterly unable ever after during the war to set foot upon free soil except in such fragments as were captured by our armies in subsequent battles. That was the condition of the two great armies when Mr. Vallandigham uttered that sentiment; and on that sentiment my friend, Judge Thurman, argued his case through all that summer.

But wisdom was not learned even at the close of 1863 by this peace party. Things were greatly changed in the estimation of every loyal man. We had now not merely got possession of the Mississippi river—we had not merely driven the army of Lee out of Pennsylvania, never again to return, but the battle of Mission Ridge and the battle of Knoxville had been fought. That important strategic region, East Tennessee, was now within our lines. From that abode of loyalty, the mountain region of East Tennessee, we could pierce to the very heart of the Southern Confederacy. We were now in possession of the interior lines, giving us an immense advantage, and we

were in a condition to march southeast to Atlanta and northeast to Richmond; yet with this changed state of affairs, where is my friend Judge Thurman? Advising the people? What is he advising them to do? He says Allen G. Thurman was a private citizen. Not so. He held no official position, I know, under the government. Fortunately for the people of this country, they were not giving official positions in Ohio to men of his opinions and sentiments at that time. [A voice, "They won't now, either."] But he was made delegate at large from the State of Ohio to the convention to meet at Chicago to nominate a president and form a platform on which that nominee should stand. Mr. Vallandigham was a district delegate and one of the committee to form a platform, and he drew the most important resolution. The principal plank of that platform is of his construction. You are perfectly familiar with it. It merely told the people that the war had been for four years a failure, and advised them to prepare to negotiate with this Confederate nation on our Southern borders. Well, when this advice was given to the Nation, we were still in the midst of the war, and were prosecuting it with every prospect of success. What had been accomplished in 1863 enabled us, with great advantages, to press upon the rebellion. I remember well when I first read that resolution declaring the war a four years' failure. It came to the army in which I was serving on the same day that the news came to us that Sherman had captured Atlanta. We heard of both together. The war a four years' failure, said the Chicago convention. I well remember how that evening our pickets shouted the good news to the pickets of the enemy. What good news? News that a convention representing nearly one-half of the people of the North had concluded that the war was a failure? No such news was shouted from our-picket line. The good news that they shouted was that Sherman had captured Atlanta.

This, my friends, is a part of that record which we are invited to examine by my friend Judge Thurman. I ask you to apply to it the principle that whoever, during the great struggle, was unfaithful to the cause of the country is not to be trusted to be one of the men to harvest and secure the legitimate fruits of the victory, which the Union people and the Union army won during the rebellion. In the great struggle in 1863 in Ohio, I had not an opportunity to hear the eloquent voice of John Brough, which I knew stirred the hearts of the people like the sound of a trumpet, but I read, as occasion offered, his speeches, and I saw not one in which he did not warn the young

men—warn the Democrats of Ohio—that if they remained through that struggle opposed to this country, the conduct particularly of leading men would never be forgotten, and never forgiven. Now, in this canvass, I merely have to ask the people to remember the prediction of honest John Brough, and see that that prediction is made good.

It is not worth while now to consider, or undertake to predict, when we shall cease to talk of the records of those men. It does seem to me that it will, for many years to come, be the voice of the Union people of the State that for a man who as a leader—as a man having control in political affairs—that for such a man who has opposed the interests of his country during the war, "the post of honor is the private station." When shall we stop talking about it? When ought we to stop talking about that record, when leading men come before the people? Certainly not until every question arising out of the rebellion, and every question which is akin to the questions which made the rebellion, is settled. Perhaps these men will be remembered long after these questions are settled; perhaps their conduct will long be remembered. What was the result of this advice to the people? It prolonged the war; it made it impossible to get recruits; it made it necessary that we should have drafts. They opposed the drafts, and that made rioting, which required that troops should be called from all the armies in the field, to preserve the peace at home. From forty to a hundred thousand men in the different States of this Union were kept within the loyal States to preserve the peace at home. And now, when they talk to you about the debt and about the burden of taxation, remember how it happened that the war was so prolonged, that it was so expensive, and that the debt grew to such large proportions.

There are other things, too, to be remembered. I recollect that at the close of the last session of Congress, I went over to Arlington, the estate formerly of Robert E. Lee, and I saw there the great National cemetery into which that beautiful place has been converted. I saw the graves of 18,000 Union soldiers, marked with white head-boards, denoting the name of each occupant, and his regiment and company. Passing over those broad acres, covered with the graves of the loyal men who had died in defense of their country, I came upon that which was even more touching than these 18,000 head-boards. I found a large granite, with this inscription upon it:

"Beneath this stone repose the remains of two thousand one hundred and eleven unknown soldiers, gathered, after the war, from the field of Bull Run and the route to the Rappahannock. Their remains could not be identified, but their names and deaths are recorded in the archives of their country, and its grateful citizens honor them as of their noble army of martyrs. May they rest in peace. September, 1866."

I say to those men who were instrumental and prominent in prolonging the war, by opposing it, that when honeyed words and soft phrases can erase from the enduring granite inscriptions like these, the American people may forget their conduct; but I believe they will not do so until some such miracle is accomplished.

That is all I desire to say this afternoon upon the record of the peace party of Ohio. A few words upon another topic that is much discussed in this canvass, and that is the proposed amendment to the constitution of the State of Ohio. At the beginning, I desire to say, that there may be no misunderstanding—and I suppose there is no misunderstanding upon that subject—that I am in favor of the adoption of that amendment, and I trust that every Union man, and every Democrat too, will vote for it next October. And why do I say this? Let us discuss it a moment. It consists of four parts. First, it disfranchises any man who becomes a resident of the State of Ohio, or who was a citizen of Ohio, who fought in the rebellion against the country. Isn't that right? If you want that to go into your constitution, vote for the amendment. It disfranchises every man who, being liable to the draft, when the country needed them at the front—when the soldiers doing their duty at the front were anxiously looking for their aid—it disfranchises every man who, at such time, ran away to escape the draft. Isn't that right? In the next place, it disfranchises every man who deserted his comrades at the front, and ran away to vote the peace party ticket at the rear. Isn't that right? It disfranchises him whether he voted that ticket or not, I may observe. If you want these provisions in your State constitution, vote for the amendment. In the next place, it gives the right of suffrage to all the negroes of Ohio. Mark the phrase: I have not said impartial suffrage or manhood suffrage. I wish to be understood. It gives the suffrage to the negroes of Ohio upon the same terms that it is given to white men. The reason I am in favor of that is because it is right.

Let me have the ears of my Democratic friends on that question a moment. If Democracy has any meaning now that is good—any favorable meaning—it is that Democracy is a government of the people, by the people, and for the people. It is a government in which every man who has to obey the laws has a part in making the laws, unless disqualified by crime. Then the proposition I am for is a Democratic proposition. Again, it is according to the principles upon which good men have always desired to see our institutions placed, namely, that all men are entitled to equal rights before the law. They are not equal in any other respect. Nobody claims that they are. But we propose to give to each man the same rights which you want for yourself. It is, in short, obeying the rule of the Great Teacher: "Do unto others as ye would that others should do unto you." Abraham Lincoln said: "No man is good enough to govern another without that other man's consent." Is not that true? Good as you think you are, are you good enough absolutely to govern another man without that other man's consent? If you really think so, just change shoes with that other man, and see if you are willing to be governed yourself, without your consent, by somebody else. The declaration of independence says governments derive their just powers from the consent of the governed. Now, don't you see there is no way by which one man can give consent to be governed by another man in a republican government except by the ballot? There is no way provided by which you can consent to give powers to a government except by the ballot. Therefore every man governed under our system is entitled to the ballot.

So much for principle. One word now as to why our Democratic friends oppose it. I remember their opposing the extension of suffrage once under circumstances that made many of us think they were doing wrong. During the years 1861, 1862, 1863, and 1864, I was a citizen of the Fifteenth ward, in Cincinnati; I had lived there ever since it was a ward. All the property I had in the world was taxed there, real or personal; and there was a party in Ohio of loyal Union men, who said I and others who were with me ought to have a right to vote, although I was not in the Fifteenth ward, but was serving the country in the field against the rebels. The Democratic party in Ohio—these very peace men—said no. Why did they say I should not vote? I never heard but one good reason, and that was the apprehension they had that if the soldiers did vote, they wouldn't vote the Democratic ticket. That's what's the matter. Now, I suspect we have the same difficulty on this

proposition; I suspect that the real trouble is that they fear if the colored man has a vote, they have dealt so hardly with him these last few years that when he comes to vote he will vote against the Democratic party. That's what's the matter. Why, for the sake of political power, these Democrats of Ohio have not been unwilling to look kindly toward the colored man. Do you remember we once had black laws in Ohio which kept the colored men out of the State? Who repealed those laws? Why did they do it? The Democratic party did it, because they could get political power by it. I suspect that if it were quite certain that the colored vote would elect Allen G. Thurman Governor of Ohio, our Democratic friends would not object to it at all. What, then, do I say to the Union men? This objection may be very good for the Democrats, but it is not a wise one for you.

I commend to you Union men who are a little weak on this question, or perhaps I should say a little strong, the example of the Union men of the country during the war. Abraham Lincoln thought, in 1862, it was wise to proclaim freedom to the slaves. Many good Union men thought it was unwise—thought Mr. Lincoln was going too far or too fast—but the sequel justified the wisdom of Abraham Lincoln. Again, he thought it was wise that colored men should be placed in our armies. There were good soldiers and good Union men who thought it was unwise. They feared that Mr. Lincoln was going too fast or too far, but events justified it. Now, everybody agrees that in both cases Abraham Lincoln was right. Now, the example I commend to our Union friends who are doubting on this great question is the example of those Union men during the war who doubted the wisdom of these other measures. Greatly as they were opposed to the proclamation of Abraham Lincoln, strongly as they were opposed to the enlistment of colored soldiers, I say to you I never heard of one good Union man, in the army or out of it, who left his party because of that difference with Mr. Lincoln. I commend that example to the Union men who now doubt about colored suffrage. The truth is, that every step made in advance toward the standard of the right has in the event always proved a safe and wise step. Every step toward the right has proved a step toward the expedient; in short, that in politics, in morals, in public and private life, the right is always expedient.

I thank you, fellow-citizens, for your kind attention.

***Speech of GOVERNOR HAYES, on his re-nomination, delivered June 23,
1869.***

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Twice since the organization of existing political parties the people of Ohio have trusted the law-making power of the State in the hands of the Democratic party. They first tried the experiment twelve years ago, and such were the results that ten years elapsed before they ventured upon a repetition of it. Two years ago, in a time of reaction, which was general throughout the country, the Democratic party, by a minority of the popular vote, having large advantages in the apportionment, obtained complete control of the legislature in both of its branches. They came into power, proclaiming that the past ought to be forgotten; that old issues and divisions should be laid aside; that new ideas and new measures required attention; and they were particularly emphatic and earnest in declaring that the enormous burdens of debt and taxation under which the people were struggling made retrenchment and economy the supreme duty of the hour.

These were their promises, and the manner in which they were kept is now before the people for their judgment. Disregarding the well-known and solemnly-expressed will of Ohio, they began the business of their first session by passing fruitless resolutions to rescind the ratification of the 14th amendment to the constitution of the United States.

They placed on the statute book visible admixture bills, to deprive citizens of the right of suffrage—a constitutional right long enjoyed and perfectly well settled by repeated decisions of the highest court having jurisdiction of the question.

They repealed the law allowing, after the usual residence, the disabled veterans of the Union army to vote in the township in which the National Soldiers' Home is situated; and enacted a law designed to deprive of the right of suffrage a large number of young men engaged in acquiring an education at "any school, seminary, academy, college, university, or other institution of learning." To prevent citizens who were deprived of their constitutional rights by these acts from obtaining prompt relief in the Supreme Court, they passed a law prohibiting that court from taking up

causes on its docket according to its own judgment of what was demanded by public justice, in any case "except where the person seeking relief had been convicted of murder in the first degree, or of a crime the punishment of which was confinement in the penitentiary."

I believe it is the general judgment of the people of Ohio that the passage of these measures, unconstitutional as some of them are, and unjust as they all are, was mainly due to the fact that the classes of citizens disfranchised by them do not commonly vote with the Democratic party. The Republican party condemns all such legislation, and demands its repeal.

On the important subject of suffrage, General Grant, in his inaugural message, expresses the convictions of the Republican party. He says: "The question of suffrage is one which is likely to agitate the public so long as a portion of the citizens of the Nation are excluded from its privileges in any State. It seems to me very desirable that this question should be settled now, and I entertain the hope and express the desire that it may be by the ratification of the fifteenth amendment to the constitution."

During the canvass which resulted in the election of the late Democratic legislature the Republicans were charged with having used \$800,000, raised for the relief of soldiers' families, to pay the State debt, and this charge was insisted upon, notwithstanding a majority of the Democratic members had supported the measure. The idea was everywhere held out that if the Democratic party were successful this money would be restored to the relief fund and expended for the benefit of the soldiers. The failure to redeem this pledge is aggravated by the fact that the legislature, by a strictly party vote in the Senate, refused to provide for the support of soldiers' destitute orphans at homes to be established without expense to the State by the voluntary contributions of patriotic and charitable people.

But of all the pledges upon which the Democratic party obtained power in the last legislature, the most important, and those in regard to which the just expectations of the people have been most signally disappointed, are their pledges in relation to financial affairs—to expenditure, to debt, and to taxation. Upon this subject the people are compelled to feel a very deep interest. The flush times of the war have been followed by a financial reaction, and for the last three or four years the country has been on the

verge of a financial crisis. The burdens of taxation bear heavily upon labor and upon capital. The Democratic party, profuse alike of accusations against their adversaries, and of promises of retrenchment and reform, were clothed with power to deal with the heaviest part of these burdens, viz: with the expenditures, debts, assessments, and taxes which are authorized by State legislation. The results of their two years of power are now before the people. They are contained in the 65th and 66th volumes of the Laws of Ohio. Let any Republican diligently study these volumes, and he will fully comprehend the meaning of Job when he said, "Oh, that mine adversary had written a book." No intelligent man can read carefully these volumes, and note the number and character of the laws increasing the expenses and liabilities of the State and authorizing additional debts and additional taxation for city and village, for county and township purposes, without having the conviction forced upon him that the gentlemen who enacted these laws hold to the opinion that the way to increase wealth is to increase taxation, and that public debts are public blessings.

When the late Democratic Legislature assembled they found the revenue raised yearly in Ohio by taxation to pay the interest on the State and local debts and for State and local expenditures was \$20,253,615.34. This is at the rate of almost forty dollars for every vote cast in the State at the last election, and exceeds seven dollars for each inhabitant of the State. Of this large sum collected annually by direct taxation less than one-fifth or \$3,981,099.79 was for State purposes, and more than four-fifths or \$16,272,515.34 was for local purposes. The increase of taxation for State purposes during the last few years has been small, but many items of taxation for local purposes are increasing rapidly. The taxation, for example, in the thirty-three cities of the State has increased until, according to the report of the auditor of State, "in several the rates of levy exceed three per cent, and the average rate in all is but little short of three per cent." In this condition of the financial affairs of the State, and in the embarrassed and depressed condition of the business of the country, the duty of the legislature was plain. They were to see that no unnecessary additional burdens were imposed upon the people—that all wholesome restraints and limitations upon the power of local authorities to incur debts and levy taxes should be preserved and enforced, and especially that no increase of liabilities should be authorized except in cases of pressing necessity.

Now consider the facts. These gentlemen professed to be scrupulously strict in their observance of the requirements of the constitution. Yet under provisions which contemplate one legislative session in two years they held two sessions in the same year, and three sessions in their term of two years. They were in session two hundred and sixty days—longer than was ever before known in Ohio, and at an expense of \$250,624.10—more than double that of their Republican predecessors.

They created between thirty and forty new offices at a cost to the people for salaries, fees, and expenses of at least \$75,000 per annum. They added to the State liabilities for various purposes about \$1,500,000. In order to avoid an increase of taxes levied for State purposes they diminished the sum levied to pay the State debt, and increased the levy for other State purposes almost \$600,000.

The acts of the last legislature in relation to local debts and local taxes are of the most extraordinary character. These acts relate to raising money for county purposes, for township purposes, for city and village purposes, and for special purposes. These taxes or debts are levied or incurred under the direction of county commissioners, township trustees, or of city or village councils, who derive their authority exclusively from State legislation. The State legislature has therefore the control of the whole matter. Now, the general statement which I wish to make, and which I believe is sustained by the facts, is, that the late Democratic legislature authorized greater local pecuniary burdens to be imposed upon the people of Ohio, without their consent, than were ever before authorized by any General Assembly, either in peace or war, since the organization of our State government.

Sixty or seventy different acts were passed authorizing debts to be contracted, amounting in the aggregate to more than \$25,000,000. A large part of them bear eight per cent interest, and a very small part bear less than seven and three-tenths per cent interest. And they passed seventy or eighty acts by which additional taxes were authorized to the amount of over \$10,000,000.

Now it is to be hoped, as to a considerable part of the local debts and local taxes authorized by the late Democratic legislature, that the people will not be burdened with them. It is to be hoped that county commissioners, city

councils, and other local boards, will show greater moderation and economy in the exercise of their dangerous and oppressive powers under the laws than was exhibited in their enactment. But in any event, nothing is more certain than that the people of Ohio have great reason to apprehend that the evil consequences of these laws will be felt in their swollen tax bills for many years.

It is probable that many of the acts to which I have alluded, creating additional offices, incurring State liabilities, and authorizing local debts and taxes were required by sound policy. But a candid investigation will show that the larger part of these enormous burdens of expenditure, debt, and taxation could and ought to have been avoided.

The last legislature afforded examples of many of the worst evils to which legislative bodies are liable—long sessions, excessive legislation, unnecessary expenditures, and recklessness in authorizing local debts and local taxes. These evils "have increased, are increasing, and ought to be diminished." Let there be reform as to all of them. Especially let the people of all parties insist that the parent evil—long legislative sessions—shall be reformed altogether. Let the bad precedent of long sessions, set by the last legislature, be condemned, and the practice of short sessions established. With the average rate of taxation in the cities and large towns of the State—nearly three per cent.—legitimate business and industry can not continue to thrive, if the rate of taxation continues to increase. With the rates of interest for public debts ranging from seven and three-tenths per cent to eight per cent, the reckless increase of such debts must stop, or will seriously affect the prosperity of the State. These are subjects which deserve, and which, I trust, will receive, the profound attention of the people in the pending canvass.

It is said that one of the ablest Democratic members of the last legislature declared at its close that "enough had been done to keep the Democratic party out of power in Ohio for twenty years." Let the Republican press and the Republican speakers see to it that the history of the acts of that body be spread fully before the people, and I entertain no doubt that the declaration will be substantially made good.

It is probable that the discussions of the present canvass will turn more upon State legislation and less upon National affairs than those of any year since 1861. Neither senators nor representatives in Congress are to be chosen. But it is an important State election, and will be regarded as having a bearing on National politics. The Republicans of Ohio heartily approve of the principles of General Grant's inaugural message, and are gratified by the manner in which he is dealing with the leading questions of the first three months of his administration.

Under President Johnson, Secretary McCulloch hoarded millions of gold, to enable him to maintain a wretched rivalry with the gold gamblers of New York city. The Nation was defrauded of its just dues, and the National debt increased from November 1, 1867, to November 1, 1868, \$35,625,102.82. General Grant began his financial policy by revoking his predecessor's pardons of revenue robbers, and by cutting down expenses in all directions; and Secretary Boutwell disposes of surplus gold in the purchase of interest-bearing bonds to the amount of two millions a week, and in his first quarter reduces the National debt more than twenty millions of dollars.

The two Democratic Johnsons, Andrew and Reverdy, furnished their ideas of a foreign policy in the Johnson-Clarendon treaty. They undertook to settle the American claims against England on account of the Alabama outrage by the award of a Commission, one-half of whose members were to be chosen by England and the other half by the United States; and, in case of a disagreement, an umpire was to be chosen by lot. That is to say, a great National controversy, involving grave questions of international law, and claims of undoubted validity, amounting to millions of money, was to be decided by the toss of a copper! The administration of General Grant crushed the disgraceful treaty, and proposes to deal with England on the principle laid down in General Grant's inaugural. The United States will treat all other Nations "as equitable law requires individuals to deal with each other;" but, "if others depart from this rule in their dealings with us, we may be compelled to follow their precedent."

On the great question of reconstruction, in what a masterly way and with what marked success has General Grant's administration begun. Congress had fixed its day of adjournment, and all plans for reconstructing the three unrepresented States had been postponed until next December. At this

junction General Grant, on the 7th of April last, sent to Congress a special message recommending that before its adjournment it take the necessary steps for the restoration of the State of Virginia to its proper relations to the Union. As the ground of his recommendation he said: "I am led to make this recommendation from the confident hope and belief that the people of that State are now ready to co-operate with the National government in bringing it again into such relations to the Union as it ought as soon as possible to establish and maintain, and to give to all its people those equal rights under the law which were asserted in the declaration of independence, in the words of one of the most illustrious of its sons."

The message of the president was referred, in the House of Representatives, to the Committee on Reconstruction. That committee the next day reported a bill for the reconstruction of Virginia, and also of Mississippi and Texas. The character of the bill sufficiently appears by the first two sections relating to Virginia:

"Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled, That the President of the United States, at such time as he may deem best for the public interest, may submit the constitution which was framed by the convention which met in Richmond, Virginia, on Tuesday, the 3d day of December, 1867, to the registered voters of said State, for ratification or rejection; and may also submit to a separate vote such provisions of said constitution as he may deem best.

"SEC. 2. And be it further enacted, That at the same election the voters of said State may vote for and elect members of the General Assembly of said State and all the officers of said State provided for by the said constitution, and for members of Congress; and the officer commanding the district of Virginia shall cause the lists of registered voters of said State to be revised and corrected prior to such election, and for that purpose may appoint such registrars as he may deem necessary. And said election shall be held and returns thereof made in the manner provided by the election ordinance adopted by the convention which framed said constitution."

It will be seen that by this bill the people of Virginia were to proceed in the work of reconstruction at such time as the president might deem best, and

that such reconstruction in all its parts was to be on the basis of equal political rights. The constitution to be submitted was framed by a convention, in the election of which colored citizens participated, and of which colored men were members. The "registered voters" who are to vote on its ratification or rejection, and also for members of the General Assembly, for State officers and for members of Congress, include the colored men of Virginia; and if the constitution is adopted, it secures to them equal political rights in that State. The remaining sections of the bill provide for the reconstruction of Mississippi and Texas on the same principles, and left the time and manner to the discretion of the president.

This bill was reported to the House of Representatives and unanimously agreed upon by a committee, of which four members were Democrats. The most distinguished Democratic representatives of the States of New York and Pennsylvania advocated its passage. Out of about seventy Democratic members of the House, only twenty-five voted against it, and the only Democratic members from Ohio who voted on the passage of the bill, voted for it.

It thus appears that upon the recommendation of General Grant even the Democratic party of Ohio, by their representatives in Congress, voted for equal political rights in Virginia, Mississippi, and Texas! And to-day the great body of the people of those States, Democrats and Conservatives as well as Republicans, have yielded assent to that great principle. In view of these facts I submit that I am fully warranted in saying that General Grant has begun the work of reconstruction in a masterly way and with marked success.

Again thanking you for the honor you have done me, I repeat, in conclusion, what I said two years ago. The people represented in this convention mean that the State of Ohio in the great progress, "whose leading object is to elevate the condition of men, to lift artificial weights from all shoulders, to clear the paths of laudable pursuits for all, and to afford all an unfettered start and a fair chance in the race of life," shall tread no more steps backward. I shall enter upon my part of the labors of the canvass believing that the Union Republican party is battling for the right, and with undoubting confidence that the goodness of the cause will supply

the weakness of its advocates, and command in the result that triumphant success which it deserves.

Speech of GENERAL R. B. HAYES, delivered at Zanesville, Ohio, Thursday, August 24, 1871.

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The change of principles which a majority of the late Democratic State Convention at Columbus decided to make, commonly called the new departure, lends to the pending political contest in Ohio its chief interest. Indeed, there is no other salient feature in the Democratic platform. Resolutions in the usual form were adopted on several other political topics; but the main discussion, and the absorbing interest of the convention, was on the question of accepting as a finality the series of Republican measures which is generally regarded as the natural and legitimate result of the overthrow of the rebellion, and which is embodied in the last three amendments to the constitution.

Certain influential Democratic leaders in Ohio had become satisfied by the repeated defeats of their party that no considerable number of Republicans would ever aid the Democratic party to obtain power until it fully and explicitly accepted in good faith, as a final settlement of the questions involved, the leading Republican measures resulting from the war. They were convinced that Republicans generally regarded these measures of such vital importance that, until they were irrevocably established, other and minor questions would not be allowed to divide that great body of patriotic people who rallied together in support of the government during its struggle for existence. The important principles which Republicans claim should be accepted as settled are:

1. That the National power is the Supreme power of the land, and that the doctrine that the States are in any proper sense sovereign, including as it does the right of nullification and secession, is no longer to be maintained.
2. That all persons born or naturalized in the United States, and subject to their jurisdiction, are citizens thereof, and entitled to equal rights, civil and political, without regard to race, color, or condition.

3. That the public debt resulting from the war is of binding obligation, and must be fully and honestly paid.

Mr. Vallandigham, with that boldness and energy for which he was distinguished, undertook the task of forcing his party to take the position required to make success possible in Ohio. In this work, he was encouraged, and probably aided, by the counsel and advice of that other eminent Democratic leader, Chief Justice Chase. The first authentic announcement of the new movement in Ohio was made by the Montgomery County Democratic Convention, held at Dayton, on the 18th day of May last. The speech and resolutions of Mr. Vallandigham in that body contained much sound Republicanism. He still clung to a general assertion of the State rights heresy, but accepted the last three constitutional amendments "as a settlement, in fact, of all the issues of the war," and "pledged" the Democratic party to the faithful and absolute enforcement of the constitution as it now is, "so as to secure equal rights to all persons, without distinction of race, color, or condition." On the subject of the National debt, and of currency, he was equally explicit. He declared "in favor of the payment of the public debt at the earliest practicable moment consistent with moderate taxation; that specie is the basis of all sound currency; and that true policy requires a speedy return to that basis as soon as practicable without distress to the debtor class of people."

Surely, here was a long stride away from the Democracy of the last ten years, and toward wholesome Republican ideas. If a Democratic victory could be gained by adopting Republican principles, the framer of the Dayton platform was not lacking in political sagacity. Unfortunately for the success of the scheme, no Ohio Democrat of conspicuous position, except Mr. Chase, is known to have approved Mr. Vallandigham's resolutions as a whole. The chief justice wrote to Mr. Vallandigham the well-known letter of May 20, in which he warmly congratulated him on the movement which was to return "the Democratic party to its ancient platform of progress and reform."

This was perfectly consistent with the previous opinions and public conduct of Mr. Chase. He had supported the three amendments to the constitution, and notwithstanding the censure of his Democratic associates, he had been signally active and influential in procuring the ratification by Ohio of the

fifteenth amendment. In addition to this, he was probably the only prominent Western Democrat who was for the payment of the public debt in coin, and in favor of a speedy return to specie payments.

When the convention assembled, on the first of June, neither the talents and energy of Mr. Vallandigham nor the great name and authority of the chief justice were sufficient to carry through, in all its parts, the Dayton programme. The financial resolutions were stricken out and the oft-defeated greenback theory, slightly modified, was inserted in its place. Other important paragraphs of Mr. Vallandigham were also omitted, in which "secession, slavery, inequality before the law, and political inequality" were described as "belonging to the dead past" and "buried out of sight." This left as the new departure two resolutions, which were adopted only after strong opposition.

"1. *Resolved, by the Democracy of Ohio*, That denouncing the extraordinary means by which they were brought about, we recognize as accomplished facts the three several amendments to the constitution, recently adopted, and regard the same as no longer political issues before the country.

"2. ...The Democratic party pledges itself to the full, faithful, and absolute enforcement of the constitution as it now is, so as to secure equal rights to all persons under it, without distinction of race, color, or condition."

The Democratic managers claim that by this movement they have taken such a position that, at least equally with the Republicans, they are entitled to the confidence and support of the early and earnest friends of the principles of the three recent constitutional amendments. They claim at the same time, in the same breath, that they are entitled also to the confidence of the Democratic people whom they have hitherto taught that the amendments were ratified by force and fraud; that they are revolutionary and void, and that they are a dangerous departure from the principles of the fathers of the republic, and destructive of all good government.

Now, the important question presented is, whether it is safe and wise to trust these amendments for interpretation, construction, and execution to the party which, from first to last, has fiercely opposed them. The safe rule is, if you want a law fairly and faithfully administered, entrust power only to its

friends. It will rarely have a fair trial at the hands of its enemies. These amendments are no exception to this rule.

What the country most needs, and what good citizens most desire in regard to these great measures is peace—repose. They wish to be able to rest confidently in the belief that they are to be enforced and obeyed. They do not want them overthrown by revolutionary violence or defeated by fraud. They do not wish them repealed by constitutional amendments, abrogated by judicial construction, nullified by unfriendly legislation, State or National, or left a dead letter by non-action on the part of law-makers or executive officers. Has the time come when the country can afford to trust the Democratic party on these questions? Consider the facts.

The new departure is by no means generally accepted by the Democratic party, and where accepted the conversion is sudden and recent, and against the protest of a large element of sincere and inflexible Democrats.

The only State touching the borders of Ohio which has been reliably Democratic for the last five years is Kentucky. She sends to Congress an undivided Democratic delegation of two senators and nine representatives. At the late election, notwithstanding the heroic efforts of her Republicans under the splendid leadership of General Harlan, the Democratic organs are able to rejoice that they still hold the State by from thirty to forty thousand majority. Where did the Democrats of Kentucky, in their canvass, stand on the new departure? They marched in the old Democratic path. They turned no back somersault to catch Republican votes. On the very day that the Ohio Democracy were wrangling in convention over the bitter dose, Governor Leslie, addressing the Democracy of Lewis county, said: "As to the new amendments, I am out and out opposed to them. I care not who in Indiana, Ohio, or elsewhere may be for them. Those amendments were engrafted upon the constitution of the country, and proclaimed to the country as part and parcel of the constitution by force and by fraud, and not in the legitimate way laid down in the constitution. Ten States of this Union were tied hand and foot, and bayonets were presented to their breasts to make them consent against their will to the passage of these amendments. The procuring of these amendments was a fraud upon this people, and upon the people of the whole United States, and having been thus obtained, I hold

that they ought to be repealed. There may be some Democrats who are not for their repeal, but the great body of our party is for it."

The Democratic candidate for lieutenant-governor, Mr. Carlisle, was equally decided. Said he: "In the first place, I do not think that the resolution passed by the Ohio Democracy, declaring that these constitutional amendments are no longer political issues before the country, will have the effect which they appear to have supposed it would.

"Instead of withdrawing them as subjects of political discussion, it will give them far more prominence than they ever had heretofore, and they will be confronted with them throughout the entire canvass. The only way in which any question can be withdrawn from the arena of political discussion is for both parties to ignore it altogether.

"This can not be done as to these amendments, because they present real living issues, in which the people feel a very deep interest. They are not dead issues, and politicians can not kill them by resolutions. The Ohio Democrats seem to recognize this to some extent at least, for they have simply attempted to turn the discussion away from the validity and merits of the amendments themselves to the question of their construction. In this I think they have made a grievous mistake."

In Indiana, the last authoritative Democratic utterance on this subject, was the passage, in January last, by the Senate of that State, of the following resolution, offered by Mr. Hughes, every Democrat supporting it:

"Resolved, That Congress has no lawful power derived from the constitution of the United States, nor from any other source whatever, to require any State of the Union to ratify an amendment proposed to the constitution of the United States as a condition precedent to representation in Congress; that all such acts of ratification are null and void, and the votes so obtained ought not to be counted to affect the rights of the people and the States of the whole Union, and that the State of Indiana protests and solemnly declares that the so-called fifteenth amendment is not this day, nor never has been in law, a part of the constitution of the United States."

It is not necessary to go to neighboring States for Democratic authorities, to show how far the new departure is from modern Democracy.

When this question was last debated before the people of Ohio, the Democratic position on the principle of the fifteenth amendment, and on its constitutional validity, if *declared* adopted, was thus stated:

Speaking of the principle of the amendment, Judge Thurman said: "I tell you it is only the entering wedge that will destroy all intelligent suffrage in this country, and turn our country from an intelligent white man's government into one of the most corrupt mongrel governments in the world."

On its validity, if declared adopted, General Ward said: "Fellow-citizens of Ohio, I boldly assert that the States of this Union have always had, both before and since the adoption of the constitution of the United States, entire sovereignty over the whole subject of suffrage in all its relations and bearings. Ohio has that sovereignty now, and it can not be taken from her without her consent, even by all the other States combined, except by revolutionary usurpation. The right to regulate suffrage as to the organization of its own government, and the election of officers under it, is an inalienable attribute of sovereignty, which the State could not surrender without surrendering its sovereign existence as a State. To take from Ohio the power of determining who shall exercise the right of suffrage is not an amendment of the constitution, but a revolutionary usurpation by the other States, in no wise constitutionally binding upon her sovereignty as a State."

These opinions are still largely prevalent in the Democratic party. When a new departure was announced at Dayton, the leading organ of the party in this State said:

"There are matters in the Montgomery county resolutions which, it is very safe to say, will not receive the approval of the State convention, and which should not receive its endorsement. They have faults of omission and commission. They evince a desire to sail with the wind, and as near the water as possible without getting wet. The Democracy everywhere believe that the constitution was altered by fraud and force, and do not intend to be mealy-mouthed in their expression of the outrage, whatever they may agree upon as to how the amendments should be treated in the future, for the sake of saving, if possible, what is left of constitutional liberty."

After the scheme was adopted in convention, the common sentiment was well expressed by the editor who said that "the platform was made for present use, and is marked with the taint of insincerity."

The speeches of Colonel McCook and other Democratic gentlemen exhibit, when carefully read, clearly enough the character of the new departure.

In accepting his nomination, Colonel McCook said: "Let me speak now upon the fifteenth amendment, which confers the right of suffrage upon the blacks. It was no legitimate consequence of the war; it was no legitimate consequence of secession; but it was passed in the exigency of a political party, that they might have control as much in Ohio as in those States in the South. I opposed it, as I did the fourteenth, from the beginning, and I have no regrets over that opposition. But now a word more upon it. If it contained nothing but this provision for suffrage there would be but little objection in it; but it contains a provision intended to confer power upon Congress which is dangerous to the liberties of the country, and the dangers can only be avoided by having Democratic Congresses in the future, who will trust no power to the executive which bears the purse and sword to interfere with our elections."

When interrogated on this subject at Chardon, he said: "When he received the nomination he had said that no black man who had received the right to vote under the 15th amendment ever could have it taken away. Repealing the 15th amendment would not take it away; that amendment is no more sacred, but just as sacred as any other part of the constitution; but repealing it could not take away a right." He was asked as to the 13th, 14th, and 15th amendments: "Do you regard them as in the same sense and to the same extent parts of the constitution as other portions?" He answered: "Yes, certainly. Can not men see the difference between opposing the adoption of a measure and yielding when it has been adopted, and opposition has become useless?" He was asked: "Are these amendments never again to become political questions?" "I have no authority or power to answer such a question. How can I answer as to all the future? How can I tell what the Democracy of New York or any other State may do? But how can they become political questions, now that they are acquiesced in by almost the entire people of the country?"

Mr. Hubbard, the chairman of Colonel McCook's first meeting, said: "The Democrats did not dispute that this amendment, which was adopted by constitutional forms, was valid; but, while accepting it, call it a 'new departure.' If you please, we don't surrender the right to make such returns to the old constitution as we may deem expedient. It is a future question that we are not bound to discuss."

The gentleman who has the second place on the Democratic ticket, Mr. Hunt, says: "There is no reasoning, and certainly no circumstance, which can give the 13th amendment more binding force than either of the other two amendments. If the 13th amendment abolished slavery, then the title to vote under the 15th amendment is as perfect as the title to liberty. The fact that they have been declared a part of the constitution does not preclude any legitimate discussion as to their expediency. Proper action will never be barred, for the statute of limitation will run with the constitution itself. Experience may teach the necessity of a change in any provision of the organic law, and any legislation to be permanent must conform to the living sentiment of the people."

These paragraphs furnish no adequate reply to the questions which an intelligent and earnest Republican, who believes in the wisdom and value of the amendments, would put to these distinguished gentlemen, when they ask him for his vote. He would ask: "If the Democratic party shall obtain the controlling power in the general government, in its several departments, executive, legislative, and judicial, and in the State governments, what would it do? Would it faithfully execute these amendments, or would it not rather use its power to get rid of them—either by constitutional amendment, by judicial decision, by unfriendly legislation, or by a failure or refusal to legislate?" Before the "new departure" can gain Republican votes, its friends must answer satisfactorily these questions. The speeches I have quoted fail to furnish such answers. Colonel McCook objects to the 15th amendment, because "it contains a provision intended to confer power upon Congress which is dangerous to the liberties of the country." Now, what is this dangerous provision? It reads: "Section 2. The Congress shall have power to enforce this article by appropriate legislation." Each of the three recent amendments contains a similar provision. Without this provision, they would be inoperative in more than half of the late rebel States. The complaints made of these provisions warn us that in Democratic hands the

legislation required to give force and effect to these provisions would be denied.

But the most significant part of these speeches are the passages which refer to the repeal of the amendments. Mr. Hubbard said: "We don't surrender the right to make such returns to the old constitution as we may deem expedient. It is a future question that we are not bound to discuss." Colonel McCook says: "How can I answer for all the future? How can I tell what the Democracy of New York or any other State may do?" Mr. Hunt says: "The fact that they have been declared a part of the constitution does not preclude any legitimate discussion as to their expediency. Proper action will never be barred." The meaning of all this is that the Democratic party will acquiesce in the amendments while it is out of power. Whether or not it will try to repeal them when it gets power is a question of the future which they are not bound to discuss. Or as another distinguished gentleman has it, this question is "beyond the range of profitable discussion." In reply to these gentlemen, the well-informed Republican citizen when asked to vote for the new departure, is very likely to adopt their own phraseology, and to say, Whether I shall vote your ticket or not is a question of the future which it is not now proper to discuss—"it is beyond the range of profitable discussion;" and if he has the Democratic veneration for Tammany hall, he will say with Colonel McCook, "How can I tell what the Democracy of New York may do?"

Notwithstanding the decision of the late convention, it is probable that the real sentiment of the Democracy of Ohio is truly stated by the Butler county Democrat:

"Our position then, is, that while we regard the so-called amendments as gross usurpation and base frauds—not a part of the Federal constitution *de facto* nor *de jure*—and, therefore, acts which are void, we will abide by them until a majority of the people of the States united shall, at the polls, put men in power who shall hold them to be null and of no effect. We adhere strictly, on this point, to the second resolution of Hon. L. D. Campbell, adopted at the Democratic convention held in this county last May; and to refresh the minds of our readers we reproduce it here:

"2. That now, as heretofore, we are opposed to all lawlessness and disorder, and for maintaining the supremacy of the constitution and laws as the only certain means of public safety, and will abide by all their provisions until the same shall be amended, abrogated, or repealed by the lawfully constituted authorities."

The new departure has certainly very little claim to the support of Republican citizens. What are its claims on honest Democrats?

Colonel McCook, to make the new departure palatable to his Democratic supporters, tells them that a repeal of the fifteenth Amendment would fail of its object. That the right to vote, once exercised by the black man, can not be taken away. Is this sound either in law or logic? By the fifteenth amendment no State can deny the right to vote to any citizens on account of race or color. Suppose that amendment was repealed; what would prevent Kentucky from denying suffrage to colored citizens? Plainly nothing. And in case of such repeal it is probable that in less than ninety days thereafter every Democratic State would deny suffrage to colored citizens, and the great body of Democratic voters would heartily applaud that result. The truth is, no sound argument can be made, showing or tending to show that the new departure is consistent with the Democratic record. Hitherto Democracy has taught that, as a question of law, the amendments were made by force and fraud, and are therefore void; that, as a question of principles, this is a white man's government, and that to confer suffrage on the colored races—on the African or Chinaman—would change the nature of the government and speedily destroy it. Now the new departure demands that Democrats shall accept the amendments as valid, and shall take a pledge "to secure equal rights to all persons, without distinction of race, color, or condition." Sincere Democrats will find it very difficult to take that pledge, unless they are now convinced that their whole political life has been a great mistake.

When an individual changes his political principles—turns his coat merely to catch votes—he is generally thought to be unworthy of support, I entertain no doubt that the people of Ohio, at the approaching election, will, upon that principle, by a large majority, condemn the Democratic party for its bold attempt to catch Republican votes by the new departure.

***Speech of GENERAL R. B. HAYES, delivered at Marion, Lawrence County,
Ohio, July 31, 1875.***

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Fellow-citizens of Lawrence County:

It is a gratification for which I wish to make my acknowledgments to the Republican committee of this county, to have the privilege of beginning, in behalf of the Republicans of Ohio, the oral discussions of this important political canvass before the people of Lawrence county. Although my residence is separated from yours by the whole breadth of the State, we are not strangers. We have met before on similar occasions, and some of you were my comrades in the Union army during a considerable part of the great civil conflict which ended ten years ago. Those who had the honor and the happiness to serve together during that memorable struggle are not likely to forget each other. We shall forever regard those four years as the most interesting period of our lives.

The great majority of the people of Lawrence county, citizens as well as soldiers, have also good reason to recall the events and scenes of that contest with satisfaction and pride.

The official records of the State show how well Lawrence county performed her part in the war for the Union. From the beginning to the end, with the ballot at home and with the musket in the field, this county stood among the foremost of all the communities in the United States in devotion to the good cause. And since the Nation's triumph, Lawrence county, sooner or later, but never too late to rejoice in the final and decisive victory, has supported every measure required to secure the legitimate results of that triumph. You have done your part forever to set at rest the great questions of the past. It is settled that the United States constitute a Nation, and that their government possesses ample power to maintain its authority over every part of its territory against all opposers. It is settled that no man under the American flag shall be a slave. It is settled that all men born or naturalized in the United States and within its jurisdiction shall be citizens thereof, and have equal civil and political rights. It is settled that the debt contracted to

save the Nation is sacred, and shall be honestly paid. You may well be congratulated that on all of these questions you fought and voted on the right side.

Fortunately, there is still further cause for congratulation. Our adversaries, who were on the wrong side of all of these questions, and who opposed us on all of them to the very last, are now compelled to be silent in their platform on every one of them. Not a single one of their fourteen resolutions raises any question on any of these long-contested subjects. It is not strange that they are silent. I do not choose on this occasion to recall the predictions of evil which they so confidently made when discussing the measures to which I have referred. It is enough for my present purpose to point to the grand results. When the Republican party, with Abraham Lincoln as president, received the government from the hands of the Democratic party, fifteen years ago, the Union of the fathers was destroyed. A hostile Nation, dedicated to perpetual slavery, had been established south of the Potomac, and claimed jurisdiction over one-third of the people and territory of the Republic. These States were "dissevered, discordant, belligerent"—our land was rent with civil feud, and ready to be drenched in fraternal blood. Now, behold the change! The Union is re-established on firmer foundations than ever before. Brave men in the South, who were then in battle array against us, now stand side by side with Union soldiers, with no shadow of discord between them. Slavery, which was then an impassable gulf between the hostile sections, is now gone; and good men of the South unite with good men of the North in thanking God that it is forever a thing of the past. Then there was no freedom of speech or of the press—no friendly mingling together of the people of the two sections of the country. Now the people of the South receive and greet as a fellow-citizen and a friend the vice-president—a citizen of Massachusetts, and an anti-slavery man from his youth; and Maryland, Virginia, and South Carolina send their distinguished sons to celebrate with New England the centennial anniversaries of the early battles of the Revolution. The men of the North and the men of the South are now everywhere coming together in a spirit of harmony and friendship which this generation has not witnessed before, and which has not existed, until now, since Jefferson was startled by that "fire-ball in the night"—the Missouri question—more than fifty years ago.

In this era of good feeling and reconciliation a few men of morbid temperament, blind to what is passing before them, still talk of "bayonets" and "tyranny and cruelty to the South" and seek in vain to revive the prejudices and passions of the past. But there is barely enough of this angry dissent to remind us of the terrible scenes through which we have passed, and to fill us with gratitude that the house which was divided against itself is divided no longer, and that all of its inhabitants now have a fair start and an equal chance in the race of life.

Let us now proceed to the consideration of some of the questions which engage the attention of the people of Ohio. The war which the Democratic party and its doctrines brought upon the country left a large debt, heavy taxation, a depreciated currency, and an unhealthy condition of business, which resulted two years ago in a financial panic and depression, from which the country is now slowly recovering. With this condition of things the Democratic party in its recent State convention at Columbus undertook to deal.

The most important part—in fact the only part of their platform in Ohio this year which receives or deserves much attention, is that in which is proclaimed a radical departure on the subject of money from the teachings of all of the Democratic fathers. This Ohio Democratic doctrine inculcates the abandonment of gold and silver as a standard of value. Hereafter gold and silver are to be used as money only "where respect for the obligation of contracts requires payment in coin." The only currency for the people is to be paper money, issued directly by the general government, "its volume to be made and kept equal to the wants of trade," and with no provision whatever for its redemption in coin. The Democratic candidate for lieutenant-governor, who opened the canvass for his party, states the money issue substantially as I have. General Carey, in his Barnesville speech, says:

"Gold and silver, when used as money, are redeemable in any property there is for sale in the Nation; will pay taxes for any debt, public or private. This alone gives them their money value. If you had a hundred gold eagles, and you could not exchange them for the necessaries of life, they would be trash, and you would be glad to exchange them for greenbacks or anything else that you could use to purchase what you require. With an absolute paper money, stamped by the government and made a legal tender for all

purposes, and its functions as money are as perfect as gold or silver can be!"

This is the financial scheme which the Democratic party asks the people of Ohio to approve at the election in October. The Republicans accept the issue. Whether considered as a permanent policy or as an expedient to mitigate present evils we are opposed to it. It is without warrant in the constitution, and it violates all sound financial principles.

The objections to an inflated and irredeemable paper currency are so many that I do not attempt to state them all. They are so obvious and so familiar that I need not elaborately present or argue them. All of the mischief which commonly follows inflated and inconvertible paper money may be expected from this plan, and in addition it has very dangerous tendencies, which are peculiarly its own. An irredeemable and inflated paper currency promotes speculation and extravagance, and at the same time discourages legitimate business, honest labor, and economy. It dries up the true sources of individual and public prosperity. Over-trading and fast living always go with it. It stimulates the desire to incur debt; it causes high rates of interest; it increases importations from abroad; it has no fixed value; it is liable to frequent and great fluctuations, thereby rendering every pecuniary engagement precarious and disturbing all existing contracts and expectations; it is the parent of panics. Every period of inflation is followed by a loss of confidence, a shrinkage of values, depression of business, panics, lack of employment, and widespread disaster and distress. The heaviest part of the calamity falls on those least able to bear it. The wholesale dealer, the middle-man, and the retailer always endeavor to cover the risks of the fickle standard of value by raising their prices. But the men of small means and the laborer are thrown out of employment, and want and suffering are liable soon to follow.

When government enters upon the experiment of issuing irredeemable paper money there can be no fixed limit to its volume. The amount will depend on the interest of leading politicians, on their whims, and on the excitement of the hour. It affords such facility for contracting debt that extravagant and corrupt government expenditure are the sure result. Under the name of public improvements, the wildest enterprises, contrived for

private gain, are undertaken. Indefinite expansion becomes the rule, and in the end bankruptcy, ruin, and repudiation.

During the last few years a great deal has been said about the centralizing tendency of recent events in our history. The increasing power of the government at Washington has been a favorite theme for Democratic declamation. But where, since the foundation of the government, has a proposition been seriously entertained which would confer such monstrous and dangerous powers on the general government as this inflation scheme of the Ohio Democracy? During the war for the Union, solely on the ground of necessity, the government issued the legal tender, or greenback currency. But they accompanied it with a solemn pledge in the following words of the act of June 30, 1864:

"Nor shall the total amount of United States notes issued or to be issued ever exceed four hundred millions, and such additional sum, not exceeding fifty millions, as may be temporarily required for redemption of temporary loans."

But the Ohio inflationists, in a time of peace, on grounds of mere expediency, propose an inconvertible paper currency, with its volume limited only by the discretion or caprice of its issuers, or their judgment as to the wants of trade. The most distinguished gentleman whose name is associated with the subject once said "the process must be conducted with skill and caution, ... by men whose position will enable them to guard against any evil," and using a favorite illustration he said, "The secretary of the treasury ought to be able to judge. His hand is upon the pulse of the country. He can feel all the throbbings of the blood in the arteries. He can tell when the blood flows too fast and strong, and when the expansion should cease." This brings us face to face with the fundamental error of this dangerous policy. The trouble is the pulse of the patient will not so often decide the question as the interest of the doctor. No man, no government, no Congress is wise enough and pure enough to be trusted with this tremendous power over the business, and property, and labor of the country. That which concerns so intimately all business should be decided, if possible, on business principles, and not be left to depend on the exigencies of politics, the interests of party, or the ambition of public men. It will not do for property, for business, or for labor to be at the mercy of a few

political leaders at Washington, either in or out of Congress. The best way to prevent it is to apply to paper money the old test sanctioned by the experience of all Nations—let it be convertible into coin. If it can respond to this test, it will, as nearly as possible, be sound, safe, and stable.

The Republicans of Ohio are in favor of no sudden or harsh measures. They do not propose to force resumption by a contraction of the currency. They see that the ship is headed in the right direction, and they do not wish to lose what has already been gained. They are satisfied to leave to the influences of time and the inherent energy and resources of the country the work that yet remains to be done to place our currency at par. We believe that what our country now needs to revive business and to give employment to labor, is a restoration of confidence. We need confidence in the stability and soundness of the financial policy of the government. That confidence has for many months past been slowly but steadily increasing. The Columbus Democratic platform comes in as a disturbing element, and gives a severe shock to reviving confidence. The country believed, and rejoiced to believe, that Senator Thurman expressed the sober judgment of Ohio, when he spoke last year in the Senate on this subject. The senator said, March 24, 1874:

"Never have I spoken in favor of that inflation of the currency, which, I think I see full well, means that there shall never be any resumption at all. That is the difference. It is one thing to contract the currency, with a view to the resumption of specie payment; it is another thing neither to contract nor enlarge it, but let resumption, come naturally and as soon as the business and production of the country will bring it about. But it is a very different thing indeed to inflate the currency with a view never in all time to redeem it at all. And that is precisely what this inflation means. It means demonetizing gold and silver in perpetuity, and substituting a currency of irredeemable paper, based wholly and entirely upon government credit, and depending upon the opinion and the interests of the members of Congress and their hopes of popularity, whether the volume of it shall be large or small. That is what this inflation means. Sir, I have never said anything in favor of that. I am too old-fashioned a Democrat for that. I can not give up the convictions of a life-time, whether they be popular or unpopular."

April 6th, when the Senate inflation bill was debated, he said:

"It simply means that no man of my age shall ever again see in this country that kind of currency which the framers of the constitution intended should be the currency of the Union; which every sound writer on political economy the world over says is the only currency that defrauds no man. It means that so long as I live, and possibly long after I shall be laid in the grave, this people shall have nothing but an irredeemable currency with which to transact their business—that currency which has been well described as the most effective invention that ever the wit of man devised to fertilize the rich man's field by the sweat of the poor man's brow. I will have nothing to do with it."

How great the shock which was given to returning confidence by the Democratic action at Columbus abundantly appears by the manner in which the platform is received by the Liberal and the English and the German Democratic press throughout the United States. The Liberal press and the German press, so far as I have observed, in the strongest terms condemn the platform. They speak of it as disturbing confidence, shaking credit, and threatening repudiation. A large part of the Democratic press of other States is hardly less emphatic. It would be strange, indeed, if this were otherwise. In Ohio, less than two years ago, the convention which nominated Governor Allen resolved, speaking of the Democratic party, that "it recognizes the evils of an irredeemable paper currency, but insists that in the return to specie payment care should be taken not to seriously disturb the business of the country or unjustly injure the debtor class." There was no inflation then. Now come the soft-money leaders of the Democratic party, and try to persuade the people that the promises of the United States should only be redeemed by other promises, and that it is sound policy to increase them.

The credit of the Nation depends on its ability and disposition to keep its promises. If it fails to keep them, and suffers them to depreciate, its credit is tainted, and it must pay high rates of interest on all of its loans. For many years we must be a borrower in the markets of the world. The interest-bearing debt is over seventeen hundred millions of dollars. If we could borrow money at the same rate with some of the great Nations of Europe, we could save perhaps two per cent per annum on this sum. Thirty or forty millions a year we are paying on account of tainted credit. The more promises to pay an individual issues, without redeeming them, the worse becomes his credit. It is the same with Nations. The legal tender note for

five dollars is the promise of the United States to pay that sum in the money of the world, in coin. No time is fixed for its payment. It is therefore payable on presentation—on demand. It is not paid; it is past due; and it is depreciated to the extent of twelve per cent. The country recognizes the necessities of the situation, and waits, and is willing to wait, until the productive business of the country enables the government to redeem. But the Columbus financiers are not satisfied. They demand the issue of more promises. This is inflation. No man can doubt the result. The credit of the Nation will inevitably suffer. There will be further depreciation. A depreciation of ten per cent diminishes the value of the present paper currency from fifty to one hundred millions of dollars. Its effect on business would be disastrous in the extreme. The present legal tenders have a certain steadiness, because there is a limit fixed to their amount. Public opinion confides in that limit. But let that limit be broken down, and all is uncertainty. The authors of this scheme believe inflation is a good thing. When this subject was under discussion, a few years ago, the Cincinnati *Enquirer* said "the issue of two millions dollars of currency would only put it in the power of each voter to secure \$400 for himself and family to spend in the course of a life-time. Is there any voter thinks that is too much—more than he will want?" This shows what the platform means. It means inflation without limit; and inflation is the downward path to repudiation. It means ruin to the Nation's credit, and to all individual credit. All the rest of the world have the same standard of value. Our promises are worthless as currency the moment you pass our boundary line. Even in this country, very extensive sections still use the money of the world. Texas, the most promising and flourishing State of the South, uses coin. California and the other Pacific States and Territories do the same. Look at their condition. Texas and California are not the least prosperous part of the United States. This scheme can not be adopted. The opinion of the civilized world is against it. The vast majority of the ablest newspapers of the country is against it. The best minds of the Democratic party are against it. The last three Democratic candidates for the presidency were against it. The German citizens of the United States, so distinguished for industry, for thrift, and for soundness of judgment in all practical money affairs, are a unit against it. The Republican party is against it. The people of Ohio will, I am confident, decide in October to have nothing to do with it.

Since the adoption of the inflation platform at Columbus, a great change has taken place in the feelings and views of its friends. Then they were confident—perhaps it is not too much to say that they were dictatorial and overbearing toward their hard money party associates. There was no doubt as to the intent and meaning of the platform. Its friends asserted that the country needed more money, and more money now. That the way to get it was to issue government legal tender notes liberally. But the storm of criticism and condemnation which burst upon the platform from the soundest Democrats in all quarters has alarmed its supporters. Many of them have been seized with a panic, and are now utterly stampeded and in full retreat. They say that they are not for inflation, not for inconvertible paper money, and that they never have been. That they are hard money men, and always have been. That they look forward to a return of specie payment, and that it must always be kept in view. Why what did they mean by their platform? Did they expect to make money plenty by an issue of more coin? Certainly not. By an issue of more paper redeemable in coin? Certainly not. They expected to issue more legal tender notes—notes irredeemable and depreciated. But public opinion as shown by the press is so decidedly against them, that Ohio inflationists now begin to desert their own platform. Even Mr. Pendleton is solicitous not to be held responsible for the Columbus scheme. He says, "I speak for myself alone. I do not assume to speak for the Democratic party. Its convention has spoken for it," and proceeds to interpret the platform as if it was for hard money. Senator Thurman did not so understand it. He thought the hard money men were beaten and felt disappointed. It now looks as if General Carey might be left almost alone before the canvass ends. If Judge Thurman could get that convention together again, it is evident that he could now in the same body rout the inflationists, horse, foot, and artillery. Nothing but a victory in Ohio can put inflation again on its legs. Let it be defeated in October, and the friends of a sound and honest currency will have a clear field for at least the life of the present generation.

Two years ago, the Democratic party came fully into power in Ohio, in the State legislature, and for the first time in twenty years, elected the executive of the State. They were also entrusted with the affairs of the leading cities, and a majority of the wealthiest and most populous counties in the State. It would be profitable in us to inquire how this came about, and what are the

results. In the course of the canvass it is my purpose to show in detail how unfortunate their management of State affairs has been. It will appear, on investigation, that the interests of the State in the benevolent, penal, and reformatory institutions have been sacrificed to the spoils doctrine: how the cities, and especially the chief city of the State, has suffered by the corruption of its rulers; how public expenditures have been increased, until the aggregate of taxation in Ohio, in this time of money depression, is vastly larger than ever before; how the number of salaried officers was increased; how the members of the legislature were corrupted by bribery, notorious, and shameless; and how the dominant party utterly failed to deal with this corruption as duty and the good name of the State demanded. Fallacious and deceptive statements have been made as to the reduction of the levy for State taxes, and as to the appropriations. It is enough now to say that the aggregate taxation in Ohio in 1874, was over \$27,000,000, a larger sum than was ever before collected by tax-gatherers in Ohio.

Altogether the most interesting questions in our State affairs are those which relate to the passage, by the last legislature, of the Geghan bill and the war which the sectarian wing of the Democratic party is now waging against the public schools. In the admirable speech made by Judge Taft at the Republican State Convention, he sounded the key-note to the canvass on this subject. He said "our motto must be universal liberty and universal suffrage, secured by universal education." Before we discuss these questions, it may be well, in order that there may be no excuse for further misrepresentation, to show by whom this subject was introduced into politics, and to state explicitly that we attack no sect and no man, either Protestant or Jew, Catholic or Unbeliever, on account of his conscientious convictions in regard to religion. Who began the agitation of this subject? Why is it agitated? All parties have taken hold of it. The Democratic party in their State convention make it the topic of their longest resolution. In their platform they gave it more space than to any other subject except the currency. Many of the Democratic county conventions also took action upon it.

The Republican State Convention passed resolutions on the question. It is stated that it was considered in about forty Republican county conventions. The State Teachers' Association, at their last meeting, passed unanimously

the following resolution. Mr. Tappan, from the Committee on Resolutions, reported the following:

"Resolved, That we are in favor of a free, impartial, and unsectarian education to every child in the State, and that any division of the school fund or appropriation of any part thereof to any religious or private school would be injurious to education and the best interests of the church."

An able address by the Rev. Dr. Jeffers, of Cleveland, showing the "perils which threaten our public schools," was emphatically applauded by that intelligent body of citizens.

The assemblies of the different religious denominations in the State, which have recently been held, have generally, and I think without exception, passed similar resolutions. If blame is to attach to all who consider and discuss this question before the public, we have had a very large body of offenders. But I have not named all who are engaged in it. I have not named those who began it; those who for years have kept it up; those who in the press, on the platform, in the pulpit, in legislative bodies, in city councils, and in school boards, now unceasingly agitate the question. Everybody knows who they are; everybody knows that the sectarian wing of the Democratic party began this agitation, and that it is bent on the destruction of our free schools. If Republicans acting on the defensive discuss the subject, and express the opinion that the Democratic party can't safely be trusted, they are denounced in unmeasured terms. General Carey calls them "political knaves" and "fools" and "bigots." But it is very significant that no Democratic speaker denounces those who began the agitation. All their epithets are leveled at the men who are on the right side of the question. Agitation on the wrong side—agitation against the schools may go on. It meets no condemnation from leading Democratic candidates and speakers. The reason is plain. Those who mean to destroy the school system constitute a formidable part of the Democratic party, without whose support that party, as the legislature was told last Spring, can not carry the county, the city, nor the State.

The sectarian agitation against the public schools was begun many years ago. During the last few years, it has steadily and rapidly increased, and has been encouraged by various indications of possible success. It extends to all

of the States where schools at the common expense have been long established. Its triumphs are mainly in the large towns and cities. It has already divided the schools, and in a considerable degree impaired and limited their usefulness. The glory of the American system of education has been that it was so cheap that the humblest citizen could afford to give his children its advantages, and so good that the man of wealth could nowhere provide for his children anything better. This gave the system its most conspicuous merit. It made it a Republican system. The young of all conditions of life are brought together and educated on terms of perfect equality. The tendency of this is to assimilate and to fuse together the various elements of our population, to promote unity, harmony, and general good will in our American society. But the enemies of the American system have begun the work of destroying it. They have forced away from the public schools, in many towns and cities, one-third or one-fourth of their pupils and sent them to schools which it is safe to say are no whit superior to those they have left. These youth are thus deprived of the associations and the education in practical Republicanism and American sentiments which they peculiarly need. Nobody questions their constitutional and legal right to do this, and to do it by denouncing the public schools. Sectarians have a lawful right to say that these schools are "a relict of paganism—that they are Godless," and that "the secular school system is a social cancer." But when having thus succeeded in dividing the schools, they make that a ground for abolishing school taxation, dividing the school fund, or otherwise destroying the system, it is time that its friends should rise up in its defense.

We all agree that neither the government nor political parties ought to interfere with religious sects. It is equally true that religious sects ought not to interfere with the government or with political parties. We believe that the cause of good government and the cause of religion both suffer by all such interference. But if Sectarians make demands for legislation of political parties, and threaten that party with opposition at the elections in case the required enactments are not passed, and if the political party yields to such threats, then those threats, those demands, and that action of the political party become a legitimate subject of political discussion, and the sectarians who thus interfere with the legislation of the State are alone responsible for the agitation which follows.

And now a few words as to the action of the last legislature on this subject. After an examination of the Geghan bill, we shall perhaps come to the conclusion that in itself it is not of great importance. I would not undervalue the conscientious scruples on the subject of religion of a convict in the penitentiary, or of any unfortunate person in any State institution. But the provision of the constitution of the State covers the whole ground. It needs no awkwardly framed statute of doubtful meaning, like the Geghan bill, to accomplish the object of the organic law. The old constitution of 1802, and the constitution now in force, of 1851, are substantially alike. Both declare (I quote section 7, article 1, constitution of 1851):

"All men have a natural and indefeasible right to worship Almighty God according to the dictates of their own conscience. No person shall be compelled to attend, erect, or support any place of worship, or maintain any form of worship against his consent; and no preference shall be given by law to any religious society; nor shall any interference with the right of conscience be permitted."

If the Geghan bill is merely a reënactment of this part of the bill of rights, it is a work of supererogation, and it is not strange that the legislature did not, when it was introduced, favor its passage. The author of the bill wrote, "the members claim that such a bill is not needed." The same opinion prevails in New Jersey, where a similar bill is said to have been defeated by a vote of three to one. But the sectarians of Ohio were resolved on the passage of this bill. Mr. Geghan, its author, wrote to Mr. Murphy, of Cincinnati:

"We have a prior claim upon the Democratic party. The elements composing the Democratic party in Ohio to-day are made up of Irish and German catholics, and they have always been loyal and faithful to the interests of the party. Hence the party is under obligations to us, and we have a perfect right to demand of them, as a party, inasmuch as they are in control of the State legislature and State government, and were by both our means and votes placed where they are to-day, that they should, as a party, redress our grievances."

The organ of the friends of the bill published this letter, and among other things said:

"The political party with which nine-tenths of the Catholic voters affiliate on account of past services that they will never forget, now controls the State. Withdraw the support which Catholics have given to it and it will fall in this city, county, and State, as speedily as it has risen to its long lost position and power. That party is now on trial. Mr. Geghan's bill will test the sincerity of its professions."

That threat was effectual. The bill was passed, and the sectarian organ therefore said:

"The unbroken solid vote of the Catholic citizens of the State will be given to the Democracy at the fall election."

In regard to those who voted against the bill, it said: "They have dug their political grave; it will not be our fault if they do not fill it. When any of them appear again in the political arena, we will put upon them a brand that every Catholic citizen will understand." No defense of this conduct of the last legislature has yet been attempted. The facts are beyond dispute. This is the first example of open and successful sectarian interference with legislation in Ohio. If the people are wise, they will give it such a rebuke in October that for many years, at least, it will be the last.

But it is claimed that the schools are in no danger. Now that public attention is aroused to the importance of the subject, it is probable that in Ohio they are safe. But their safety depends on the rebuke which the people shall give to the party which yielded last spring at Columbus to the threats of their enemies. It is said that no political party "desires the destruction of the schools." I reply, no political party "desired" the passage of the Geghan bill; but the power which hates the schools passed the bill. The sectarian wing of the Democratic party rules that party to-day in the great commercial metropolis of the Nation. It holds the balance of power in many of the large cities of the country. Without its votes, the Democratic party would lose every large city and county in Ohio and every Northern State. In the presidential canvass of 1864, it was claimed that General McClellan was as good a Union man as Abraham Lincoln, and that he was as much opposed to the rebellion. An eminent citizen of this State replied: "I learn from my adversaries. Who do the enemies of the Union want elected? The man they are for, I am against." So I would say to the friends of the public schools:

"How do the enemies of universal education vote?" If the enemies of the free schools give their "unbroken, solid vote" to the Democratic ticket, the friends of the schools will make no mistake if they vote the Republican ticket.

The Republicans enter upon this important canvass with many advantages. Their adversaries are loaded down with the record of the last legislature. Democratic legislatures have not been fortunate in Ohio. Since the present division of parties, twenty years ago, no Democratic legislature has ever failed to bring defeat to its party. The people of Ohio have never been willing to venture on the experiment of two Democratic legislatures in succession. The Democratic inflation platform offends German Democrats, has driven off the Liberal Republicans, and is accepted by very few old-fashioned Democrats in its true intent and meaning. The Republicans are out of power in the cities and in the State, and are everywhere taking the offensive. If Democrats assail them on account of some affair of years ago, or in a distant Southern State, or at Washington, Republicans reply by pointing to what Democrats are now doing in their own cities, or have just done in the last legislature. The materials for such retort are abundant and ready at hand. The Republicans are embarrassed by no entangling alliance with the sectarian enemies of the public schools, and they have yielded to no sectarian demands or dictation in public affairs. We rejoice to see indications of an active canvass and a large vote at the election. Such a canvass and such a vote in Ohio never yet resulted in a Democratic victory. Our motto is honest money for all and free schools for all. There should be no inflation which will destroy the one, and no sectarian interference which will destroy the other.

Speech of GOVERNOR HAYES to his neighbors at Fremont, delivered June 25, 1876.

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Mr. Mayor, Fellow-Citizens, Friends, and Neighbors:

I need not attempt to express the emotions I feel at the reception which the people of Fremont and this county have given me to-night. Under any

circumstances, an assemblage of this sort at my home to welcome me would touch me, would excite the warmest emotions of gratitude; but what gives to this its distinctive character is the fact that those who are prominent in welcoming me home, I know, in the past, have not voted with me or for me, and they do not intend in the future to vote with me or for me. It is simply that, coming to my home, they rejoice that Ohio, that Sandusky county, that the town of Fremont has received at that National Convention high honor, and I thank you, Democrats, fellow-citizens, Independents, and Republicans, for this spontaneous and enthusiastic reception.

I trust that in the course of events the time will never come that you will have cause to regret what you do to-night. It is a very great responsibility that has been placed upon me—to be a representative of a party embracing twenty millions of people—a responsibility which I know I am not equal to. I understand very well that it was not by reason of ability or talents that I was chosen. But that which does rejoice me is that here, where I have been known from my childhood, there are those that come and rejoice at the result.

I trust, my friends, that as I run along in this desultory way—for you well know that since I learned that I was to be here to-night, the multitude of letters, and visits, and telegrams requiring attention have given me no time to prepare for a reception like this—you must, therefore, put up with hastily-formed sentences, very unfitly representing the sentiments appropriate to the occasion. Let me, if I may do it without too much egotism, recur to the history of my connection with Fremont. Forty-two years ago my uncle, Sardis Birchard, brought me to this place, and I rejoice, my friends, in the good taste and good feeling which have placed his portrait here to-night. He, having adopted me as his child, brought me to Fremont. I recollect well the appearance of the then Lower Sandusky, consisting of a few wooden buildings scattered along the river, with little paint on them, and these trees none of them grown, the old fort still having some of its earthworks remaining, so that it could be easily traced. A pleasant village this was for a boy to enjoy himself in. There was the fishing on the river, shooting water-fowls above the dam, at the islands and the lake. Perhaps no boy ever enjoyed his departure from home better than I did when I first came to Fremont.

But now see what this town is,—how it has grown. It has not increased to a first-class city, but it has become a pleasant home, so pleasant, so thriving that I rejoice to think that whatever may be the result next fall it will be pleasant to return to it when the contest is over. If defeated, I shall return to you oftener than if I go to the White House. If I go there I shall look forward with pleasure to the time when I shall be permitted to return to you, to be a neighbor with you again. And really we have cause to be satisfied with our home and the interests which the future has in store for us here. Larger cities always have strife and rivalry, from which we are free, and yet we are well situated between two commercial centers, the Eastern and Western, between which is the great highway of the world, and we can not but partake of their prosperity. Over the railroad passing through this place, or near it, will pass for all time to come the travel and trade of New York and San Francisco, of London and Peking. Every town along this route partakes of the prosperity of this highway. Upper Sandusky, on the Pittsburgh, Fort Wayne and Chicago Railroad, and Tiffin, that thriving and beautiful city through which passes the Baltimore and Ohio Railroad, south of us, while along the lake shore passes the great northern division of the Lake Shore Road, making this route, as it were, the great artery of the world's travel, and we can abide with the prosperity that is to come in the future. Those of our friends who travel in Europe return sometimes dissatisfied, because there is a rawness in this country not seen in England and the older countries of Europe. But then the greatest happiness, as all of us know, in preparing a garden or a home is to see the improvements growing up under our hands. This is what we enjoy; and the change in Fremont from the time I first knew it till to-day gives me very great pleasure.

There is another change which gives rise to mournful reflections. When I came here in the year 1834, I became acquainted with honored citizens who are no longer living. There was, Mr. Mayor, your father, Rudolphus Dickinson, Thomas I. Hawkins, Judge Olmsted, Judge Howland, and, among others, that marvel of business energy, George Grant; and I might go on giving name after name. But it is true that of all those I remember seeing on that first visit, not one is with us to-night. All who came with me, my uncle, my mother, and my sister, are gone. But this is the order of Providence. Events follow upon one another as wave follows wave upon

the ocean. It is for each man to do what he can to make others happy. This is the prayer and this is the duty of life. Let us, my friends, in every position, undertake to perform this duty. For one, I have no reliance except that which Abraham Lincoln had when, on leaving Springfield, he said to his friends: "I go to Washington to assume a responsibility greater than that which has been devolved upon any one since the first president, and I beg you, my friends and neighbors, to pray that I may have that Divine assistance, without which I can not succeed, and with which I can not fail." In that spirit I ask you to deal with me. If it shall be the will of the people that this nomination shall be ratified, I know I shall have your good wishes and your prayers. If, on the other hand, it shall be the will of the people that another shall assume these great responsibilities, let us see to it that we who shall oppose him give him a fair trial.

My friends, I thank you for the interest you have taken in this reception, and that you have laid aside partisan feeling. There has been too much bitterness on such occasions in our land. Let us see to it that abuse and vituperation of the candidate that shall be named at St. Louis do not proceed from our lips. Let us, in this centennial year, as we enter upon this second century of our existence, set an example of what a free and intelligent people can do. There is gathered at Philadelphia an assemblage representing nearly all the Nations of the world, with their arts and manufactures. We have invited competition, and they have come to compete with us, and with each other. We find that America stands well with the works of the world, as there exhibited. Let us show, in electing a chief magistrate of the Nation—the officer that is to be the first of forty or forty-five millions—let us show all those who visit us how the American people can conduct themselves through a canvass of this kind. If it shall be in the spirit in which we have met to-night, if it shall be that justness and fairness shall be in all the discussions, it will commend free institutions to the world in a way which they have never been commended before.

Well, friends, I am detaining you too long. Therefore I close what I have to say by expressing the feelings of gratitude entertained by myself and family for the kindness and regard shown us by the people of Fremont.

About the middle of the war, General Sherman lost a boy, named after himself, aged about thirteen years. He supposed that he belonged to the

Thirteenth Infantry, and when they went out to drill and dress parade, he dressed in the dress of a sergeant and marched with them. But he sickened and died. The regiment gathered about him, for he was to them a comrade—dear as the child is loved by men who are torn away from the associations of home. General Sherman, the great soldier, was touched by it. He said it would be idle for him to try to express the gratitude which he felt; but he said they held the key to the affections of himself and family, and if any of them should ever be in need, if they would mention that they belonged to the Thirteenth Infantry at the time his boy died, they would divide with him the last blanket, and last morsel of food. It is in this spirit that I wish to express my thanks to the people of Fremont for the welcome they have given me. I bid you, my friends, good night.

*** END OF THE PROJECT GUTENBERG EBOOK THE LIFE,
PUBLIC SERVICES AND SELECT SPEECHES OF RUTHERFORD B.
HAYES ***

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